

**ELEMENTS BY ALLOY PROPERTIES****LEASE**

This Lease (the “**Lease**”), dated as of the Effective Date set forth in Section 1 of the Summary of Basic Lease Information below (the “**Summary**”), is made by and between **SILVER I 2020, LLC**, a Delaware limited liability company (“**Landlord**”), and **BIOOTHERYX, INC.**, a Delaware corporation (“**Tenant**”). The Tenant originally named in the foregoing sentence may be referred to in this Lease as the “**Original Tenant**.”

**SUMMARY OF BASIC LEASE INFORMATION**

| TERMS OF LEASE                                       | DESCRIPTION                                                                                                                                                                                                                                                                                  |
|------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Effective Date:                                   | November 18, 2024 (the “ <b>Effective Date</b> ”)                                                                                                                                                                                                                                            |
| 2. Building; Premises; Project ( <u>Article 1</u> ). |                                                                                                                                                                                                                                                                                              |
| 2.1 Building:                                        | The Building containing approximately 94,187 rentable square feet of space (“ <b>RSF</b> ”) and located at 10201 Wateridge Circle, San Diego, California.                                                                                                                                    |
| 2.2 Premises:                                        | Approximately 9,085 rentable square feet of space located on the first (1 <sup>st</sup> ) floor of the Building and commonly known as Suite B, as further set forth in <u><b>Exhibit A</b></u> to the Lease.                                                                                 |
| 2.3 Project:                                         | The office / laboratory development, commonly referred to as Elements by Alloy Properties, and consisting of the Building, the Common Areas, other building(s) and land upon which such development is located, and any other building(s) and land from time to time designated by Landlord. |
| 3. Lease Term ( <u>Article 2</u> ).                  |                                                                                                                                                                                                                                                                                              |
| 3.1 Lease Term:                                      | Thirty-six (36) months.                                                                                                                                                                                                                                                                      |
| 3.2 Lease Commencement Date:                         | The earlier to occur of (i) the date upon which Tenant first commences to conduct business in the Premises and (ii) the later of (a) February 1, 2025 and (b) the Possession Date (as that term is defined in <u>Section 1.1.1</u> of this Lease).                                           |
| 3.3 Lease Expiration Date:                           | The last day of the thirty-sixth (36 <sup>th</sup> ) full calendar month following the Lease Commencement Date                                                                                                                                                                               |
| 3.4 Option Term(s):                                  | Tenant has two (2) options (each an “ <b>Extension Option</b> ”) to extend the Lease Term for a period of three (3)-years each (each an “ <b>Option Term</b> ”), as more particularly set forth in <u>Section 2.2</u> of this Lease.                                                         |

4. Base Rent (Article 3):

| <u>Lease Month</u> | <u>Annual<br/>Base Rent</u> | <u>Monthly<br/>Installment<br/>of Base Rent</u> | <u>Approximate<br/>Monthly Base<br/>Rent per Rentable<br/>Square Foot*</u> |
|--------------------|-----------------------------|-------------------------------------------------|----------------------------------------------------------------------------|
| 1-12**             | \$572,355.00                | \$47,696.25                                     | \$5.25                                                                     |
| 13-24              | \$589,525.65                | \$49,127.14                                     | \$5.41                                                                     |
| 25-36              | \$607,211.42                | \$50,600.95                                     | \$5.57                                                                     |

\* The amounts identified in the column entitled “Approximate Monthly Base Rent per Rentable Square Foot” are rounded amounts and are provided for informational purposes only. The amounts identified in the columns entitled “Annual Base Rent” and “Monthly Installment of Base Rent” shall control.

\*\* Subject to the terms set forth in Section 3.2 of this Lease, the Base Rent attributable to the three (3) month period commencing on the first (1<sup>st</sup>) day of the second (2<sup>nd</sup>) full calendar month of the Lease Term and ending on the last day of the fourth (4<sup>th</sup>) full calendar month of the Lease Term shall be abated.

5. Relocation Allowance (Exhibit B): An amount equal to \$5.00 per rentable square foot of the Premises (i.e., \$45,425.00 based upon 9,085 rentable square feet in the Premises).
6. Tenant’s Share (Article 4): 9.65%.
7. Permitted Use (Article 5): The Premises shall be used only for general office, research and development, engineering, laboratory, storage and/or warehouse uses, including, but not limited to, administrative offices and other lawful uses reasonably related to such specified uses, all (i) consistent with first class life sciences projects in San Diego, California (“**First Class Life Sciences Projects**”), and (ii) in compliance with, and subject to, Applicable Laws (as that term is defined in Article 24) and the terms of this Lease.
8. Security Deposit (Article 21): \$50,600.95.
9. Parking (Article 28): Two and one-half (2.5) unreserved parking spaces for every 1,000 rentable square feet of the Premises, in all cases subject to the terms of Article 28 of this Lease.

10. Address of Tenant  
(Section 29.18):
- Biotheryx, Inc.  
5871 Oberlin Drive, Suite 100  
San Diego, California 92121  
Attention: David Pieters  
(Prior to Lease Commencement Date)
- and
- Biotheryx, Inc.  
10201 Wateridge Circle, Suite B  
San Diego, California 92121  
Attention: David Pieters  
(After Lease Commencement Date)
11. Address of Landlord  
(Section 29.18):
- See Section 29.18 of the Lease.
12. Broker(s)  
(Section 29.24):
- Representing Landlord:  
  
Jones Lang LaSalle Brokerage, Inc.
- Representing Tenant:  
  
Re:Align, Inc.
13. Guarantor:
- None.
14. Tenant Improvements (**Exhibit B**):
- Tenant Improvements to be constructed on a turn-key basis pursuant to the Tenant Work Letter attached hereto as **Exhibit B**
15. Amount Due Upon Lease Execution:
- \$47,696.25, as first month's Base Rent
- \$50,600.95, as Security Deposit
- \$131,971.00, as Tenant's Contribution
- \$230,268.20 Total

## 1. PREMISES, BUILDING, PROJECT, AND COMMON AREAS

### 1.1 Premises, Building, Project and Common Areas.

1.1.1 **The Premises; Tender of Possession.** Landlord hereby leases to Tenant and Tenant hereby leases from Landlord the premises set forth in Section 2.2 of the Summary (the “**Premises**”). The outline of the Premises is set forth in Exhibit A attached hereto. The outline of the “Building” and the “Project,” as those terms are defined in Section 1.1.2 below, are further depicted on the site plan attached hereto as Exhibit A-1 (the “**Site Plan**”). The parties hereto agree that the lease of the Premises is upon and subject to the terms, covenants and conditions herein set forth, and Landlord and Tenant covenants as a material part of the consideration for this Lease to keep and perform each and all of such terms, covenants and conditions by it to be kept and performed and that this Lease is made upon the condition of such performance. The parties hereto hereby acknowledge that the purpose of Exhibit A is to show the approximate location of the Premises only, and such Exhibit is not meant to constitute an agreement, representation or warranty as to the construction of the Premises, the precise area thereof or the specific location of the “Common Areas,” as that term is defined in Section 1.1.3, below, or the elements thereof or of the accessways to the Premises or the “Project,” as that term is defined in Section 1.1.2, below. Except as specifically set forth in this Lease and in the Tenant Work Letter attached hereto as Exhibit B (the “**Tenant Work Letter**”), Landlord shall not be obligated to provide or pay for any improvement work or services related to the improvement of the Premises. Landlord shall be deemed to have tendered possession of the Premises to Tenant upon the date (the “**Possession Date**”) that Landlord provides Tenant with access to the Premises following Substantial Completion of the Premises, as that term is defined in the Tenant Work Letter, in a broom clean and free of any prior occupants or tenants condition, and no action by Tenant shall be required therefor. Landlord will use its commercially reasonable efforts to cause the Possession Date to occur on or before February 1, 2025. If for any reason, Landlord is delayed in tendering possession of the Premises to Tenant by any particular date, Landlord shall not be subject to any liability for such failure, and the validity of this Lease shall not be impaired, provided, however, that if Landlord is unable to tender the “Temporary Construction Area” (as that term is defined in the Tenant Work Letter) to Tenant with the Tenant Improvements therein substantially complete on or before March 10, 2025 (the “**TI Outside Date**”), thereafter fifteen percent (15%) of Tenant's Base Rent for the entire Premises shall be abated until such time as the Tenant Improvements in the Temporary Construction Area are substantially complete; provided, however, the TI Outside Date shall be extended to the extent of any delays beyond the reasonable control of Landlord, including any delay or delays caused by “Force Majeure,” as that term is defined in Section 29.16 of this Lease, “Tenant Delays,” as that term is defined in Section 5.2 of the Tenant Work Letter, or any delay or delays encountered by Landlord affecting the construction of the Tenant Improvements due to waiting periods for obtaining governmental permits or approvals in excess of the time periods normally required to obtain such permits or approvals for newly constructed, similarly improved space in the class A life sciences buildings located in the Sorrento Valley market area of San Diego, California.

1.1.2 **The Building and The Project.** The Premises constitutes a portion of the building set forth in Section 2.1 of the Summary (the “**Building**”). The Building is part of an office/laboratory project currently known as “Elements by Alloy Properties.” The term “**Project**,” as used in this Lease, shall mean (i) the Building and the Common Areas, (ii) the land (which is improved with landscaping, parking facilities and other improvements) upon which the Building and the Common Areas are located, (iii) the office/laboratory buildings located at 10221 Wateridge Circle and 10241 Wateridge Circle, San Diego, California, and the land upon which such adjacent office/laboratory buildings are located, and (iv) at Landlord's discretion, any additional real property, areas, land, buildings or other improvements added thereto (provided that the addition of such additional area does not materially increase Tenant's cost hereunder).

1.1.3 **Common Areas.** Tenant shall have the non-exclusive right to use in common with other tenants in the Project, and subject to the rules and regulations referred to in Article 5 of this Lease, those portions of the Project which are provided, from time to time, for use in common by Landlord or an affiliate of Landlord or any other owner of the Project (or any portion thereof), Tenant and any other tenants of the Project (such areas, together with such other portions of the Project designated by Landlord, in its discretion, are collectively referred to herein as the “**Common Areas**”). The manner in which the Common Areas are maintained and operated shall be at the reasonable discretion of Landlord (provided they will be maintained in a first class manner consistent with similar lab



and office projects in the San Diego area) and the use thereof shall be subject to such rules, regulations and restrictions as Landlord may make from time to time. Landlord reserves the right to close temporarily, make alterations or additions to, or change the location of elements of the Project and the Common Areas, provided that, in connection therewith, Landlord shall perform such closures, alterations, additions or changes in a commercially reasonable manner and, in connection therewith, shall use commercially reasonable efforts to minimize any material interference with Tenant's use of and access to the Premises and any such changes will not permanently materially and adversely affect Tenant's use and occupancy of the Premises.

1.1.4 **Landlord's Warranty.** Upon the Lease Commencement Date, the Building Systems which serve the Premises, (as that term is defined in Section 7.2, below) and the roof (including roof membrane) of the Building including, without limitation, electrical, plumbing, life-safety, alarm, HVAC (collectively, the "**Warranted Improvements**") shall be in good working order, condition and repair (collectively, "**Good Working Order**") and Landlord hereby covenants that the Warranted Improvements shall remain in Good Working Order for the period (the "**Warranty Period**") commencing on the Lease Commencement Date and continuing until the first (1<sup>st</sup>) anniversary of the Lease Commencement Date. Landlord shall, at Landlord's sole cost and expense (which shall not be deemed an Operating Expense, as that term is defined in Section 4.2 below), repair or replace any portion of such Warranted Improvements which is not in Good Working Order during such Warranty Period ("**Landlord's Warranty**"), provided that the need to repair or replace was not caused by (A) the misuse, misconduct, damage, destruction, and/or negligence of Tenant, its subtenants and/or assignees, if any, and their respective agents, contractors, subcontractors, independent contractors, and employees (collectively, "**Tenant Damage**"), or (B) any modifications, Alterations or other improvements constructed by or on behalf of Tenant (excluding any construction performed by Landlord or any Landlord party) (collectively, "**Tenant Modification**"). Landlord's warranty shall neither (i) be deemed to require Landlord to replace any portion of any Warranted Improvements, as opposed to repair such portion of such Warranted Improvements, unless such portion of the Warranted Improvements cannot be repaired, nor (ii) extend to the costs of normal and customary maintenance relating to the Warranted Improvements (the responsibility and cost for which will be handled in accordance with other provisions of this Lease). To the extent repairs which Landlord is required to make pursuant to this Section 1.1.4 are necessitated by Tenant Damage or Tenant Modification, then Tenant shall reimburse Landlord for the cost of such repair which are not covered under Landlord's insurance (provided that if such repairs are necessitated in part by Tenant Damage or Tenant Modification, then Tenant shall reimburse Landlord for an equitable portion of the cost of such repair). If Tenant provides written notice to Landlord on or before the date that occurs thirty (30) days after the expiration of the Warranty Period contending that the Warranted Improvements were not in good working condition as of the Possession Date, then Landlord shall not be liable to Tenant for any damages, but, as Tenant's sole remedy, Landlord, at no cost to Tenant (subject to any repair or replacement necessitated by Tenant Damage or Tenant Modification), shall promptly commence such work or take such other action as may be necessary to place the same in Good Working Order, and shall thereafter diligently and continuously pursue the same to completion.

1.2 **Rentable Square Feet of Premises.** The rentable square footage of the Premises is hereby deemed to be as set forth in Section 2.2 of the Summary, and shall not be subject to measurement or adjustment during the Lease Term.

## 2. LEASE TERM; OPTION TERM

2.1 **Lease Term.** The terms and provisions of this Lease shall be effective as of the Effective Date. The term of this Lease (the "**Lease Term**") shall be as set forth in Section 3.1 of the Summary, shall commence on the date set forth in Section 3.2 of the Summary (the "**Lease Commencement Date**"), and shall terminate on the date set forth in Section 3.3 of the Summary (the "**Lease Expiration Date**") unless this Lease is sooner terminated as hereinafter provided. For purposes of this Lease, the term "**Lease Year**" shall mean each consecutive twelve (12) month period during the Lease Term, provided that if the Lease Commencement Date occurs on other than the first day of a month, the first "**Lease Year**" shall commence on the Lease Commencement Date and end on the last day of the month in which the first anniversary of the Lease Commencement Date occurs (or if the Lease Commencement Date is the first day of a calendar month, then the first Lease Year shall commence on the Lease Commencement Date and end on the day immediately preceding the first anniversary of the Lease Commencement Date), and the second and each succeeding Lease Year shall commence on the first day of the next calendar month; and further provided that the last Lease Year shall end on the Lease Expiration Date. The term "**Lease Month**" shall mean each succeeding

calendar month during the Lease Term; provided, however, that the first Lease Month shall commence on the Lease Commencement Date and shall end on the last day of the first (1<sup>st</sup>) full calendar month of the Lease Term (or if the Lease Commencement Date is the first day of a calendar month, then the first Lease Month shall be that calendar month) and that the last Lease Month shall expire on the Lease Expiration Date. Except as set forth herein, Tenant will have no obligation to Landlord for any financial obligation under this Lease until the Lease Commencement Date and will have no obligation to insure the Premises or indemnify Landlord for any matter relating to this Lease until the earlier of (i) the Possession Date, and (ii) the date Tenant first occupies the Premises for any purpose permitted hereunder. At any time during the Lease Term, once the Lease Commencement Date has been determined in accordance with Section 3.2 of the Summary, Landlord may deliver to Tenant a notice in the form as set forth in Exhibit C, attached hereto, as a confirmation only of the information set forth therein, which Tenant shall execute and return to Landlord within ten (10) business days of receipt thereof.

## 2.2 Extension Option(s).

2.2.1 Option Right. Landlord hereby grants to the Original Tenant and any “Permitted Transfer Assignee” (as that term is defined in Section 14.7 below), two (2) options to extend the Lease Term for a period of three (3) years each (each, an “Option Term”), which Option Term shall each be exercised only by written notice delivered by Tenant to Landlord not earlier than twelve (12) months nor less than eight (8) months prior to the expiration of the initial Lease Term (or initial Option Term, as the case may be), stating that Tenant is thereby irrevocably exercising its option to lease the Premises during the applicable Option Term. Upon the proper exercise of the Extension Option, and provided that, at Landlord’s option, as of the date of delivery of such notice, Tenant is not in monetary or other material default beyond any applicable notice and cure period under this Lease and has not previously been in default under this Lease more than once in the preceding twelve (12) month period, and as of the end of the initial Lease Term (or initial Option Term, as the case may be), Tenant is not in monetary or other material default beyond any applicable notice and cure period under this Lease, the Lease Term shall be extended for a period of three (3) years. The rights contained in this Section 2.2 shall be personal to Original Tenant and any Permitted Transfer Assignee (and not any other assignee, sublessee or “Transferee,” as that term is defined in Section 14.1, below, of Tenant’s interest in this Lease). In the event that Tenant fails to timely and appropriately exercise its initial option to extend the Lease Term, or its second option to extend the Lease Term, as the case may be, in accordance with the terms of this Section 2.2, then such option (and any other then-remaining option to extend the Lease Term, if applicable) shall automatically terminate and shall be of no further force or effect. Further, notwithstanding anything to the contrary herein, Tenant’s Extension Option shall terminate upon the earliest to occur of (i) Tenant’s assignment of this Lease, other than to a Permitted Transfer Assignee, (ii) Tenant’s sublease of twenty-five percent (25%) or more of the entire then-existing Premises, other than to a Permitted Transferee for substantially the remaining Lease Term, (iii) Tenant’s failure to physically occupy twenty-five percent (25%) or more of the entire then-existing Premises for the regular conduct of business (other than during any period of Casualty, condemnation, or renovation), and (iv) the occurrence of the second (2<sup>nd</sup>) Event of Default.

2.2.2 Option Rent. The annual Rent payable by Tenant during the Option Term (the “Option Rent”) shall be equal to the “Fair Rental Value,” as that term is defined below, for the Premises as of the commencement date of the Option Term. The “Fair Rental Value,” as used in this Lease, shall be equal to the annual rent per rentable square foot (taking into account additional rent and considering any “base year” or “expense stop” applicable thereto), including all escalations, at which tenants (pursuant to leases consummated within the twelve (12) month period preceding the first day of the Option Term), are leasing non-sublease, non-encumbered, non-equity space which is not significantly greater or smaller in size than the subject space, with a comparable level of improvements (excluding any property that Tenant would be allowed to remove from the Premises at the termination of the Lease), for a comparable lease term, in an arm’s length transaction, which comparable space is located in the “Comparable Buildings,” as that term is defined in this Section 2.2.2, below (transactions satisfying the foregoing criteria shall be known as the “Comparable Transactions”), taking into consideration the following concessions (the “Concessions”): (a) rental abatement concessions, if any, being granted such tenants in connection with such comparable space; (b) tenant improvements or allowances provided or to be provided for such comparable space, and taking into account the value, if any, of the existing improvements in the subject space (other than improvements installed by Tenant at Tenant’s sole cost and expense), such value to be based upon the age, condition, design, quality of finishes and layout of the improvements and the extent to which the same can be utilized by a general office/lab user other than Tenant; and (c) other reasonable monetary concessions being granted such tenants in connection with

such comparable space; provided, however, that in calculating the Fair Rental Value, no consideration shall be given to the fact that Landlord is or is not required to pay a real estate brokerage commission in connection with Tenant's exercise of its right to extend the Lease Term, or the fact that landlords are or are not paying real estate brokerage commissions in connection with such comparable space. The Concessions shall be reflected in the effective rental rate (which effective rental rate shall take into consideration the total dollar value of such Concessions as amortized on a straight-line basis over the applicable term of the Comparable Transaction (in which case such Concessions evidenced in the effective rental rate shall not be granted to Tenant)) payable by Tenant. The term "**Comparable Buildings**" shall mean the Building and those other life sciences buildings which are comparable to the Building in terms of age (based upon the date of completion of construction or major renovation of to the building), quality of construction, level of services and amenities, size and appearance, and are located in San Diego, California and the surrounding commercial area.

2.2.3 **Determination of Option Rent.** In the event Tenant timely and appropriately exercises an option to extend the Lease Term, Landlord shall notify Tenant of Landlord's determination of the Option Rent within thirty (30) days after receipt of Tenant's exercise notice. If Tenant, on or before the date which is ten (10) business days following the date upon which Tenant receives Landlord's determination of the Option Rent, in good faith objects to Landlord's determination of the Option Rent, then Landlord and Tenant shall attempt to agree upon the Option Rent using their good-faith efforts. If Landlord and Tenant fail to reach an agreement within ten (10) business days following Tenant's objection to the Option Rent (the "**Outside Agreement Date**"), then Tenant shall have the right to withdraw its exercise of the option by delivering written notice thereof to Landlord within five (5) business days thereafter, in which event Tenant's right to extend the Lease pursuant to this Section 2.2 shall be of no further force or effect. If Tenant does not withdraw its exercise of the extension option, each party shall make a separate determination of the Option Rent, as the case may be, within ten (10) days after the Outside Agreement Date, and such determinations shall be submitted to arbitration in accordance with Sections 2.2.3.1 through 2.2.3.7, below. If Tenant fails to affirmatively accept Landlord's determination of the Option Rent within the time period set forth herein, then Tenant shall be deemed to have objected to Landlord's determination of Option Rent.

2.2.3.1 Landlord and Tenant shall each appoint one arbitrator who shall be, at the option of the appointing party, a real estate appraiser or licensed commercial real estate broker who shall have been active over the five (5) year period ending on the date of such appointment in the appraisal or leasing of other class A life sciences buildings located in the Sorrento Valley market area of San Diego, California. The determination of the arbitrators shall be limited solely to the issue of whether Landlord's or Tenant's submitted Option Rent is the closest to the actual Option Rent, taking into account the requirements of Section 2.2.2 of this Lease, as determined by the arbitrators. Each such arbitrator shall be appointed within fifteen (15) days after the Outside Agreement Date. Landlord and Tenant may consult with their selected arbitrators prior to appointment and may select an arbitrator who is favorable to their respective positions. The arbitrators so selected by Landlord and Tenant shall be deemed "**Advocate Arbitrators.**"

2.2.3.2 The two (2) Advocate Arbitrators so appointed shall be specifically required pursuant to an engagement letter within ten (10) days of the date of the appointment of the last appointed Advocate Arbitrator to agree upon and appoint a third arbitrator ("**Neutral Arbitrator**") who shall be qualified under the same criteria set forth hereinabove for qualification of the two Advocate Arbitrators, except that neither the Landlord or Tenant or either parties' Advocate Arbitrator may, directly or indirectly, consult with the Neutral Arbitrator prior or subsequent to his or her appearance. The Neutral Arbitrator shall be retained via an engagement letter jointly prepared by Landlord's counsel and Tenant's counsel.

2.2.3.3 The three arbitrators shall, within thirty (30) days of the appointment of the Neutral Arbitrator, reach a decision as to whether the parties shall use Landlord's or Tenant's submitted Option Rent, and shall notify Landlord and Tenant thereof.

2.2.3.4 The decision of the majority of the three arbitrators shall be binding upon Landlord and Tenant.

2.2.3.5 If either Landlord or Tenant fails to appoint an Advocate Arbitrator within fifteen (15) days after the Outside Agreement Date, then either party may petition the presiding judge of the Superior Court

of San Diego County to appoint such Advocate Arbitrator subject to the criteria in Section 2.2.3.1 of this Lease, or if he or she refuses to act, either party may petition any judge having jurisdiction over the parties to appoint such Advocate Arbitrator.

2.2.3.6 If the Advocate Arbitrators fail to agree upon and appoint the Neutral Arbitrator within ten (10) business days following the date of the appointment of the last appointed Advocate Arbitrator,, then either party may petition the presiding judge of the Superior Court of San Diego County to appoint the Neutral Arbitrator, subject to criteria in Section 2.2.3.1 of this Lease, or if he or she refuses to act, either party may petition any judge having jurisdiction over the parties to appoint such arbitrator.

2.2.3.7 The cost of the arbitration shall be paid by Landlord and Tenant equally.

2.2.3.8 In the event that the Option Rent shall not have been determined pursuant to the terms hereof prior to the commencement of the Option Term, Tenant shall initially be required to pay as Option Rent an amount equal to the Base Rent payable by Tenant as of the expiration of the initial Lease Term, and upon the final determination of the Option Rent, the payments made by Tenant shall be reconciled with the actual amounts of Option Rent due, and the appropriate party shall make any corresponding payment to the other party within thirty (30) days of delivery of such reconciliation statement..

2.3 **Beneficial Occupancy.** Provided that Tenant and its agents do not interfere with any work in the Building being performed by Landlord or any other tenant, Tenant may access the Premises as of November 15, 2024 for the purpose of installing its furniture, equipment and/or fixtures in the Premises, provided that (A) Tenant has delivered to Landlord satisfactory evidence of the insurance coverage required to be carried by Tenant in accordance with Article 10 below, and (B) all of the terms and conditions of the Lease shall apply, other than Tenant's obligation to pay "Base Rent" (as that term is defined in Article 3 below) and "Direct Expenses" (as that term is defined in Article 4 below), as though the Lease Commencement Date had occurred (although the Lease Commencement Date shall not actually occur until the occurrence of the same pursuant to the terms of the second sentence of Section 2.1, above) upon such occupancy of the Premises by Tenant. Tenant hereby acknowledges that, notwithstanding Tenant's occupancy of the Premises prior to the Lease Commencement Date, Landlord shall be permitted to construct the Tenant Improvements during normal business hours, and Tenant shall provide a clear working area for such work, if necessary (including, but not limited to, the moving of furniture, fixtures and Tenant's property away from the area in which Landlord is constructing the Tenant Improvements). Tenant hereby agrees that the construction of the Tenant Improvements prior to the Lease Commencement Date shall in no way constitute a constructive eviction of Tenant nor entitle Tenant to any abatement of rent. Landlord shall have no responsibility or for any reason be liable to Tenant for any direct or indirect injury to or interference with Tenant's business arising from the Tenant Improvements, nor shall Tenant be entitled to any compensation or damages from Landlord for loss of the use of the whole or any part of the Premises or of Tenant's personal property or improvements resulting from the Tenant Improvements or Landlord's actions in connection with the Tenant Improvements, or for any inconvenience or annoyance occasioned by the Tenant Improvements or Landlord's actions in connection with the Tenant Improvements.

### 3. **BASE RENT**

3.1 **In General.** Commencing on the Lease Commencement Date, Tenant shall pay to Landlord, without prior notice or demand, base rent ("**Base Rent**") as set forth in Section 4 of the Summary, payable in equal monthly installments as set forth in Section 4 of the Summary in advance on or before the first day of each and every calendar month during the Lease Term, without any setoff or deduction whatsoever. In accordance with Section 4 of the Summary, any increases in Base Rent shall occur on the first day of the applicable Lease Month. However, if the first Lease Month pertains to a period longer than one (1) calendar month, then Base Rent for such first Lease Month shall be equal to one (1) calendar month's Base Rent plus prorated Base Rent for the partial calendar month also included in such first Lease Month. The prepaid Base Rent set forth in Section 14 of the Summary shall be paid at the time of Tenant's execution and delivery of this Lease. All payments required to be made by Tenant to Landlord hereunder (including, without limitation, Base Rent) shall be paid to Landlord or Landlord's agent, at Landlord's option, by wire transfer, Electronic Funds Transfer, at the management office of the Project or at such other place or method as Landlord may from time to time designate in writing, in immediately available funds that, at the time of payment, are legal tender for private or public debts in the United States of America. If no time period for payment

is specified in this Lease, Tenant shall make all required payments within ten (10) business days of Landlord's request and delivery of an invoice. If any Rent payment date (including the Lease Commencement Date) falls on a day of the month other than the first day of such month or if any payment of Rent is for a period which is shorter than one month, the Rent for any fractional month shall accrue on a daily basis for the period from the date such payment is due to the end of such calendar month or to the end of the Lease Term at a rate per day which is equal to 1/365 of the applicable annual Rent. All other payments or adjustments required to be made under the terms of this Lease that require proration on a time basis shall be prorated on the same basis.

3.2 **Base Rent Abatement.** Subject to the terms and conditions of this Lease, Tenant shall not be obligated to pay any Base Rent otherwise attributable to the Premises with respect to the second (2<sup>nd</sup>) through fourth (4<sup>th</sup>) full calendar months of the Lease Term (collectively, the “**Base Rent Abatement**”). The maximum aggregate amount of the Base Rent Abatement shall be equal to \$143,088.75 (i.e., \$47,696.25 per month).

#### 4. **ADDITIONAL RENT**

##### 4.1 **General Terms.**

4.1.1 **Direct Expenses; Additional Rent.** In addition to paying the Base Rent specified in Article 3 of this Lease, Tenant shall pay “**Tenant's Share**” of the annual “**Direct Expenses**,” as those terms are defined in Sections 4.2.5 and 4.2.1 of this Lease, respectively. Such payments by Tenant, together with any and all other amounts payable by Tenant to Landlord pursuant to the terms of this Lease, are hereinafter collectively referred to as the “**Additional Rent**”, and the Base Rent and the Additional Rent are herein collectively referred to as “**Rent**.” All amounts due under this Article 4 as Additional Rent shall be payable for the same periods and in the same manner as the Base Rent. Without limitation on other obligations of Tenant which survive the expiration of the Lease Term, the obligations of Tenant to pay the Additional Rent provided for in this Article 4 shall survive the expiration of the Lease Term for a period of two (2) years after the earlier of the expiration of the applicable Expense Year or the Lease Expiration Date, provided that in any event Tenant shall be responsible for Tenant's Share of Direct Expenses levied by any governmental authority or by any public utility companies for a period of three (3) years after the earlier of the expiration of the applicable Expense Year or the Lease Expiration Date.

##### 4.1.2 **Intentionally Omitted.**

4.2 **Definitions of Key Terms Relating to Additional Rent.** As used in this Article 4, the following terms shall have the meanings hereinafter set forth:

4.2.1 “**Direct Expenses**” shall mean “**Operating Expenses**” and “**Tax Expenses**.”

4.2.2 “**Expense Year**” shall mean each calendar year in which any portion of the Lease Term falls, through and including the calendar year in which the Lease Term expires, provided that Landlord, upon notice to Tenant, may change the Expense Year from time to time to any other twelve (12) consecutive month period, and, in the event of any such change, Tenant's Share of Direct Expenses shall be equitably adjusted for any Expense Year involved in any such change, (provided that such change does not result in an increase in Tenant's costs hereunder).

4.2.3 “**Operating Expenses**” shall mean all expenses, costs and amounts of every kind and nature which Landlord pays, accrues or amortizes during any Expense Year because of or in connection with the management, maintenance, security, repair, or operation of the Project or any portion thereof (including, without limitation, all Common Areas, in accordance with sound real estate management and accounting practices. Without limiting the generality of the foregoing, Operating Expenses shall specifically include any and all of the following: (i) the cost of supplying all utilities, the cost of operating, repairing, replacing, maintaining, and renovating the utility, telephone, mechanical, sanitary, storm drainage, and elevator systems, and the cost of maintenance and service contracts in connection therewith; (ii) the cost of licenses, certificates, permits and inspections and the actual out of pocket cost, of contesting any governmental enactments which may affect Operating Expenses, and the costs incurred in connection with a governmentally mandated transportation system management program or similar program; (iii) the cost of all insurance carried by Landlord in connection with the Project and Premises as reasonably determined by Landlord (provided that any deductibles will be commercially reasonable and will be capitalized and amortized to the

extent used for capital repairs); (iv) the cost of landscaping, relamping, and all supplies, tools, equipment and materials used in the operation, repair and maintenance of the Project, or any portion thereof; (v) the cost of parking area operation, repair, restoration, and maintenance; (vi) fees and other costs, including commercial reasonable management and/or incentive fees, consulting fees, contractor fees, legal fees and accounting fees incurred in direct connection with the management, operation, maintenance, replacement and repair of the Project; (vii) payments under any equipment rental agreements; (viii) subject to item (f), below, wages, salaries and other compensation and benefits, including taxes levied thereon, of all persons engaged in the operation, maintenance and security of the Project; (ix) the fair rental value of any management office space; (x) operation, repair, maintenance and replacement of all systems and equipment and components thereof of the Project; (xi) the cost of janitorial, alarm, security and other services, replacement of wall and floor coverings, ceiling tiles and fixtures in common areas, maintenance and replacement of curbs and walkways, repair to roofs and re-roofing; (xii) amortization (including interest on the unamortized cost at an annual interest rate reasonably determined by Landlord in accordance with sound real estate management and accounting principles) over such period of time as Landlord shall reasonably determine, of the cost of acquiring or the rental expense of personal property used in the maintenance, operation and repair of the Project, or any portion thereof; (xiii) the cost of capital improvements or other costs incurred in connection with the Project (A) which are intended to effect economies in the operation or maintenance of the Project, or any portion thereof, or to reduce current or future Operating Expenses, or (B) that are required under any governmental law or regulation, except for capital expenditures to remedy a condition existing prior to the Lease Commencement Date which an applicable governmental authority, if it had knowledge of such condition prior to the Lease Commencement Date, would have then required to be remedied pursuant to then-current governmental laws or regulations in their form existing as of the Lease Commencement Date and pursuant to the then-current interpretation of such governmental laws or regulations by the applicable governmental authority as of the Lease Commencement Date (collectively, "**Permitted Capital Expenses**"); provided, however, that any Permitted Capital Expenses shall be amortized (including interest on the amortized cost) over the useful life of such item as reasonably determined in accordance with sound real estate management and accounting principles; and (xiv) payments under any easement, license, operating agreement, declaration, restrictive covenant, or instrument pertaining to the sharing of costs by the Building, including, without limitation, any covenants, conditions and restrictions affecting the property, and reciprocal easement agreements affecting the property, any parking licenses, and any agreements with transit agencies affecting the Property, in each case only to the extent such cost would be included in Operating Expenses if incurred by Landlord on a direct basis (collectively, "**Underlying Documents**"); and (xvi) all costs of reporting for the Project or any part thereof to maintain certification under the U.S. EPA's Energy Star® rating system, the U.S. Green Building Council's Leadership in Energy and Environmental Design (LEED) rating system or a similar system or standard.

Notwithstanding the foregoing, for purposes of this Lease, Operating Expenses shall not, however, include:

- (a) costs, including legal fees, space planners' fees, advertising and promotional expenses (except as otherwise set forth above), commissions, and brokerage fees incurred in connection with the original construction or development, or original or future leasing of the Project, and costs, including permit, license and inspection costs, incurred with respect to the installation of tenant improvements made for new tenants initially occupying space in the Project after the Lease Commencement Date or incurred in renovating or otherwise improving, decorating, painting or redecorating vacant space for tenants or other occupants of the Project (excluding, however, such costs relating to any common areas of the Project or parking facilities);
- (b) except as set forth in items (xii) and (xiii) above, depreciation, interest and principal payments on mortgages and other debt costs, if any, penalties and interest;
- (c) costs for which the Landlord is reimbursed by any tenant or occupant of the Project or by insurance by its carrier or any tenant's carrier or by anyone else (except to the extent of commercially reasonable deductibles), and electric power costs or any other utility cost for which any tenant directly contracts with the local public service company;
- (d) any bad debt loss, rent loss, or reserves for bad debts or rent loss;

(e) costs associated with the operation of the business of the partnership or entity which constitutes the Landlord, as the same are distinguished from the costs of operation of the Project (which shall specifically include, but not be limited to, accounting costs associated with the operation of the Project). Costs associated with the operation of the business of the partnership or entity which constitutes the Landlord include costs of partnership accounting and legal matters, costs of defending any lawsuits with any mortgagee (except as the actions of the Tenant may be in issue), costs of selling, syndicating, financing, mortgaging or hypothecating any of the Landlord's interest in the Project, and costs incurred in connection with any disputes between Landlord and its employees, between Landlord and Project management, or between Landlord and other tenants or occupants;

(f) the wages and benefits of any employee who does not devote substantially all of his or her employed time to the Project unless such wages and benefits are prorated to reflect time spent on operating and managing the Project vis-à-vis time spent on matters unrelated to operating and managing the Project; provided, that in no event shall Operating Expenses include wages and/or benefits attributable to personnel above the level of a senior portfolio manager, or its equivalent;

(g) amount paid as ground rental for the Project by the Landlord;

(h) except for a reasonable property management fee (not to exceed 3% of Landlord's gross income from the Project, adjusted and grossed up to reflect a one hundred percent (100%) occupancy of the Project with all tenants paying full rent, as contrasted with free rent, half-rent and the like), overhead and profit increment paid to the Landlord or to subsidiaries or affiliates of the Landlord for services in the Project to the extent the same exceeds the costs of such services rendered by qualified, first-class unaffiliated third parties on a competitive basis;

(i) any compensation paid to clerks, attendants or other persons in commercial concessions operated by the Landlord;

(j) rentals and other related expenses incurred in leasing air conditioning systems, elevators or other equipment which if purchased the cost of which would be excluded from Operating Expenses as a capital cost, except equipment not affixed to the Project which is used in providing engineering, janitorial or similar services and, further excepting from this exclusion such equipment rented or leased to remedy or ameliorate an emergency condition in the Project;

(k) all items and services for which Tenant or any other tenant in the Project reimburses Landlord directly and separately from Operating Expenses or which Landlord provides selectively to one or more tenants (other than Tenant) without reimbursement;

(l) any costs expressly excluded from Operating Expenses elsewhere in this Lease;

(m) rent for any office space occupied by Project management personnel to the extent the size or rental rate of such office space exceeds the size or fair market rental value of office space occupied by management personnel of the Comparable Buildings, with adjustment where appropriate for the size of the applicable project;

(n) costs arising from the gross negligence or willful misconduct of Landlord or Landlord Parties;

(o) except for Permitted Capital Expenses, costs of items considered capital repairs, replacements, improvements and equipment as reasonably determined by Landlord;

(p) costs incurred to comply with Applicable Laws relating to the removal of "Hazardous Material" (as defined in Section 5.3 below) that was in existence in the Building or on the Project prior to the Lease Commencement Date, or that was brought into the Building or onto the Project after the Lease Commencement Date by Landlord or any other tenant of the Project or any other third party, and was

of such a nature that a federal, state, local or municipal governmental authority would have required removal or other containment, if it had then had knowledge of the presence of such hazardous material, in the state, and under the conditions that it then existed in the Building or on the Project, but only to the extent those Applicable Laws were then being actively enforced by the applicable government authority;

- (q) reserves of any kind;
- (r) costs (including in connection therewith all attorneys' fees and costs of settlement, judgments and/or payments in lieu thereof) arising from claims, disputes or potential disputes in connection with potential or actual claims, litigation or arbitrations pertaining to another tenant of the Building;
- (s) costs incurred in connection with the original construction, any prior renovation or any future expansion of the Building or Project and costs of correcting defects in or inadequacy of the initial design or construction of the Building or any prior renovation or future expansion of the Building or Project;
- (t) travel and entertainment expenses;
- (u) charitable and political contributions;
- (v) cost to acquire artwork;
- (w) interest, fines or penalties for late payment incurred due to Landlord's breach of Applicable Laws;
- (x) costs (i.e., interest and penalties) incurred due to Landlord's default of this Lease or any other lease, mortgage, or other agreement, in each case affecting the Project; and
- (y) earthquake insurance deductibles in an amount greater than \$1.50 per rentable square foot of the Project (the "**Annual Limit**") in any year (provided, however, that, notwithstanding anything else herein to the contrary, if, for any occurrence, the earthquake insurance deductible exceeds the Annual Limit, then, after such deductible is included (up to the Annual Limit) in Operating Expenses for the applicable calendar year, such excess may be included (up to the Annual Limit) in Operating Expenses for the immediately succeeding calendar year, and any portion of such excess that is not so included in Operating Expenses for such immediately succeeding calendar year may be included (up to the Annual Limit) in Operating Expenses for the next succeeding calendar year, and so on with respect to each subsequent calendar year).

If Landlord is not furnishing any particular work or service (the cost of which, if performed by Landlord, would be included in Operating Expenses) to a tenant who has undertaken to perform such work or service in lieu of the performance thereof by Landlord, Operating Expenses shall be deemed to be increased by an amount equal to the additional Operating Expenses which would reasonably have been incurred during such period by Landlord if it had at its own expense furnished such work or service to such tenant. If the Project is not at least one hundred percent (100%) occupied during all or a portion of any Expense Year, Landlord shall make an appropriate adjustment to the components of Operating Expenses for such year to determine the amount of Operating Expenses that would have been incurred had the Project been one hundred percent (100%) occupied; and the amount so determined shall be deemed to have been the amount of Operating Expenses for such year. Landlord shall not (1) make a profit by charging items to Operating Expenses that are otherwise also charged separately (i.e., not as the equivalent to Operating Expenses under this Lease) to tenants (including Tenant) of the Project, and (2) subject to Landlord's right to adjust the components of Operating Expenses described above in this paragraph, collect Operating Expenses from Tenant and all other tenants in the Project in an amount in excess of what Landlord incurs for the items included in Operating Expenses.



#### 4.2.4 **Tax Expenses.**

4.2.4.1 **Inclusions.** “**Tax Expenses**” shall mean all federal, state, county, or local governmental or municipal taxes, fees, charges or other impositions of every kind and nature, whether general, special, ordinary or extraordinary (including, without limitation, real estate taxes, general and special assessments, transit taxes, leasehold taxes or taxes based upon the receipt of rent, including gross receipts or sales taxes applicable to the receipt of rent, unless required to be paid by Tenant, personal property taxes imposed upon the fixtures, machinery, equipment, apparatus, systems and equipment, appurtenances, furniture and other personal property used in connection with the Project, or any portion thereof), which shall be paid by Landlord or accrued during any Expense Year (without regard to any different fiscal year used by such governmental or municipal authority) because of or in connection with the ownership, leasing and operation of the Project, or any portion thereof, including, without limitation: (i) any tax on the rent, right to rent or other income from the Project, or any portion thereof, or as against the business of leasing the Project, or any portion thereof; (ii) any assessment, tax, fee, levy or charge in addition to, or in substitution, partially or totally, of any assessment, tax, fee, levy or charge previously included within the definition of real property tax, it being acknowledged by Tenant and Landlord that Proposition 13 was adopted by the voters of the State of California in the June 1978 election (“**Proposition 13**”) and that assessments, taxes, fees, levies and charges may be imposed by governmental agencies for such services as fire protection, street, sidewalk and road maintenance, refuse removal and for other governmental services formerly provided without charge to property owners or occupants, and, in further recognition of the decrease in the level and quality of governmental services and amenities as a result of Proposition 13; (iii) any governmental or private assessments or the Project's contribution towards a governmental or private cost-sharing agreement for the purpose of augmenting or improving the quality of services and amenities normally provided by governmental agencies; (iv) any assessment, tax, fee, levy, or charge allocable to or measured by the area of the Premises or the Rent payable hereunder, including, without limitation, any business or gross income tax or excise tax with respect to the receipt of such rent, or upon or with respect to the possession, leasing, operating, management, maintenance, alteration, repair, use or occupancy by Tenant of the Premises, or any portion thereof; (v) any assessment, tax, fee, levy or charge, upon this transaction or any document to which Tenant is a party, creating or transferring an interest or an estate in the Premises; and (vi) all of the real estate taxes and assessments imposed upon or with respect to the Building and all of the real estate taxes and assessments imposed on the land and improvements comprising the Project. All assessments which can be paid by Landlord in installments, shall be paid by Landlord in the maximum number of installments permitted by law (except to the extent inconsistent with the general practice of landlords of the Comparable Buildings) and shall be included as Tax Expenses in the year in which the installment is actually paid.

4.2.4.2 **In General.** Landlord shall apply for a decrease in real property taxes under Proposition 8 or any successor legislation if economic conditions warrant such an application, as reasonably determined by Landlord. Any costs and expenses (including, without limitation, reasonable attorneys' and consultants' fees) incurred in attempting to protest, reduce or minimize Tax Expenses shall be included in Tax Expenses in the Expense Year such expenses are incurred. Tax refunds shall be credited against Tax Expenses and refunded to Tenant regardless of when received, based on the Expense Year to which the refund is applicable, provided that in no event shall the amount to be refunded to Tenant for any such Expense Year exceed the total amount paid by Tenant as Additional Rent under this Article 4 for such Expense Year. If Tax Expenses for any period during the Lease Term or any extension thereof are increased after payment thereof for any reason, including, without limitation, error or reassessment by applicable governmental or municipal authorities, Tenant shall pay Landlord upon demand Tenant's Share of any such increased Tax Expenses, provided such demand is made within twelve (12) months after Landlord's receipt of the invoice for such Tax Expenses. Notwithstanding anything to the contrary contained in this Section 4.2.5, there shall be excluded from Tax Expenses (i) all excess profits taxes, franchise taxes, gift taxes, capital stock taxes, inheritance and succession taxes, estate taxes, federal and state income taxes, and other taxes to the extent applicable to Landlord's net income (as opposed to rents, receipts or income attributable to operations at the Project), (ii) any items included as Operating Expenses, (iii) any items paid by Tenant under Section 4.5 of this Lease, and (iv) tax penalties incurred as a result of Landlord's failure to make payments and/or to file any tax or informational returns when due. If the property tax assessment for the Project (or any portion thereof) (or Tax Expenses) for any Expense Year does not reflect an assessment (or Tax Expenses) for a one hundred percent (100%) leased, completed and occupied project (such that existing or future leasing, tenant improvements and/or occupancy may result in an increased assessment and/or increased Tax Expenses), Tax Expenses shall be adjusted, on a basis consistent with

sound real estate accounting principles, to reflect an assessment for (and Tax Expenses for) a one hundred percent (100%) leased, completed and occupied project.

4.2.5 “**Tenant's Share**” shall mean the percentage set forth in Section 6 of the Summary.

#### 4.3 **Allocation of Direct Expenses.**

4.3.1 **Method of Allocation.** The parties acknowledge that the Building is a part of a multi-building project and that the costs and expenses incurred in connection with the Project (i.e., the Direct Expenses) shall be proportionally shared between the Building and the other buildings in the Project. Accordingly, as set forth in Section 4.2 above, Direct Expenses (which consist of Operating Expenses and Tax Expenses) are determined annually for the Project as a whole, and a portion of the Direct Expenses, which portion shall be determined by Landlord on a reasonable and equitable basis, shall be allocated to the Building (as opposed to other buildings in the Project). Such portion of Direct Expenses allocated to the Building shall include all Direct Expenses attributable solely to the Building and an equitable portion of the Direct Expenses attributable to the Project as a whole, and shall not include Direct Expenses attributable solely to other buildings in the Project.

4.3.2 **Cost Pools.** Landlord shall have the right, from time to time, to equitably allocate some or all of the Direct Expenses for the Project among different portions or occupants of the Project (the “**Cost Pools**”), in Landlord's reasonable discretion and in a manner reflecting the disparate usage of the members of such Cost Pool and the remainder of the Project and the commercially reasonable Cost Pools for such Direct Expenses so allocated. Such Cost Pools may include, but shall not be limited to, the office space tenants of a building of the Project or of the Project, and the laboratory space tenants of a building of the Project or of the Project. The Direct Expenses within each such Cost Pool shall be allocated and charged to the tenants within such Cost Pool in an equitable manner.

4.4 **Calculation and Payment of Additional Rent.** Tenant shall pay to Landlord, in the manner set forth in Section 4.4.1, below, and as Additional Rent, Tenant's Share of Direct Expenses for each Expense Year. Notwithstanding anything to the contrary contained in this Article 4, the aggregate “**Controllable Expenses**” (as defined in this Section 4.4, below) included in Direct Expenses in any Expense Year after the first (1<sup>st</sup>) Lease Year shall not increase by more than four percent (4%) on an annual, cumulative and compounded basis, over the actual aggregate Controllable Expenses included in Direct Expenses for the first (1<sup>st</sup>) Lease Year. For purposes of this Section 4.4, “**Controllable Expenses**” shall mean all Direct Expenses except: (i) Tax Expenses, and any and all assessments, including assessment districts and government-mandated charges with respect to the Building or Project, or any part thereof; any rent tax or sales tax, gross receipts tax, service tax, transfer tax or value added tax, or any other applicable tax on the rent or services herein or otherwise respecting this Lease (ii) insurance carried by Landlord with respect to Project and/or the operation thereof; (iii) costs of utilities, including, without limitation, electricity, water, HVAC and sewer charges, utility surcharges and assessments, and refuse removal; (iv) Permitted Capital Expenses; (v) the cost of union labor (including janitorial staff and security personnel), including labor which is not union as of the date of this Lease but which unionizes after the date of this Lease, and increases in wages, salaries and other compensation and benefits paid to Landlord's contractors engaged in the operation, management, maintenance or security of the Building or Project, to the extent such increases are due to increases in the applicable minimum wage legally required to be paid to such personnel, (vi) payments made pursuant to Underlying Documents; (vii) costs to comply with Applicable Laws and other governmental requirements first enacted or made applicable to the Building after the Lease Commencement Date, and (viii) costs relating to Force Majeure.

4.4.1 **Statement of Actual Direct Expenses and Payment by Tenant.** Landlord shall give to Tenant within one hundred eighty (180) days following the end of each Expense Year, a statement (the “**Statement**”) prepared on a line-item by line-item basis as to general categories, which shall state in general major categories the Direct Expenses incurred or accrued for the preceding Expense Year, and which shall indicate the amount of Tenant's Share of Direct Expenses. Upon receipt of the Statement for each Expense Year commencing or ending during the Lease Term, Tenant shall pay, within thirty (30) days, the full amount of Tenant's Share of Direct Expenses for such Expense Year, less the amounts, if any, paid during such Expense Year as “**Estimated Direct Expenses**,” as that term is defined in Section 4.4.2, below, and if Tenant paid more as Estimated Direct Expenses than the actual Tenant's Share of Direct Expenses, Tenant shall receive a credit in the amount of Tenant's overpayment against Rent next due under this Lease. The failure of Landlord to timely furnish the Statement for any Expense Year shall not prejudice

Landlord or Tenant from enforcing its rights under this Article 4. Even though the Lease Term has expired and Tenant has vacated the Premises, when the final determination is made of Tenant's Share of Direct Expenses for the Expense Year in which this Lease terminates, Tenant shall pay, within thirty (30) days, to Landlord such amount, and if Tenant paid more as Estimated Direct Expenses than the actual Tenant's Share of Direct Expenses, Landlord shall apply such overpayment against any unpaid Rent, and within thirty (30) days, deliver a check payable to Tenant in the amount of any remaining overpayment.

4.4.2 **Statement of Estimated Direct Expenses.** In addition, Landlord shall give Tenant a yearly expense estimate statement (the "**Estimate Statement**"), on or before May 31 of the then-current Expense Year, which shall set forth Landlord's reasonable estimate (the "**Estimate**") of what the total amount of Direct Expenses for the then-current Expense Year shall be and the estimated Tenant's Share of Direct Expenses (the "**Estimated Direct Expenses**"). The failure of Landlord to timely furnish the Estimate Statement for any Expense Year shall not preclude Landlord from enforcing its rights to collect any Estimated Direct Expenses under this Article 4, nor shall Landlord be prohibited from revising any Estimate Statement or Estimated Direct Expenses theretofore delivered to the extent deemed reasonably necessary by Landlord; provided, however, that (i) Landlord shall not revise the Estimate Statement delivered for an Expense Year more than once during an Expense Year, and (ii) any such subsequent revision shall set forth on a reasonably specific basis any particular expense increase. Thereafter, Tenant shall pay, within thirty (30) days after receipt of the Estimate Statement, a fraction of the Estimated Direct Expenses for the then-current Expense Year (reduced by any amounts paid pursuant to the second to last sentence of this Section 4.4.2). Such fraction shall have as its numerator the number of months which have elapsed in such current Expense Year, including the month of such payment, and twelve (12) as its denominator. Until a new Estimate Statement is furnished (which Landlord shall have the right to deliver to Tenant at any time), Tenant shall pay monthly, with the monthly Base Rent installments, an amount equal to one-twelfth (1/12) of the total Estimated Direct Expenses set forth in the previous Estimate Statement delivered by Landlord to Tenant. Throughout the Lease Term, Landlord shall maintain records with respect to Direct Expenses in accordance with sound real estate management and accounting practices.

4.5 **Taxes and Other Charges for Which Tenant Is Directly Responsible.** Tenant shall be liable for and shall pay prior to delinquency, taxes levied against Tenant's equipment, furniture, fixtures and any other personal property located in or about the Premises. If any such taxes on Tenant's equipment, furniture, fixtures and any other personal property are levied against Landlord or Landlord's property or if the assessed value of Landlord's property is increased by the inclusion therein of a value placed upon such equipment, furniture, fixtures or any other personal property and if Landlord pays the taxes based upon such increased assessment, which Landlord shall have the right to do regardless of the validity thereof but only under proper protest if requested by Tenant, Tenant shall pay within ten (10) business days of invoicing to Landlord the taxes so levied against Landlord or the proportion of such taxes resulting from such increase in the assessment, as the case may be. If the tenant improvements in the Premises, whether installed and/or paid for by Landlord or Tenant and whether or not affixed to the real property so as to become a part thereof, are assessed for real property tax purposes at a valuation higher than the valuation at which tenant improvements conforming to Landlord's "building standard" in other space in the Building are assessed, then the Tax Expenses levied against Landlord or the property by reason of such excess assessed valuation shall be deemed to be taxes levied against personal property of Tenant and shall be governed by the provisions of Section 4.5, above, provided that the above "**building standard**" charges payable by Tenant as set forth herein shall only be due to the extent Landlord charges all other life science tenants of the Building for overstandard tenant improvements (to the extent such charges are applicable).

4.6 **Landlord's Books and Records.** Upon Tenant's written request given not more than ninety (90) days after Tenant's receipt of a Statement for a particular Expense Year, and provided that no Event of Default is then occurring under this Lease, Landlord shall furnish Tenant with such reasonable supporting documentation as Tenant may reasonably request in connection with the calculation of Direct Expenses as set forth in such Statement. Landlord shall provide said documentation to Tenant within sixty (60) days after Tenant's written request therefor. Within one hundred eighty (180) days after Tenant's receipt of a Statement for a particular Expense Year (the "**Audit Period**"), if Tenant disputes the calculation of Direct Expenses set forth in such Statement, an independent certified public accountant designated and paid for by Tenant ("**Tenant's Accountant**"), may after reasonable notice to Landlord and at reasonable times, audit Landlord's records with respect to the Statement, provided that (i) no Event of Default is then occurring under this Lease, (ii) Tenant has paid all amounts required to be paid under the applicable Estimate

Statement and Statement. Tenant's Accountant must (A) be a member of a nationally or regionally recognized certified public accounting firm which has previous experience in auditing financial operating records of landlords of comparable projects, (B) not already be providing accounting and/or lease administration services to Tenant or Landlord and shall not have provided accounting and/or lease administration services to Tenant or Landlord in the past three (3) years, and (C) not be retained on a contingency fee basis (i.e., Tenant must be billed based on the actual time and materials that are incurred by Tenant's Accountant in the performance of the audit). In connection with such audit, Tenant and Tenant's Accountant must agree in advance to follow Landlord's reasonable rules and procedures regarding an audit of the aforementioned Landlord records, and shall execute a commercially reasonable confidentiality agreement regarding such audit. Any audit report prepared by Tenant's Accountant shall be delivered concurrently to Landlord and Tenant as soon as reasonably practicable following the completion thereof. Tenant's failure to audit the Direct Expenses set forth in any Statement within the Audit Period shall be deemed to be Tenant's approval of such Statement and Tenant, thereafter, waives the right or ability to dispute the amounts set forth in such Statement. If after such audit, Tenant still disputes such Direct Expenses, a determination as to the proper amount shall be made, at Tenant's expense, by an independent certified public accountant (the "**Neutral Accountant**") selected by Landlord and subject to Tenant's reasonable approval; provided that if such determination by the Neutral Accountant proves that the Direct Expenses in the subject Expense Year were overstated by more than five percent (5%), then the out of pocket cost of the Neutral Accountant and the out-of-pocket cost of Tenant's Accountant shall be paid for by Landlord. Tenant's sole right to audit Landlord's books and records and to contest the amount of Direct Expenses with respect to any Expense Year shall be as expressly set forth in this Section 4.6, and Tenant hereby waives any and all other rights pursuant to Applicable Laws to audit such books and records and/or to contest the amount of Direct Expenses with respect to any Expense Year.

## 5. USE OF PREMISES

5.1 **Permitted Use.** Tenant shall use the Premises solely for the Permitted Use set forth in Section 7 of the Summary and Tenant shall not use or permit the Premises to be used for any other purpose or purposes whatsoever without the prior written consent of Landlord, which may be withheld in Landlord's sole and absolute discretion.

5.2 **Prohibited Uses.** Tenant further covenants and agrees that Tenant shall not use, or suffer or permit any person or persons to use, the Premises or any part thereof for any use or purpose in violation of the laws of the United States of America, the State of California, or the ordinances, regulations or requirements of the local municipal or county governing body or other lawful authorities having jurisdiction over the Project) including, without limitation, any such laws, ordinances, regulations or requirements relating to hazardous materials or substances, as those terms are defined by Applicable Laws now or hereafter in effect, or any Underlying Documents. Landlord shall have the right to impose reasonable and customary rule and regulations regarding the use of the Project, as reasonably deemed necessary by Landlord with respect to the orderly operation of the Project, and Tenant shall comply with such reasonable rules and regulations. Tenant shall not do or permit anything to be done in or about the Premises which will in any way materially obstruct or unreasonably interfere with the rights of other tenants or occupants of the Building, or injure them or use or allow the Premises to be used for any unlawful purpose, nor shall Tenant cause, maintain or permit any nuisance in, on or about the Premises. Tenant shall comply with, and Tenant's rights and obligations under the Lease and Tenant's use of the Premises shall be subject and subordinate to, all recorded easements, covenants, conditions, and restrictions now or hereafter affecting the Project; provided, however, any Underlying Documents first affecting the Project after the date of this Lease shall not materially increase Tenant's monetary obligations or materially decrease Tenant's rights pursuant to this Lease.

### 5.3 **Hazardous Materials.**

#### 5.3.1 **Tenant's Obligations.**

5.3.1.1 **Prohibitions.** As a material inducement to Landlord to enter into this Lease with Tenant, Tenant has fully and accurately completed the Hazardous Materials Inventory Statement (the "**HMIS**"), which is attached as **Exhibit E**. Tenant agrees that except for chemicals or materials, and their respective quantities, specifically listed on the HMIS, neither Tenant nor Tenant's employees, contractors and subcontractors of any tier, entities with a contractual relationship with Tenant (other than Landlord), or any entity acting as an agent or sub-agent of Tenant (collectively, "**Tenant's Agents**") will produce, use, store or generate any "Hazardous Materials," as that

term is defined below, on, under or about the Premises, nor cause or permit any Hazardous Material to be brought upon, placed, stored, manufactured, generated, blended, handled, recycled, used or "Released," as that term is defined below, on, in, under or about the Premises in violation of applicable Environmental Laws. If any information provided to Landlord by Tenant on the HMIS, or otherwise relating to information concerning Hazardous Materials is false or misleading in any material and adverse respect, the same shall be deemed an Event of Default by Tenant under this Lease. Landlord's prior written consent shall be required to any Hazardous Materials use for the Premises not described on the initial HMIS, such consent to be withheld in Landlord's sole discretion; provided that if the proposed Hazardous Materials are similar to the Hazardous Materials listed on the initial HMIS in terms of their hazardous character, handling profile, usage and quantity, and provided such Hazardous Materials and any residues are managed on accordance with Environmental laws, Landlord shall not unreasonably withhold, condition or delay its consent to Tenant's use of such Hazardous Materials. Tenant shall not install or permit any underground storage tank on the Premises. For purposes of this Lease, "**Hazardous Materials**" means all flammable explosives, petroleum and petroleum products, waste oil, radon, radioactive materials, toxic pollutants, asbestos, polychlorinated biphenyls ("**PCBs**"), medical waste, chemicals known to cause cancer or reproductive toxicity, pollutants, contaminants, hazardous wastes, toxic substances or related materials, including without limitation any chemical, element, compound, mixture, solution, substance, object, waste or any combination thereof, which is or may be hazardous to human health, safety or to the environment due to its radioactivity, ignitability, corrosiveness, reactivity, explosiveness, toxicity, carcinogenicity, infectiousness or other harmful or potentially harmful properties or effects, or defined as, regulated as or included in, the definition of "hazardous substances," "hazardous wastes," "hazardous materials," or "toxic substances" under any Environmental Laws. The term "Hazardous Materials" for purposes of this Lease shall also include any mold, fungus or spores, whether or not the same is defined, listed, or otherwise classified as a "hazardous material" under any Environmental Laws, if such mold, fungus or spores would pose a risk to human health or the environment or negatively impact the value of the Premises. For purposes of this Lease, "**Release**" or "**Released**" or "**Releases**" shall mean any release, deposit, discharge, emission, leaking, spilling, seeping, migrating, injecting, pumping, pouring, emptying, escaping, dumping, disposing, or other movement of Hazardous Materials into the environment in violation of Applicable Laws. Notwithstanding anything to the contrary set forth in this Lease, Tenant shall be permitted to use cleaning solvents, toner, and other items customarily used in an office setting without Landlord's prior consent.

5.3.1.2 **Notices to Landlord**. Landlord or Tenant shall notify the other in writing as soon as possible but in no event later than five (5) days after (i) such party's actual knowledge of the occurrence of any actual, alleged or threatened Release of any Hazardous Material in, on, under, from, about or in the vicinity of the Premises (whether past or present), regardless of the source or quantity of any such Release, or (ii) Tenant becomes aware of any regulatory actions, inquiries, inspections, investigations, directives, or any cleanup, compliance, enforcement or abatement proceedings (including any threatened or contemplated investigations or proceedings) relating to or potentially affecting the Premises with respect to any Release, or (iii) such party becomes aware of any claims by any person or entity relating to any Hazardous Materials in, on, under, from, about or in the vicinity of the Premises, whether relating to damage, contribution, cost recovery, compensation, loss or injury. Collectively, the matters set forth in clauses (i), (ii) and (iii) above are hereinafter referred to as "**Hazardous Materials Claims**." Tenant and Landlord shall promptly forward to the other copies of all orders, notices, permits, applications and other communications and reports in connection with any Hazardous Materials Claims. Additionally, Tenant shall promptly advise Landlord in writing of Tenant's actual discovery of any occurrence or condition on, in, under or about the Premises that could subject Tenant or Landlord to any liability, or restrictions on ownership, occupancy, transferability or use of the Premises under any "Environmental Laws," as that term is defined below. Tenant shall not enter into any legal proceeding or other action, settlement, consent decree or other compromise with respect to any Hazardous Materials Claims without first notifying Landlord of Tenant's intention to do so and affording Landlord the opportunity to join and participate, as a party if Landlord so elects, in such proceedings and in no event shall Tenant enter into any agreements which are binding on Landlord or the Premises without Landlord's prior written consent. Landlord shall have the right to appear at and participate in, any and all legal or other administrative proceedings concerning any Hazardous Materials Claim. For purposes of this Lease, "**Environmental Laws**" means all applicable present and future laws relating to the protection of human health, safety, wildlife or the environment, including, without limitation, (i) all requirements pertaining to Hazardous Materials and their effect on reporting, licensing, permitting, investigation and/or remediation of emissions, discharges, Releases, or threatened Releases of Hazardous Materials, whether solid, liquid, or gaseous in nature, into the air, surface water, groundwater, or land, or relating to the manufacture, processing, distribution, use, treatment, storage, disposal, transport, or handling of Hazardous

Materials; and (ii) all requirements pertaining to the health and safety of employees or the public. Environmental Laws include, but are not limited to, the Comprehensive Environmental Response, Compensation and Liability Act of 1980, 42 USC § 9601, et seq., the Hazardous Materials Transportation Authorization Act of 1994, 49 USC § 5101, et seq., the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act of 1976, and Hazardous and Solid Waste Amendments of 1984, 42 USC § 6901, et seq., the Federal Water Pollution Control Act, as amended by the Clean Water Act of 1977, 33 USC § 1251, et seq., the Clean Air Act of 1966, 42 USC § 7401, et seq., the Toxic Substances Control Act of 1976, 15 USC § 2601, et seq., the Safe Drinking Water Act of 1974, 42 USC §§ 300f through 300j, the Occupational Safety and Health Act of 1970, as amended, 29 USC § 651 et seq., the Oil Pollution Act of 1990, 33 USC § 2701 et seq., the Emergency Planning and Community Right-To-Know Act of 1986, 42 USC § 11001 et seq., the National Environmental Policy Act of 1969, 42 USC § 4321 et seq., the Federal Insecticide, Fungicide and Rodenticide Act of 1947, 7 USC § 136 et seq., California Carpenter-Presley-Tanner Hazardous Substance Account Act, California Health & Safety Code §§ 25300 et seq., Hazardous Materials Release Response Plans and Inventory Act, California Health & Safety Code, §§ 25500 et seq., Underground Storage of Hazardous Substances provisions, California Health & Safety Code, §§ 25280 et seq., California Hazardous Waste Control Law, California Health & Safety Code, §§ 25100 et seq., and any other state or local law counterparts, as amended, as such Applicable Laws, are in effect as of the Lease Commencement Date, or thereafter adopted, published, or promulgated.

**5.3.1.3 Releases of Hazardous Materials.** If any Release of any Hazardous Material in, on, under, from or about the Premises for which Tenant is responsible shall occur at any time during the Lease Term and/or if any other Hazardous Material condition for which Tenant is responsible exists at the Premises that requires response actions of any kind, in addition to notifying Landlord as specified above, Tenant, at its own sole cost and expense, shall (i) immediately comply with any and all reporting requirements imposed pursuant to any and all Environmental Laws, (ii) provide a written certification to Landlord indicating that Tenant has complied with all applicable reporting requirements, (iii) take any and all necessary and commercially reasonable investigation, corrective and remedial action in accordance with any and all applicable Environmental Laws, utilizing an environmental consultant reasonably approved by Landlord, all in accordance with the provisions and requirements of this Section 5.3, including, without limitation, Section 5.3.4, and (iv) take any such additional investigative, remedial and corrective actions as Landlord shall in its reasonable discretion deem necessary such that the Premises are remediated to the condition existing prior to such Release.

**5.3.1.4 Indemnification.**

**5.3.1.4.1 In General.** Without limiting in any way Tenant's obligations under any other provision of this Lease, Tenant shall be solely responsible for and shall protect, defend, indemnify and hold the Landlord Parties harmless from and against any and all Losses (including, without limitation, penalties, enforcement actions, fines, remedial actions, litigation, arbitration and administrative proceeding costs, reasonable expert and consultant fees and actual laboratory costs) including, without limitation, consequential damages and sums paid in settlement of claims, which arise during or after the Lease Term, whether foreseeable or unforeseeable, that arise during or after the Lease Term in whole or in part, foreseeable or unforeseeable, directly or indirectly arising out of or attributable to the presence, use, generation, manufacture, treatment, handling, refining, production, processing, storage, Release or presence of Hazardous Materials in, on, under or about the Premises by Tenant or Tenant's Agents, except to the extent such liabilities result from the negligence or willful misconduct of Landlord or any Landlord Parties following the Lease Commencement Date..

**5.3.1.4.2 Limitations.** Notwithstanding anything in Section 5.3.1.4, above, to the contrary, Tenant shall not be liable for, and Tenant's indemnity of Landlord as set forth in Section 5.3.1.4, above, shall not be applicable to claims based upon Hazardous Materials which may exist in, on or about the Premises as of the Effective Date of this Lease or which are brought into the Building or onto the Project after the date hereof by Landlord or any other tenant of the Project or any third party ("**Existing Hazardous Materials**"), except to the extent that Tenant's construction activities and/or Tenant's other acts or omissions directly caused or knowingly exacerbated the subject claim.

**5.3.1.5 Compliance with Environmental Laws.** Without limiting the generality of Tenant's obligation to comply with Applicable Laws as otherwise provided in this Lease, Tenant shall, at its sole cost

and expense, comply with all Environmental Laws applicable to its use of the Premises; provided however that Tenant shall not be liable to Landlord for or obligated to remove or remediate any Existing Hazardous Materials. Tenant shall obtain and maintain any and all necessary permits, licenses, certifications and approvals appropriate or required for the use, handling, storage, and disposal of any Hazardous Materials used, stored, generated, transported, handled, blended, or recycled by Tenant on the Premises. Landlord shall have a continuing right, without obligation, to require Tenant to obtain, and to review and inspect any and all such permits, licenses, certifications and approvals, together with copies of any and all Hazardous Materials management plans and programs, any and all Hazardous Materials risk management and pollution prevention programs, and any and all Hazardous Materials emergency response and employee training programs respecting Tenant's use of Hazardous Materials. Upon request of Landlord, Tenant shall deliver to Landlord a narrative description explaining the nature and scope of Tenant's activities involving Hazardous Materials and showing to Landlord's satisfaction compliance with all Environmental Laws and the terms of this Lease. Tenant may condition disclosure of the foregoing items to Landlord's signature on a commercially reasonable non-disclosure agreement.

### 5.3.2 **Assurance of Performance.**

5.3.2.1 **Environmental Assessments In General.** Landlord may, but shall not be required to, engage from time to time such contractors as Landlord determines to be appropriate to perform environmental assessments of a scope reasonably determined by Landlord (an "**Environmental Assessment**"), which assessments will be performed by a competent and experienced environmental engineer, to ensure Tenant's compliance with the requirements of this Lease with respect to Hazardous Materials.

5.3.2.2 **Costs of Environmental Assessments.** All costs and expenses incurred by Landlord in connection with any such Environmental Assessment initially shall be paid by Landlord; provided that if any such Environmental Assessment shows that Tenant has failed to comply with the provisions of this **Section 5.3**, then all of the costs and expenses of such Environmental Assessment shall be reimbursed by Tenant as Additional Rent within ten (10) days after receipt of written demand therefor.

5.3.3 **Tenant's Obligations upon Surrender.** At the expiration or earlier termination of the Lease Term, Tenant, at Tenant's sole cost and expense, shall: (i) cause an Environmental Assessment of the Premises to be conducted in accordance with **Section 15.3**; (ii) cause all Hazardous Materials Released by Tenant to be removed from the Premises and disposed of in accordance with all Environmental Laws and as necessary to allow the Premises to be used for any purpose; and (iii) cause to be removed all containers installed or used by Tenant or Tenant's Agents to store any Hazardous Materials on the Premises, and cause to be repaired any damage to the Premises caused by such removal.

### 5.3.4 **Clean-up.**

5.3.4.1 **Environmental Reports; Clean-Up.** If any written report, including any report containing results of any Environmental Assessment (an "**Environmental Report**") shall indicate (i) the presence of any Hazardous Materials as to which Tenant has a removal or remediation obligation under this **Section 5.3**, and (ii) that as a result of same, the investigation, characterization, monitoring, assessment, repair, closure, remediation, removal, or other clean-up (the "**Clean-up**") of any Hazardous Materials is required, Tenant shall prepare and submit to Landlord within thirty (30) days after receipt of the Environmental Report a comprehensive plan, subject to Landlord's reasonable written approval, specifying the actions to be taken by Tenant to perform the Clean-up so that the Premises are restored to the conditions required by this Lease. Upon Landlord's approval of the Clean-up plan, Tenant shall, at Tenant's sole cost and expense, without limitation on any rights and remedies of Landlord under this Lease, promptly implement such plan with a consultant reasonably acceptable to Landlord and proceed to Clean-Up Hazardous Materials in accordance with all Applicable Laws and as required by such plan and this Lease. If, within thirty (30) days after receiving a copy of such Environmental Report, Tenant fails either (a) to complete such Clean-up, or (b) with respect to any Clean-up that cannot be completed within such thirty-day period, fails to proceed with diligence to prepare the Clean-up plan and complete the Clean-up as promptly as practicable, then Landlord shall have the right, but not the obligation, and without waiving any other rights under this Lease, to carry out any Clean-up recommended by the Environmental Report or required by any governmental authority having jurisdiction over the

Premises, and recover all of the costs and expenses thereof from Tenant as Additional Rent, payable within ten (10) days after receipt of written demand therefor.

5.3.4.2 **No Rent Abatement.** Tenant shall continue to pay all Rent due or accruing under this Lease during any Clean-up of Hazardous Materials as to which Tenant has a removal or remediation obligation under this Section 5.3, of Hazardous Materials, and shall not be entitled to any reduction, offset or deferral of any Base Rent or Additional Rent due or accruing under this Lease during any such Clean-up. During the Clean-up of Existing Hazardous Materials as to which Landlord has a removal or remediation obligation under this Section 5.3, Landlord may temporarily close all or a portion of the Premises to facilitate the Clean-up, and the provisions regarding Rent abatement set forth in Section 19.5.2 shall apply thereto except that Tenant shall not be required to provide notice to Landlord and the applicable abatement shall commence on the first day that all or a portion of the Premises are closed.

5.3.4.3 **Surrender of Premises.** Tenant shall complete any Clean-up prior to surrender of the Premises upon the expiration or earlier termination of this Lease. Tenant shall obtain and deliver to Landlord a letter or other written determination from the overseeing governmental authority confirming that the Clean-up has been completed in accordance with all requirements of such governmental authority and that no further response action of any kind is required for the unrestricted use of the Premises (“**Closure Letter**”). Upon the expiration or earlier termination of this Lease, Tenant shall also be obligated to close all permits obtained in connection with Hazardous Materials in accordance with Applicable Laws.

5.3.4.4 **Failure to Timely Clean-Up.** Should any Clean-up for which Tenant is responsible not be completed, or should Tenant not receive the Closure Letter and any governmental approvals required under Environmental Laws in conjunction with such Clean-up prior to the expiration or earlier termination of this Lease, then Tenant shall be liable to Landlord as a holdover tenant (as more particularly provided in Article 16) until Tenant has fully complied with its obligations under this Section 5.3.

5.3.4.5 **Remediation of Hazardous Materials.** Landlord agrees to remediate or encapsulate, at no cost to Tenant (and not as an Operating Expense), any Hazardous Materials in the Project to the extent required under Applicable Laws (i) to the extent such removal or remediation is not Tenant’s responsibility pursuant to Section 5.3 above, and (ii) to the extent that Landlord’s failure to so remediate or encapsulate would be in violation of applicable law and would prevent Tenant from obtaining or maintaining a certificate of occupancy for the Premises, or would unreasonably and materially affect the safety of Tenant’s employees or create a material health hazard for Tenant’s employees, or would otherwise materially and adversely affect Tenant’s use of or access to the Premises. In the event any Clean-up is necessitated by any Existing Hazardous Materials or any Hazardous Materials at the Project for which Tenant is not responsible, such event will be treated as a casualty event pursuant to the terms of Article 11, below, to the extent Tenant’s use and occupancy of the Premises is affected.

5.3.5 **Confidentiality.** Unless compelled or required to do so by Applicable Law, Tenant agrees that Tenant shall not disclose, discuss, disseminate or copy any information, data, findings, communications, conclusions and reports regarding the environmental condition of the Premises to any Person (other than Tenant’s contractors, consultants, lenders, investors, attorneys, property managers and employees that have a legitimate business interest in such information), including any governmental authority, without the prior written consent of Landlord. In the event Tenant reasonably believes that disclosure is compelled by Applicable Law, it shall provide Landlord ten (10) days’ advance notice (unless disclosure is required sooner, in which case Tenant will provide as much notice as reasonable practicable given the situation) of disclosure of confidential information so that Landlord may attempt to obtain a protective order. Tenant may additionally release such information to bona fide prospective purchasers, investors or lenders, subject to any such parties’ written agreement to be bound by the terms of this Section 5.3.

5.3.6 **Copies of Environmental Reports.** Within thirty (30) days of receipt thereof, Tenant shall provide Landlord with a copy of any and all environmental assessments, audits, studies and reports regarding Tenant’s activities with respect to the Premises, or ground water beneath the Land, or the environmental condition or Clean-up thereof; provided that Tenant may redact any proprietary information from such materials.



5.3.7 **Signs, Response Plans, Etc.** Tenant shall be responsible for posting on the Premises any signs required under applicable Environmental Laws. Tenant shall also complete and file any business response plans or inventories required by any Applicable Laws. Tenant shall concurrently file a copy of any such business response plan or inventory with Landlord.

5.3.8 **Survival.** Each covenant, agreement, representation, warranty and indemnification made by each of Landlord and Tenant set forth in this Section 5.3 shall survive the expiration or earlier termination of this Lease and shall remain effective until all of Tenant's obligations under this Section 5.3 have been completely performed and satisfied.

## 6. SERVICES AND UTILITIES

6.1 **In General.** Landlord shall provide the following services on all days (unless otherwise stated below) during the Lease Term.

6.1.1 Subject to limitations imposed by all governmental rules, regulations and guidelines applicable thereto, Landlord shall provide heating, ventilation and air conditioning to the office portions of the Premises ("HVAC") when necessary for normal comfort for normal office use in the Premises from 7:00 A.M. to 7:00 P.M. Monday through Friday (collectively, the "**Building Hours**"), except for the date of observation of New Year's Day, President's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day and other locally and nationally recognized holidays (collectively, the "**Holidays**"). HVAC to the lab portion of the Premises will be provided 24 hours per day, 7 days per week.

6.1.2 Landlord shall provide electricity to the Premises in the amount of thirty (30) watts per usable square foot of the Premises (which includes the amount of electricity used by existing Building Systems servicing the Premises). Tenant will design Tenant's electrical system serving any equipment producing nonlinear electrical loads to accommodate such nonlinear electrical loads, including, but not limited to, oversizing neutral conductors, derating transformers and/or providing power-line filters. Engineering plans shall include a calculation of Tenant's fully connected electrical design load with and without demand factors and shall indicate the number of watts of unmetered and submetered loads. Tenant shall bear the cost of replacement of lamps, starters and ballasts for non-Building standard lighting fixtures within the Premises. If electricity is separately sub-metered, then Tenant shall pay to Landlord the cost of such utilities based on such sub-meter, and reimbursement for any penalties for usage or other surcharges imposed by any utility company. If electricity is not separately sub-metered, then the cost of electricity used by Tenant in the Premises shall be equitably allocated by Landlord on a basis consistent with commercial reasonable property management practices. Within twenty (20) days after receipt of Landlord's statement of apportionment or statement setting forth the charges payable by Tenant, Tenant shall pay to Landlord, as Additional Rent (and not as a Direct Expense), the cost of such electrical services so apportioned or so provided by Landlord. Notwithstanding anything to the contrary set forth herein, to the extent the Premises generates electricity demand on a shared resource (e.g. electricity for the central plant), the cost of such electricity shall be allocated to Tenant on a pro rata basis or other reasonable basis consistent with commercial reasonable property management practices.

6.1.3 Landlord shall provide city water from the regular Building outlets for drinking, kitchen, lavatory and toilet purposes in the Building Common Areas and the Premises.

6.1.4 Landlord shall provide nonexclusive, non-attended automatic passenger elevator service during the Building Hours, shall have one elevator available at all other times, including on the Holidays, except in the event of emergency.

6.1.5 Landlord shall not provide janitorial services for the Premises. Tenant shall be solely responsible for performing all janitorial services and other cleaning of the Premises, all in compliance with Applicable Laws. The janitorial and cleaning of the Premises shall be adequate to maintain the Premises in a manner consistent with First Class Life Sciences Projects.

6.1.6 Landlord shall provide janitorial services for the Common Areas in a manner consistent with First Class Life Sciences Projects.

6.1.7 Tenant may, at its own expense, install its own security system (“**Tenant’s Security System**”) in the Premises; provided, however, that Tenant shall coordinate the installation and operation of Tenant’s Security System with Landlord to assure that Tenant’s Security System is compatible with Landlord’s security system and the Building systems and equipment, and to the extent that Tenant’s Security System is not compatible with Landlord’s security system and the Building systems and equipment, Tenant shall not be entitled to install or operate the Tenant’s Security System. Tenant shall be solely responsible, at Tenant’s sole cost and expense, for the installation, monitoring, operation and removal of Tenant’s Security System. Tenant’s Security System shall be installed by Tenant in accordance with terms of Article 8 of this Lease.

6.1.8 If Tenant desires to use HVAC during hours other than those for which Landlord is obligated to supply such utilities pursuant to the terms of Section 6.1.1 of this Lease, Tenant shall give Landlord such prior notice, if any, as Landlord shall from time to time reasonably establish as appropriate, of Tenant’s desired use in order to supply such HVAC, and Landlord shall supply such heat, ventilation or air conditioning to Tenant at such hourly cost to Tenant as Landlord shall reasonably determine for the Building.

6.1.9 Landlord shall provide reasonable access-control services for the Building and in the Building parking facility in a manner materially consistent with the services provided by Landlord as of the date of this Lease. Notwithstanding the foregoing, Landlord shall in no case be liable for personal injury or property damage for any error with regard to the admission to or exclusion from the Building or Project of any person unless caused by the gross negligence of Landlord or any Landlord Party. Subject to applicable laws and the other provisions of this Lease, and except in the event of an emergency, Tenant shall have access to the Building, the Premises and the common areas of the Building, other than common areas requiring access with a Building engineer, twenty-four (24) hours per day, seven (7) days per week, every day of the year; provided, however, that Tenant shall only be permitted to have access to and use of the parking garage, freight elevator, loading dock, mailroom and other limited-access areas of the Building during the normal operating hours of such portions of the Building.

6.2 **Interruption of Use.** Tenant agrees that, except as provided below, Landlord shall not be liable for damages, by abatement of Rent (except as specifically set forth in Section 19.5.2 of this Lease) or otherwise, for failure to furnish or delay in furnishing any service (including telephone and telecommunication services), or for any diminution in the quality or quantity thereof, (including, without limitation, when such failure, delay or diminution is occasioned, in whole or in part, by breakage, repairs, replacements, or improvements, by any strike, lockout or other labor trouble, by inability to secure electricity, gas, water, or other fuel at the Building or Project after reasonable diligent effort to do so, by any riot or other dangerous condition, emergency or Casualty (as that term is defined in Section 11.1 below) whatsoever, by act or default of Tenant or other parties, or by any other cause beyond Landlord’s reasonable control (provided that the foregoing shall not limit Landlord’s liability, if any, pursuant to applicable law for personal injury and property damage to the extent caused by the gross negligence or willful misconduct of Landlord, its agents, employees or contractors); and such failures, delays or diminution shall never be deemed to constitute an eviction or disturbance of Tenant’s use and possession of the Premises or relieve Tenant from paying Rent (except as specifically set forth in Section 19.5.2 of this Lease) or performing any of its obligations under this Lease. Furthermore, Landlord shall not be liable under any circumstances for a loss of, or injury to, property or for injury to, or interference with, Tenant’s business, including, without limitation, loss of profits, however occurring, through or in connection with or incidental to a failure to furnish any of the services or utilities as set forth in this Article 6, provided that the foregoing shall not limit Landlord’s liability, if any, pursuant to applicable law for personal injury and property damage to the extent caused by the gross negligence or willful misconduct of Landlord, its agents, employees or contractors.

6.3 **Energy Performance Disclosure Information.** Tenant hereby acknowledges that Landlord may be required to disclose certain information concerning the energy performance of the Building pursuant to California Public Resources Code Section 25402.10 and the regulations adopted pursuant thereto (collectively the “**Energy Disclosure Requirements**”). Tenant hereby acknowledges prior receipt of the Data Verification Checklist, as defined in the Energy Disclosure Requirements (the “**Energy Disclosure Information**”), and agrees that Landlord has timely complied in full with Landlord’s obligations under the Energy Disclosure Requirements. Tenant acknowledges and agrees that (i) Landlord makes no representation or warranty regarding the energy performance of the Building or the accuracy or completeness of the Energy Disclosure Information, (ii) the Energy Disclosure Information is for the current occupancy and use of the Building and that the energy performance of the Building may vary depending on

future occupancy and/or use of the Building, and (iii) Landlord shall have no liability to Tenant for any errors or omissions in the Energy Disclosure Information. If and to the extent not prohibited by Applicable Laws, Tenant hereby waives any right Tenant may have to receive the Energy Disclosure Information, including, without limitation, any right Tenant may have to terminate this Lease as a result of Landlord's failure to disclose such information. Further, Tenant hereby releases Landlord from any and all losses, costs, damages, expenses and/or liabilities relating to, arising out of and/or resulting from the Energy Disclosure Requirements, including, without limitation, any liabilities arising as a result of Landlord's failure to disclose the Energy Disclosure Information to Tenant prior to the execution of this Lease. Tenant's acknowledgment of the AS-IS condition of the Premises pursuant to the terms of this Lease shall be deemed to include the energy performance of the Building. Tenant further acknowledges that pursuant to the Energy Disclosure Requirements, Landlord may be required in the future to disclose information concerning Tenant's energy usage to certain third parties, including, without limitation, prospective purchasers, lenders and tenants of the Building (the "**Tenant Energy Use Disclosure**"). Tenant hereby (A) consents to all such Tenant Energy Use Disclosures made in compliance with Applicable Laws, and (B) acknowledges that Landlord shall not be required to notify Tenant of any Tenant Energy Use Disclosure. Further, Tenant hereby releases Landlord from any and all losses, costs, damages, expenses and liabilities relating to, arising out of and/or resulting from any Tenant Energy Use Disclosure. The terms of this Section 6.3 shall survive the expiration or earlier termination of this Lease.

6.4 **Access.** Subject to compliance with Landlord's access control procedures and Applicable Laws, and except when and where Tenant's right of access is specifically restricted or limited in this Lease, Tenant shall have the right of access to the Premises twenty-four (24) hours per day, seven (7) days per week during the Lease Term.

6.5 **Emergency Generator.** Landlord and Tenant hereby acknowledge that there is an existing generator currently serving the Premises ("**Emergency Generator**"), and Tenant shall have the right to connect to the Emergency Generator for electricity in amount not to exceed five (5) watts per usable square foot of the Premises. Tenant's use of the Emergency Generator shall be at Tenant's sole risk. During the Lease Term Landlord shall maintain the Emergency Generator in accordance with the manufacturer's recommendations and Tenant shall be responsible for a share of the costs of such maintenance and repair based on Tenant's Share. Tenant hereby waives any claims against Landlord or any Landlord Parties resulting from Tenant's use of the Emergency Generator, or any failure of the Emergency Generator to operate as designed, and agrees that Landlord shall not be liable for any damages resulting from any failure in operation of the Emergency Generator, including, without limitation any injury or damage to, or interference with, Tenant's business, including but not limited to, loss of profits, loss of rents or other revenues, loss of business opportunity, loss of goodwill or loss of use, or loss to equipment, inventory, scientific research, scientific experiments, laboratory animals, products, specimens, samples, and/or scientific, business, accounting and other records of every kind and description kept at the Premises and any and all income derived or derivable therefrom, provided that the foregoing shall not limit Landlord's liability, if any, pursuant to Applicable Laws for personal injury and property damage to the extent caused by the gross negligence or willful misconduct of Landlord, its agents, employees or contractors or forgive Landlord from its obligations to repair and maintain the Emergency Generator as provided in this Lease. Tenant acknowledges that Operating Expenses shall include Landlord's costs incurred in maintaining and operating the Emergency Generator (including all permit costs and fees).

## 7. REPAIRS

7.1 **Tenant Repair Obligations.** Tenant shall, at Tenant's own expense, keep the interior, non-structural portions of the Premises, including all improvements, fixtures and furnishings therein, and the floor coverings within the Premises, in good order, repair and condition at all times during the Lease Term. In addition, Tenant shall, at Tenant's own expense, subject to the prior reasonable approval of Landlord, and within any reasonable period of time specified by Landlord, promptly and adequately repair all damage to the Premises and replace or repair all damaged, broken, or worn fixtures and appurtenances, except for damage caused by ordinary wear and tear or beyond the reasonable control of Tenant; provided however, that, if Tenant fails to make such repairs, after notice and a reasonable cure period, Landlord may, at Landlord's option, but not the obligation, to make such repairs and replacements, and Tenant shall pay to Landlord the actual out of pocket cost thereof, including a reasonable percentage of the cost thereof (to be uniformly established for the Building and/or the Project) to reimburse Landlord for all overhead, general conditions, fees and other costs or expenses arising from Landlord's involvement with such repairs and replacements forthwith upon being billed for same. In the event Landlord does not elect to make such repairs and replacements, then such repairs shall be performed by a contractor (and subcontractors, as necessary) retained by

Tenant and reasonably approved by Landlord. Such contractor(s) shall follow Landlord's reasonable and non-discriminatory construction administration procedures and utilize the standard specifications and details for the Building, all as promulgated by Landlord from time to time. Landlord may, but shall not be required to, enter the Premises pursuant to the terms of Article 27, below, to make such repairs, alterations, improvements or additions to the Premises or to the Project or to any equipment located in the Project as Landlord shall desire or deem necessary or as Landlord may be required to do by governmental or quasi-governmental authority or court order or decree. Tenant hereby waives any and all rights under and benefits of subsection 1 of Section 1932 and Sections 1941 and 1942 of the California Civil Code or under any similar law, statute, or ordinance now or hereafter in effect.

**7.2 Landlord Repair Obligations.** Landlord shall maintain and repair the Common Areas of the Project and such costs shall be included in Operating Expenses to the extent permitted in Section 4 above. Landlord shall be responsible for the maintenance, repair and replacement as necessary to the exterior walls, exterior doors and windows and waterproofing of the Building envelope, foundation, subflooring, and roof (including the roof membrane and covering materials, gutters, flashings, and downspouts) of the Building, utility connections to the Building, the structural portions of the floors of the Building, plate glass and curtain walls, and water and sewer line from the point of origin to the Building (but not the distribute of the same within the Premises) (the "**Building Structure**"), and the base Building plumbing, sewer, drainage, electrical, fire protection, elevator, life safety, heating, ventilation and air-conditioning systems and any Landlord installed security systems and equipment (the "**Building Systems**" and together with the Building Structure, the "**Base Building**") of the Building; provided, however, that if such repairs are due to the negligence or willful misconduct of Tenant, Landlord shall nevertheless make such repairs at Tenant's expense, or, if covered by Landlord's insurance, Tenant shall only be obligated to pay any deductible in connection therewith. Landlord may, but shall not be required to, enter the Premises pursuant to the terms of Article 27, below, to make such repairs, alterations, improvements or additions to the Premises or to the Project or to any equipment located in the Project as Landlord shall deem necessary or as Landlord may be required to do by governmental or quasi-governmental authority or court order or decree; provided that Landlord shall use commercially reasonable efforts to minimize any disturbance of Tenant's use and occupancy of the Premises.. Tenant hereby waives any and all rights under and benefits of subsection 1 of Section 1932 and Sections 1941 and 1942 of the California Civil Code or under any similar law, statute, or ordinance now or hereafter in effect. Costs expended by Landlord in connection with the Landlord Repair Obligations shall be included in Operating Expenses to the extent allowed pursuant to the terms of Article 4, above. Landlord shall reasonably cooperate with Tenant to enforce any warranties that Landlord holds that could reduce Tenant's maintenance obligations under this Lease.

## **8. ADDITIONS AND ALTERATIONS**

**8.1 Landlord's Consent to Alterations.** Tenant may not make any improvements, alterations, additions or changes to the Premises or other portion of the Project, or any mechanical, plumbing or HVAC facilities or systems pertaining to the Premises or Project (collectively, the "**Alterations**") without the prior written consent of Landlord to such Alterations, which consent shall be requested by Tenant not less than thirty (30) days prior to the commencement thereof, and which consent shall not be unreasonably withheld, conditioned or delayed by Landlord, provided it shall be deemed reasonable for Landlord to withhold its consent to any Alteration which adversely affects the structural portions or the systems or equipment of the Building or is visible from the exterior of the Building. Notwithstanding the foregoing, Tenant shall be permitted to make Alterations following ten (10) business days' notice to Landlord, but without Landlord's prior consent, to the extent that such Alterations (i) do not affect the Building Structure or adversely affect the Building Systems or any Building equipment, (ii) are not visible from the exterior of the Building, and (iii) cost less than \$75,000.00 for a particular job of work ("**Cosmetic Alterations**"). The construction of the initial improvements to the Premises shall be governed by the terms of the Tenant Work Letter and not the terms of this Article 8.

**8.2 Manner of Construction.** Landlord may impose, as a condition to its consent to any and all Alterations, such reasonable requirements as Landlord in its reasonable discretion may deem desirable, including, but not limited to, the requirement that upon Landlord's request, Tenant shall, at Tenant's expense, remove such Alterations upon the expiration or any early termination of the Lease Term. Tenant shall be solely responsible for acquiring any required permit for all Alterations, furnishing of a copy of such permit and approvals to Landlord prior to the commencement of the work, and complying with all conditions of said permit in a prompt and expeditious manner. If such Alterations will involve the use of or disturb Hazardous Materials, Tenant shall notify Landlord prior to

performing such Alterations and comply with Landlord's rules and regulations concerning such Hazardous Materials. Tenant shall construct such Alterations and perform such repairs in a good and workmanlike manner, in conformance with any and all Applicable Laws. Tenant shall not use (and upon notice from Landlord shall cease using) contractors, services, workmen, labor, materials or equipment that, in Landlord's reasonable judgment, would disturb labor harmony with the workforce or trades engaged in performing other work, labor or services in or about the Project. In addition to Tenant's obligations under Article 9 of this Lease, upon completion of any Alterations, Tenant shall cause a Notice of Completion to be recorded in the office of the Recorder of the County of San Diego in accordance with Section 8182 of the Civil Code of the State of California or any successor statute. Tenant shall, promptly following the completion of any Alterations (including any Cosmetic Alterations), compile and deliver to Landlord a "close-out package" in such format designated by Landlord (e.g., paper and/or electronic files) containing, without limitation, the following items (to the extent deemed necessary by Landlord for the particular Alterations): (a) as-built drawings and final record CAD drawings, (b) warranties and guarantees from all contractors, subcontractors and material suppliers, (c) all permits, approvals and other documents issued by any governmental agency in connection with the Alterations, (d) an independent air balance report, if required due to the nature of the Alterations, (e) lien releases for all work performed at the Project, and (f) such other information or materials as may be reasonably requested by Landlord.

8.3 **Payment for Improvements.** Tenant shall also reimburse Landlord for Landlord's reasonable, out-of-pocket costs and expenses actually incurred in connection with Landlord's review of such Alterations (including, but not limited to, fees paid to consultants retained by Landlord to review plans and specifications for such Alterations).

8.4 **Construction Insurance.** In addition to the requirements of Article 10 of this Lease, in the event that Tenant makes any Alterations, prior to the commencement of such Alterations, Tenant shall provide Landlord with evidence that Tenant or its contractor carries "**Builder's Risk**" insurance in an amount reasonably approved by Landlord covering the construction of such Alterations, and such other insurance as Landlord may reasonably require, it being understood and agreed that all of such Alterations shall be insured by Tenant pursuant to Article 10 of this Lease immediately upon completion thereof. In addition, Tenant's contractors and subcontractors shall be required to carry (i) Commercial General Liability Insurance in an amount reasonably approved by Landlord, with Landlord, and, at Landlord's option, Landlord's property manager and project manager, as additional insureds in an amount approved by Landlord, and otherwise in accordance with the requirements of Article 10 of this Lease, and (ii) workers compensation insurance with a waiver of subrogation in favor of Landlord. Landlord may, in its reasonable discretion based on the anticipated cost of the Alteration and Tenant's then financial wherewithal, require Tenant to obtain a lien and completion bond or some alternate form of security satisfactory to Landlord in an amount sufficient to ensure the lien-free completion of such Alterations and naming Landlord as a co-obligee. For purposes of determining the cost of an Alteration, work done in phases or stages shall be considered part of the same Alteration, and any Alteration shall be deemed to include all trades and materials involved in accomplishing a particular result.

8.5 **Landlord's Property.** All Alterations, improvements, fixtures, equipment and/or appurtenances which may be installed or placed in or about the Premises, from time to time, shall be at the sole cost of Tenant and to the extent such items are permanently affixed to the Premises shall be and become the property of Landlord and remain in place at the Premises following the expiration or earlier termination of this Lease. Notwithstanding the foregoing, Landlord may, by written notice to Tenant prior to the end of the Lease Term, or given following any earlier termination of this Lease, require Tenant, at Tenant's expense, to remove any Alterations and/or improvements and/or systems and equipment within the Premises and to repair any damage to the Premises and Building caused by such removal and return the affected portion of the Premises to their condition existing prior to the installation of such Alterations; provided; however, that notwithstanding the foregoing, upon request by Tenant at the time of Tenant's request for Landlord's consent to any Alteration or improvement, Landlord shall notify Tenant whether the applicable Alteration or improvement will be required to be removed pursuant to the terms of this Section 8.5. If Tenant fails to complete any required removal and/or to repair any damage caused by the removal of any Alterations and/or improvements and/or systems and equipment in the Premises and return the affected portion of the Premises to their condition existing prior to the installation of such Alterations or improvements, prior to the expiration or earlier termination of this Lease, on five (5) days notice to Tenant, Landlord may do so and may charge the actual and reasonable cost thereof to Tenant. Notwithstanding anything to the contrary contained herein, nothing in this Lease is intended or will be construed to give Landlord any ownership interest in any equipment, including laboratory

equipment, or trade fixtures installed by Tenant, all of which may be removed by Tenant at the expiration or earlier termination of this Lease; provided Tenant will repair and damage caused by such removal. Tenant will not be required to remove or restore the initial Tenant Improvements constructed in accordance with the Tenant Work Letter.

8.6 **Labor Harmony.** Tenant shall not use (and upon notice from Landlord shall cease using) contractors, subcontractors, services, workmen, labor, materials or equipment that, in Landlord's reasonable judgment, would disturb labor harmony with the workforce or trades engaged in performing other work, labor or services in or about the Project, Building or the Common Areas and/or that otherwise results in picketing or other labor disturbances at the Project and/or on property adjacent thereto.

8.7 **Tenant's Property.** All trade fixtures and equipment, signs, appliances, furniture, and other personal property of whatever nature or kind owned, placed in or about the Premises at any time by Tenant (collectively, "**Tenant Property**"), shall remain Tenant's property, shall not become a part of the realty, and shall be removed by Tenant upon the expiration or earlier termination of this Lease in accordance with Section 15.2 below. Notwithstanding the foregoing, Tenant's Property shall not include HVAC units, wall carpeting, or floor coverings, all of which shall be considered part of the realty and surrendered with the Premises. In addition, upon the expiration or earlier termination of this Lease, to the extent necessary as determined by Tenant in its reasonable discretion, Landlord shall, upon reasonable notice from Tenant and at Landlord's sole cost and expense, create an opening in the Premises reasonably sufficient for Tenant to be able to remove the Tenant Property from the Premises.

9. **COVENANT AGAINST LIENS.** Tenant shall keep the Project and Premises free from any liens or encumbrances arising out of the work performed, materials furnished or obligations incurred by or on behalf of Tenant, and shall protect, defend, indemnify and hold Landlord harmless from and against any "Losses" (as defined in Section 10.1 below) arising out of same or in connection therewith. Tenant shall give Landlord notice at least twenty (20) days prior to the commencement of any work on the Premises which may give rise to a lien on the Premises, Building or Project (or such additional time as may be necessary under Applicable Laws) to afford Landlord the opportunity of posting and recording appropriate notices of non-responsibility (and Tenant shall, upon demand, reimburse Landlord for the costs and expenses incurred by Landlord in connection with preparing and recording any such notices of non-responsibility). Tenant shall remove any such lien or encumbrance by bond or otherwise within ten (10) business days after notice by Landlord, and if Tenant shall fail to do so, Landlord may pay the amount necessary to remove such lien or encumbrance, without being responsible for investigating the validity thereof. The amount so paid shall be deemed Additional Rent under this Lease payable upon demand (or, at Landlord's election, Landlord may deduct such amounts from any undisbursed improvement allowance or other allowance granted to Tenant under this Lease), without limitation as to other remedies available to Landlord under this Lease. Nothing contained in this Lease shall authorize Tenant to do any act which shall subject Landlord's title to the Building or Premises to any liens or encumbrances whether claimed by operation of law or express or implied contract. Any claim to a lien or encumbrance upon the Building or Premises arising in connection with any such work or respecting the Premises not performed by or at the request of Landlord shall be null and void, or at Landlord's option shall attach only against Tenant's interest in the Premises and shall in all respects be subordinate to Landlord's title to the Project, Building and Premises.

Landlord hereby acknowledges and agrees that any and all of Tenant's Property may be financed by a third-party lender or lessor (an "**Equipment Lienor**"), and Landlord hereby (a) subordinates any rights of Landlord to Tenant's Property to such Equipment Lienor, and (b) agrees to recognize the rights of any such Equipment Lienor, in each case subject to and in accordance with a commercially reasonable waiver agreement to be entered into by and between Landlord and the Equipment Lienor following request by Tenant, provided such waivers state that the rights of the Equipment Lienor do not attach to Landlord's interest in the Building.

## 10. **INSURANCE**

10.1 **Indemnification and Waiver.** Subject to the waiver of subrogation provisions set forth in Section 10.5, and except to the extent arising from the negligence or willful misconduct of Landlord or any Landlord Parties, as that term is defined below, Tenant hereby agrees that Landlord, its partners, subpartners and their respective officers, agents, servants, employees, lenders, any property manager and independent contractors (collectively, "**Landlord Parties**") shall not be liable to Tenant for, and are hereby released from any responsibility for, any damage

either to person or property or resulting from the loss of use thereof, which damage is sustained by Tenant or by other persons claiming through Tenant. Except to the extent arising from the negligence or willful misconduct of Landlord or the Landlord Parties, Tenant shall indemnify, defend, protect, and hold harmless the Landlord Parties from and against any and all claims, losses, out of pocket costs, damages, reasonable expenses, causes of action, proceedings, and liability (including without limitation court costs and reasonable attorneys' fees) (collectively, "**Losses**") incurred in connection with or arising from: (i) any causes in, on or about the Premises; and (ii) any negligence or willful misconduct of Tenant or of any person claiming under Tenant, its Transferees, or the contractors, agents, servants, employees, invitees, visitors, guests or licensees of Tenant or its Transferees or any such person, in, on or about the Project (collectively, "**Tenant Parties**"). Landlord shall indemnify, defend, protect, and hold harmless Tenant, its partners, and their respective officers, directors, agents, servants, employees, independent contractors, heirs, successors and assigns (collectively, "**Tenant Parties**") from any and all loss, cost, damage, expense and liability (including without limitation reasonable attorneys' fees) (a) arising from the gross negligence or willful misconduct of Landlord in, on or about the Project, except to the extent caused by the negligence or willful misconduct of the Tenant Parties, and (b) arising from any cause in, on or about the Common Areas (except to the extent caused by Tenant's negligence or willful misconduct) but only to the extent covered by the insurance carried by Landlord under Section 10.2, below. Should either party be named as a defendant in any suit brought against the other party in connection with or arising out of this Lease, the indemnifying party shall pay to the indemnified party its reasonable costs and expenses incurred in such suit, including without limitation, its actual professional fees such as reasonable appraisers', accountants' and attorneys' fees. Tenant's agreement to indemnify Landlord and Landlord's agreement to indemnify Tenant pursuant to this Section 10.1 are not intended to and shall not relieve any insurance carrier of its obligations under policies required to be carried pursuant to the provisions of this Lease, to the extent such policies cover, or if carried, would have covered the matters, subject to the parties' respective indemnification obligations; nor shall they supersede any inconsistent agreement of the parties set forth in any other provision of this Lease. The provisions of this Section 10.1 shall survive the expiration or earlier termination of this Lease with respect to any Losses arising in connection with any event occurring prior to such expiration or termination.

**10.2 Tenant's Compliance With Landlord's Property Insurance.** Landlord shall insure the Building for full replacement value during the Lease Term against loss or damage under an "all risk" property insurance policy and will obtain commercial general liability insurance. Such coverage shall be in such amounts, from such companies, and on such other terms and conditions, as Landlord may from time to time reasonably determine. Additionally, at the option of Landlord, such insurance coverage may include the risks of earthquakes and/or flood damage and additional hazards, a rental loss endorsement and one or more loss payee endorsements in favor of the holders of any mortgages or deeds of trust encumbering the interest of Landlord in the Building or the ground or underlying lessors of the Building, or any portion thereof. Tenant shall, at Tenant's expense, comply with all insurance company requirements pertaining to the use of the Premises. If Tenant's conduct or use of the Premises causes any increase in the premium for such insurance policies then Tenant shall reimburse Landlord for any such increase. Tenant, at Tenant's expense, shall comply with all rules, orders, regulations or requirements of the American Insurance Association (formerly the National Board of Fire Underwriters) and with any similar body. Tenant shall also provide Landlord and Landlord's insurer(s) with such information regarding the use of the Premises and any damage to the Premises as they may require in connection with the placement of insurance for the Premises or the adjusting of any losses to the Premises.

**10.3 Tenant's Insurance.** Tenant shall maintain the following coverages in the following amounts.

**10.3.1 Commercial General Liability Insurance** on an occurrence form covering the insured against claims of bodily injury, personal injury and property damage (including loss of use thereof) arising out of Tenant's operations, and contractual liabilities including a contractual coverage, and including products and completed operations coverage, for limits of liability on a per location basis of not less than the following; provided, however, such limits may be achieved through the use of an Umbrella/Excess Policy:

|                           |                              |
|---------------------------|------------------------------|
| Bodily Injury and         | \$2,000,000 each occurrence  |
| Property Damage Liability | \$4,000,000 annual aggregate |

10.3.2 Property Insurance covering (i) all office furniture, business and trade fixtures, office equipment, free-standing cabinet work, movable partitions, merchandise and all other items of Tenant's property on the Premises installed by, for, or at the expense of Tenant, (ii) the "**Tenant Improvements**," as that term is defined in the Tenant Work Letter, and any other improvements which exist in the Premises as of the Lease Commencement Date (excluding the Base Building) (the "**Original Improvements**"), and (iii) all other improvements, alterations and additions to the Premises. Such insurance shall be written on an "**all risks**" of physical loss or damage basis, for the full replacement cost value (subject to reasonable deductible amounts) new without deduction for depreciation of the covered items and in amounts that meet any co-insurance clauses of the policies of insurance and shall include coverage for damage or other loss caused by fire or other peril including, but not limited to, vandalism and malicious mischief, theft, water damage of any type, including sprinkler leakage, bursting or stoppage of pipes, and explosion.

10.3.3 Business Income Interruption for one (1) year plus Extra Expense insurance in such amounts as will reimburse Tenant for actual direct or indirect loss of earnings attributable to the risks outlined in Section 10.3.2 above.

10.3.4 Worker's Compensation and Employer's Liability or other similar insurance pursuant to all applicable state and local statutes and regulations. The policy shall include a waiver of subrogation in favor of Landlord, its employees, Lenders and any property manager or partners.

10.3.5 Umbrella Liability Insurance providing excess liability coverage with respect to the commercial general liability and employers liability policies described above with limits of at least Five Million Dollars (\$5,000,000) per occurrence and Five Million Dollars (\$5,000,000) general aggregate. Such insurance shall be written as follow form or with a form that provides coverage that is at least as broad as the primary insurance policies.

10.4 **Form of Policies.** The minimum limits of policies of insurance required of Tenant under this Lease shall in no event limit the liability of Tenant under this Lease. Such insurance shall (i) name Landlord, its subsidiaries and affiliates, its property manager (if any) and any other party the Landlord so specifies in writing, as an additional insured or loss payee, as applicable, including Landlord's managing agent, if any; (ii) be issued by an insurance company having a rating of not less than A:IX in Best's Insurance Guide or which is otherwise acceptable to Landlord and licensed to do business in the State of California; (iv) be primary insurance as to all claims thereunder as it relates to the interior of the Premises (as to property insurance) or the acts and omission of Tenant (as to liability insurance) and provide that any insurance carried by Landlord is excess and is non-contributing with any insurance required of Tenant; (v) be in form and content reasonably acceptable to Landlord; and (vi) provide that said insurance shall not be canceled or coverage changed unless thirty (30) days' prior written notice shall have been given to Landlord and any mortgagee of Landlord (unless such cancellation is the result of non-payment of premiums). Tenant shall deliver certificates thereof to Landlord on or before the Lease Commencement Date and no more than ten (10) days after the renewal dates thereof. In the event Tenant shall fail to procure such insurance, or to deliver such policies or certificate, Landlord may, at its option, procure such policies for the account of Tenant, and the cost thereof shall be paid to Landlord within five (5) days after delivery to Tenant of bills therefor.

10.5 **Subrogation.** Landlord and Tenant intend that their respective property loss risks shall be borne by their insurance carriers, and Landlord and Tenant hereby agree to look solely to, and seek recovery only from, their respective insurance carriers in the event of a property or business interruption loss to the extent that such coverage is agreed to be provided hereunder. Notwithstanding anything to the contrary in this Lease, the parties each hereby waive all rights and claims against each other for such losses, and waive all rights of subrogation of their respective insurers, provided such waiver of subrogation shall not affect the right to the insured to recover thereunder. The parties agree that their respective insurance policies do now, or shall, contain the waiver of subrogation.

10.6 **Additional Insurance Obligations.** Tenant shall carry and maintain during the entire Lease Term, at Tenant's sole cost and expense, increased amounts of the insurance required to be carried by Tenant pursuant to this Article 10 and such other reasonable types of insurance coverage and in such reasonable amounts covering the Premises and Tenant's operations therein, as may be reasonably requested by Landlord or Landlord's lender, but in no event in excess of the amounts and types of insurance then being required by a majority of the landlords of Comparable Buildings, and in no event shall Landlord require Tenant to carry such increased amounts or additional types of



insurance during the initial three (3) years of the Lease Term. In addition, Tenant shall pay for any increase in the premiums for the property insurance of the Project carried by Landlord if said increase is solely caused by Tenant's acts, omissions, use or occupancy of the Premises.

10.7 **Landlord's Insurance.** Landlord shall maintain its usual liability insurance as well as property insurance for the Building (excluding any Tenant Improvements, Original Improvement and Alterations) pursuant to Section 10.2, above, provided that in no event shall Landlord be required to carry earthquake insurance.

## 11. DAMAGE AND DESTRUCTION

11.1 **Repair of Damage.** Tenant shall promptly notify Landlord of any damage to the Premises resulting from fire or any other casualty ("Casualty"). If the Premises or the Building or any Common Areas serving or providing access to the Premises shall be damaged by Casualty, within sixty (60) days following notice to Landlord of the damage or destruction, Landlord shall give notice to Tenant if Landlord elects, promptly and diligently, subject to reasonable delays for insurance adjustment or other matters beyond Landlord's reasonable control, and subject to all other terms of this Article 11, to restore the Base Building (including the Building Structure and all Building Systems) and such Common Areas, the Tenant Improvements, and Alterations made to the Premises by Tenant, and portions of the Project. Such restoration shall be to substantially the same condition of the Base Building and the Common Areas, the Tenant Improvements, and Alterations made to the Premises by Tenant and Project prior to the Casualty, except for modifications required by zoning and building codes and other laws or by the holder of a mortgage on the Building or Project or any other modifications to the Common Areas deemed desirable by Landlord, which are consistent with the character of the Project, provided that access to the Premises shall not be materially modified or impaired and Tenant's access to parking for the number or spaces provided in Section 9 of the Summary of Basic Lease Information shall not be materially impaired. Subject to the terms of Section 11.2, below, Tenant shall, at its sole cost and expense, repair any injury or damage to the Tenant Improvements and the Original Improvements installed in the Premises and shall return such Tenant Improvements and Original Improvements to their original condition; provided that Tenant may elect to have Landlord perform such work by delivery of written notice to Landlord. Whether or not Landlord delivers a "Landlord Repair Notice," as that term is defined in Section 11.2 below, prior to the commencement of construction, Tenant shall submit to Landlord, for Landlord's review and approval, all plans, specifications and working drawings relating thereto, and Landlord shall select the contractors to perform such improvement work. Tenant shall in addition cooperate with requests for information regarding any repairs from Landlord's insurer(s) by providing the requested information within ten (10) days after Tenant receives the request. Landlord shall not be liable for any inconvenience or annoyance to Tenant or its visitors, or injury to Tenant's business resulting in any way from such damage or the repair thereof; provided however, that if such Casualty shall have damaged the Premises or Common Areas or portions of the Project necessary to Tenant's occupancy, and the Premises are not occupied by Tenant as a result thereof, then during the time and to the extent the Premises are unfit for occupancy, the Rent shall be abated in proportion to the ratio that the amount of rentable square feet of the Premises which is unfit for occupancy for the purposes permitted under this Lease bears to the total rentable square feet of the Premises. In the event that Landlord shall not deliver the Landlord Repair Notice, Tenant's right to rent abatement pursuant to the preceding sentence shall terminate as of the date which is reasonably determined by Landlord to be the date Tenant should have completed repairs to the Premises assuming Tenant used reasonable due diligence in connection therewith.

11.2 **Landlord's Option to Repair.** Upon the occurrence of any damage to the Premises, Landlord may, at Landlord's option, deliver a notice (the "**Landlord Repair Notice**") to Tenant, and upon receipt of a Landlord Repair Notice Tenant shall assign to Landlord (or to any party designated by Landlord) all insurance proceeds payable to Tenant under Tenant's insurance required under Section 10.3(ii) and (iii) of this Lease, and Landlord shall repair any injury or damage to the Tenant Improvements and the Original Improvements installed in the Premises and shall return such Tenant Improvements and Original Improvements to their original condition; provided that if the cost of such repair by Landlord exceeds the amount of insurance proceeds received by Landlord from Tenant's insurance carrier (including by taking into account any deductible or self-insured retention), as assigned by Tenant, the cost of such repairs shall be paid by Tenant to Landlord prior to Landlord's commencement of repair of the damage. Notwithstanding the terms of Section 11.1 of this Lease, Landlord may elect not to rebuild and/or restore the Premises, Building and/or Project, and instead terminate this Lease, by notifying Tenant in writing of such termination within sixty (60) days after the date of discovery of the damage, such notice to include a termination date giving Tenant

ninety (90) days to vacate the Premises, but Landlord may so elect only if the Building or Project shall be damaged by Casualty, whether or not the Premises are affected, provided that Landlord terminates the leases of all tenants of the Building whose premises are similarly damaged by the casualty (to the extent Landlord retains such right pursuant to the terms of the applicable tenants' leases), and one or more of the following conditions is present: (i) in the reasonable judgment of Landlord's contractor, repairs cannot reasonably be completed within two hundred seventy (270) days after the date of discovery of the damage (when such repairs are made without the payment of overtime or other premiums); (ii) the holder of any mortgage on the Building or Project or ground lessor with respect to the Building or Project shall require that the insurance proceeds or any portion thereof be used to retire the mortgage debt, or shall terminate the ground lease, as the case may be; (iii) at least \$300,000.00 of the cost to repair the damage is not covered by Landlord's insurance policies (provided that Landlord carried the insurance policies required under this Lease); or (iv) the damage occurs during the last twelve (12) months of the Lease Term; provided, however, that if Landlord does not elect to terminate this Lease pursuant to Landlord's termination right as provided above, and the repairs cannot, in the reasonable opinion of Landlord's third party contractor, be completed within two hundred seventy days (270) days after being commenced, Tenant may elect, no earlier than sixty (60) days and not later than ninety (90) days after Landlord notifies Tenant of its estimated time of repair ("**Damage Repair Estimate**"), to terminate this Lease by written notice to Landlord effective as of the date specified in the notice, which date shall not be less than thirty (30) days nor more than sixty (60) days after the date such notice is given by Tenant. In addition, Tenant may terminate this Lease if the damage to the Premises occurs during the last twelve (12) months of the Lease Term, and, as a result of such damage, Tenant cannot reasonably conduct business from the Premises for a period in excess of ninety (90) days. In addition, if such restoration is not substantially complete on or before the later of (a) date that occurs three hundred sixty (360) days after the date of discovery of the damage, and (b) the date that occurs ninety (90) days after the estimated repair completion date set forth in the Damage Repair Estimate (the "**Outside Restoration Date**"), then Tenant shall have the additional right during the first five (5) business days of each calendar month following the Outside Restoration Date until such repairs are complete, to terminate this Lease by delivery of written notice to Landlord (the "**Damage Termination Notice**"), which termination shall be effective on a date specified by Tenant in such Damage Termination Notice (the "**Damage Termination Date**"), which Damage Termination Date shall not be less than thirty (30) days, nor greater than sixty (60) days, following the date such Damage Termination Notice was delivered to Landlord. Notwithstanding the provisions of this Section 11.2, Tenant shall have the right to terminate this Lease under this Section 11.2 only if each of the following conditions is satisfied: (a) the damage to the Project by Casualty was not caused by the gross negligence or intentional act of Tenant or its partners or subpartners and their respective officers, agents, servants, employees, and independent contractors; (b) Tenant is not then in default under this Lease, beyond any applicable notice and cure period set forth in this Lease; (c) as a result of the damage, Tenant cannot reasonably conduct business from the Premises; and (d) as a result of the damage to the Project, Tenant does not occupy or use the Premises at all.

**11.3 Waiver of Statutory Provisions.** The provisions of this Lease, including this Article 11, constitute an express agreement between Landlord and Tenant with respect to any and all damage to, or destruction of, all or any part of the Premises, the Building or the Project, and any statute or regulation of the State of California, including, without limitation, Sections 1932(2) and 1933(4) of the California Civil Code, with respect to any rights or obligations concerning damage or destruction in the absence of an express agreement between the parties, and any other statute or regulation, now or hereafter in effect, shall have no application to this Lease or any damage or destruction to all or any part of the Premises, the Building or the Project.

**12. NONWAIVER.** No provision of this Lease shall be deemed waived by either party hereto unless expressly waived in a writing signed by the waiving party. The waiver by either party hereto of any breach of any term, covenant or condition herein contained shall not be deemed to be a waiver of any subsequent breach of same or any other term, covenant or condition herein contained. The subsequent acceptance of Rent hereunder by Landlord shall not be deemed to be a waiver of any preceding breach by Tenant of any term, covenant or condition of this Lease, other than the failure of Tenant to pay the particular Rent so accepted, regardless of Landlord's knowledge of such preceding breach at the time of acceptance of such Rent. No acceptance of a lesser amount than the Rent herein stipulated shall be deemed a waiver of Landlord's right to receive the full amount due, nor shall any endorsement or statement on any check or payment or any letter accompanying such check or payment be deemed an accord and satisfaction, and Landlord may accept such check or payment without prejudice to Landlord's right to recover the full amount due. No receipt of monies by Landlord from Tenant after the termination of this Lease shall in any way alter the length of the Lease Term or of Tenant's right of possession hereunder, or after the giving of any notice shall reinstate, continue or

extend the Lease Term or affect any notice given Tenant prior to the receipt of such monies, it being agreed that after the service of notice or the commencement of a suit, or after final judgment for possession of the Premises, Landlord may receive and collect any Rent due, and the payment of said Rent shall not waive or affect said notice, suit or judgment. No payment of Rent by Tenant after a breach by Landlord shall be deemed a waiver of any breach by Landlord.

**13. CONDEMNATION.** If the whole or any part of the Premises, Building or Project shall be taken by power of eminent domain or condemned by any competent authority for any public or quasi-public use or purpose, or if any adjacent property or street shall be so taken or condemned, or reconfigured or vacated by such authority in such manner as to require the use, reconstruction or remodeling of any part of the Premises, Building or Project, or if Landlord shall grant a deed or other instrument in lieu of such taking by eminent domain or condemnation, Landlord shall have the option to terminate this Lease effective as of the date possession is required to be surrendered to the authority; provided, however, that Landlord shall only have the right to terminate this Lease as provided above if Landlord terminates the leases of all other tenants in the Building similarly affected by the taking (to the extent Landlord retains such right pursuant to the terms of the applicable tenants' leases). If more than twenty-five percent (25%) of the Premises is taken, or if all reasonable access to the Premises is prevented, in each case for a period in excess of one hundred eighty (180) days, Tenant shall have the option to terminate this Lease effective as of the date possession is required to be surrendered to the authority. Tenant shall not because of such taking assert any claim against Landlord or the authority for any compensation because of such taking and Landlord shall be entitled to the entire award or payment in connection therewith, except that Tenant shall have the right to file any separate claim available to Tenant for any taking of Tenant's personal property and fixtures belonging to Tenant and removable by Tenant upon expiration of the Lease Term pursuant to the terms of this Lease, and for moving expenses, so long as such claims do not diminish the award available to Landlord, its ground lessor with respect to the Building or Project or its mortgagee, and such claim is payable separately to Tenant. All Rent shall be apportioned as of the date of such termination. If any part of the Premises shall be taken, and this Lease is not terminated, the Rent under this Lease shall be proportionately reduced based on the portion of the Premises subject to the applicable taking. Tenant hereby waives any and all rights it might otherwise have pursuant to Section 1265.130 of the California Code of Civil Procedure. Notwithstanding anything to the contrary contained in this Article 13, in the event of a temporary taking of all or any portion of the Premises for a period of one hundred and eighty (180) days or less, then this Lease shall not terminate but the Base Rent and Tenant's Share of Direct Expenses shall be abated for the period of such taking in proportion to the ratio that the amount of rentable square feet of the Premises taken bears to the total rentable square feet of the Premises. Landlord shall be entitled to receive the entire award made in connection with any such temporary taking.

#### **14. ASSIGNMENT AND SUBLETTING**

**14.1 Transfers.** Except as otherwise specifically provided or permitted in this Article 14, Tenant shall not, without the prior written consent of Landlord, which consent shall not be unreasonably withheld, conditioned or delayed, assign, sublet, license, mortgage, pledge, hypothecate, encumber, or permit the occupancy or use of the Premises or any part thereof by any persons other than Tenant and its employees and contractors (all of the foregoing are hereinafter sometimes referred to collectively as "**Transfers**" and any person to whom any Transfer is made or sought to be made is hereinafter sometimes referred to as a "**Transferee**"). If Tenant desires Landlord's consent to any Transfer, Tenant shall notify Landlord in writing, which notice (the "**Transfer Notice**") shall include (i) the proposed effective date of the Transfer, which shall not be less than thirty (30) days nor more than one hundred eighty (180) days after the date of delivery of the Transfer Notice, (ii) a description of the portion of the Premises to be transferred (the "**Subject Space**"), (iii) all of the material terms of the proposed Transfer and the consideration therefor, including calculation of the "Transfer Premium" (as that term is defined in Section 14.3 below) in connection with such Transfer, the name and address of the proposed Transferee, and a copy of all existing executed and/or proposed documentation pertaining to the proposed Transfer, and (iv) current financial statements of the proposed Transferee certified by an officer, partner or owner thereof, business credit and personal references and history of the proposed Transferee and any other information reasonably required by Landlord which will enable Landlord to determine the financial responsibility, character, and reputation of the proposed Transferee, nature of such Transferee's business and proposed use of the Subject Space. Landlord will notify Tenant of its consent or non-consent to a Transfer within thirty (30) days of the date of the Transfer Notice. Any Transfer made without Landlord's prior written consent shall, at Landlord's option, be null, void and of no effect, and shall, at Landlord's option, constitute an Event of Default

by Tenant under this Lease. Whether or not Landlord consents to any proposed Transfer, Tenant shall pay Landlord's reasonable review and processing fees, as well as any reasonable professional fees (including, without limitation, attorneys', accountants', architects', engineers' and consultants' fees) incurred by Landlord, not to exceed \$3,000 in the aggregate per proposed Transfer in the ordinary course of business, within thirty (30) days after written request by Landlord.

**14.2 Landlord's Consent.** Landlord shall not unreasonably withhold, condition or delay its consent to any proposed Transfer of the Subject Space to the Transferee on the terms specified in the Transfer Notice. Without limitation as to other reasonable grounds for withholding consent, the parties hereby agree that it shall be reasonable under this Lease and under Applicable Laws for Landlord to withhold consent to any proposed Transfer where one or more of the following apply:

14.2.1 The Transferee is of a character or reputation or engaged in a business which is not consistent with the quality of the Building or the Project;

14.2.2 The Transferee is either a governmental agency or instrumentality thereof; provided, however, that Tenant shall be entitled to assign, sublet or otherwise transfer to a governmental agency or instrumentality thereof to the extent Landlord has leased or has permitted the lease of space to a comparable (in terms of security, foot traffic, prestige, eminent domain and function oriented issues) governmental agency or instrumentality thereof in comparably located space of comparable size;

14.2.3 The Transferee is not a party of reasonable financial worth and/or financial stability in light of the responsibilities to be undertaken in connection with the Transfer on the date consent is requested;

14.2.4 The proposed Transfer would cause a violation of another lease for space in the Project, or would give an occupant of the Project a right to cancel its lease; or

14.2.5 Either the proposed Transferee, or any person or entity which directly or indirectly, controls, is controlled by, or is under common control with, the proposed Transferee, (i) occupies space in the Project at the time of the request for consent (provided, however, that Landlord may not withhold its consent to an assignment or a sublease pursuant to the terms of this Section 14.2.7 to the extent Landlord cannot meet such occupant's space needs), or (ii) is negotiating with Landlord to lease space in the Project at such time, or (iii) has negotiated with Landlord during the twelve (12)-month period immediately preceding the Transfer Notice.

If Landlord consents to any Transfer pursuant to the terms of this Section 14.2 (and does not exercise any recapture rights Landlord may have under Section 14.4 of this Lease), Tenant may within six (6) months after Landlord's consent, but not later than the expiration of said six (6)-month period, enter into such Transfer of the Premises or portion thereof, upon substantially the same terms and conditions as are set forth in the Transfer Notice furnished by Tenant to Landlord pursuant to Section 14.1 of this Lease, provided that if there are any material changes in the terms and conditions from those specified in the Transfer Notice such that Landlord would initially have been entitled to refuse its consent to such Transfer under this Section 14.2, Tenant shall again submit the Transfer to Landlord for its approval and other action under this Article 14 (including Landlord's right of recapture, if any, under Section 14.4 of this Lease). Notwithstanding anything to the contrary in this Lease, if Tenant or any proposed Transferee claims that Landlord has unreasonably withheld or delayed its consent under Section 14.2 or otherwise has breached or acted unreasonably under this Article 14, their sole remedies shall be a suit for contract damages (other than damages for injury to, or interference with, Tenant's business including, without limitation, loss of profits, however occurring) or declaratory judgment and an injunction for the relief sought, and Tenant hereby waives the provisions of Section 1995.310 of the California Civil Code, or any successor statute, and all other remedies, including, without limitation, any right at law or equity to terminate this Lease, on its own behalf and, to the extent permitted under all Applicable Laws, on behalf of the proposed Transferee.

**14.3 Transfer Premium.** If Landlord consents to any Transfer, as a condition thereto which the parties hereby agree is reasonable, Tenant shall pay to Landlord fifty percent (50%) of any Transfer Premium received by Tenant from such Transferee (or any subsequent Transferee, e.g., a sub-subtenant) in connection with the Transfer; provided, however, the foregoing shall not apply to, and Tenant shall not be obligated to pay any Transfer Premium

in connection with, any Permitted Transfer. “**Transfer Premium**” shall mean all rent, additional rent or other consideration payable by such Transferee in connection with the Transfer in excess of the Base Rent and Tenant’s Share of Direct Expenses payable by Tenant under this Lease during the term of the Transfer (which shall be calculated on a per rentable square foot basis if less than all of the Premises is transferred, after deducting the reasonable expenses incurred by Tenant for (i) any design and construction costs incurred on account of changes, alterations and improvements to the Premises in connection with the Transfer, (ii) any free base rent and tenant improvement allowances or other concessions reasonably provided to the Transferee in connection with the Transfer (provided that such free rent and tenant improvement allowances or other concessions shall be deducted only to the extent the same is included in the calculation of total consideration payable by such Transferee), (iii) any brokerage commissions in connection with the Transfer, (iv) the market value of any furniture, fixtures and equipment provided to the Transferee without payment, and (v) legal fees reasonably incurred in connection with the Transfer (“**Tenant’s Subleasing Costs**”). Transfer Premium shall also include, but not be limited to, key money, bonus money or other cash consideration paid by Transferee to Tenant solely in connection with such Transfer, which consideration is made in connection with this Lease (as opposed to other portions of Tenant’s business such as consideration paid to acquire Tenant’s business assets including personal property, goodwill, intellectual property, general intangibles, etc. so long as such allocation is not intended as a subterfuge to Tenant’s obligation to pay the Transfer Premium related to Tenant’s interest in this Lease), and any payment in excess of fair market value for services rendered by Tenant to Transferee or for assets, fixtures, inventory, equipment, or furniture transferred by Tenant to Transferee in connection with such Transfer. The determination of the amount of Landlord’s applicable share of the Transfer Premium shall be made on a monthly basis as rent or other consideration is received by Tenant under the Transfer; provided that for Tenant’s Subleasing Costs shall be deemed to be expended by Tenant in equal monthly amounts over the entire term of the Transfer.

14.4 **Landlord’s Option as to Subject Space.** Notwithstanding anything to the contrary contained in this Article 14, in the event Tenant contemplates a Transfer (other than any transfer permitted by Section 14.7) which, together with all prior Transfers then remaining in effect, would cause fifty percent (50%) or more of the Premises to be Transferred for the then remaining Lease Term (taking into account any extension of the Lease Term which has been irrevocably exercised by Tenant) (for purposes hereof, a sublease shall be deemed to be for the then remaining Lease Term if, assuming all sublease renewal or extension rights are exercised, such sublease shall expire during the final twelve (12) months of the Lease Term) (a “**Contemplated Recapture Transfer**”), then Tenant may, at Tenant’s option, prior to delivering a Transfer Notice to Landlord, give Landlord notice (the “**Intention to Transfer Notice**”) of such contemplated Transfer (whether or not the contemplated Transferee or the terms of such contemplated Transfer have been determined). The Intention to Transfer Notice shall specify the portion of and amount of rentable square feet of the Premises which Tenant intends to Transfer (the “**Contemplated Transfer Space**”), the contemplated date of commencement of the Contemplated Transfer (the “**Contemplated Effective Date**”), and the contemplated length of the term of such contemplated Transfer, and shall specify that such Intention to Transfer Notice is delivered to Landlord pursuant to this Section 14.4 in order to allow Landlord to elect to recapture the Contemplated Transfer Space. Upon receipt of an Intention to Transfer Notice (or Transfer Notice if Tenant did not deliver an Intention to Transfer Notice and such proposed Transfer qualifies as a Contemplated Recapture Transfer), Landlord shall have the option, by giving written notice to Tenant within thirty (30) days after receipt of any Intention to Transfer Notice, to recapture the Contemplated Transfer Space. Such recapture shall cancel and terminate this Lease with respect to such Contemplated Transfer Space as of the Contemplated Effective Date; provided, however, if Landlord elects to recapture the Premises, then Tenant may, within five (5) business days following such election by Landlord, rescind its Intention to Transfer Notice (or Transfer Notice if Tenant did not deliver an Intention to Transfer Notice), in which case Landlord’s recapture of the Premises with respect to such Intention to Transfer Notice (or Transfer Notice if Tenant did not deliver an Intention to Transfer Notice) shall be null and void and this Lease shall continue to full force and effect and Tenant shall not proceed with the Transfer contemplated by the Intention to Transfer Notice. Such recapture shall cancel and terminate this Lease with respect to such Contemplated Transfer Space as of the Contemplated Effective Date. In the event of a recapture by Landlord, if this Lease shall be canceled with respect to less than the entire Premises, the Base Rent and Tenant’s Share of Direct Expenses shall be equitably prorated on the basis of the number of rentable square feet retained by Tenant in proportion to the number of rentable square feet contained in the Premises, and this Lease as so amended shall continue thereafter in full force and effect, and upon request of either party, the parties shall execute written confirmation of the same. If Landlord declines, or fails to elect in a timely manner, to recapture such Contemplated Transfer Space under this Section 14.4, then, subject to the other terms of this Article 14, for a period of nine (9) months (the “**Nine Month Period**”) commencing on the last day

of such thirty (30) day period, Landlord shall not have any right to recapture the Contemplated Transfer Space with respect to any Transfer made during the Nine Month Period, provided that any such Transfer is substantially on the terms set forth in the Intention to Transfer Notice, and provided further that any such Transfer shall be subject to the remaining terms of this Article 14. If such a Transfer is not so consummated within the Nine Month Period (or if a Transfer is so consummated, then upon the expiration of the term of any Transfer of such Contemplated Transfer Space consummated within such Nine Month Period), Tenant shall again be required to submit a new Intention to Transfer Notice to Landlord with respect to any contemplated Transfer, as provided above in this Section 14.4.

**14.5 Effect of Transfer.** If Landlord consents to any Transfer, (i) the terms and conditions of this Lease shall in no way be deemed to have been waived or modified, (ii) such consent shall not be deemed consent to any further Transfer by either Tenant or a Transferee, and (iii) no Transfer relating to this Lease or agreement entered into with respect thereto, whether with or without Landlord's consent, shall relieve Tenant or any guarantor of the Lease from any liability under this Lease, including, without limitation, in connection with the Subject Space.

**14.6 Occurrence of Default.** Any Transfer shall be subordinate and subject to the provisions of this Lease, and if this Lease shall be terminated during the term of any Transfer, Landlord shall have the right to: (i) treat such Transfer as cancelled and repossess the Subject Space by any lawful means, or (ii) require that such Transferee attorn to and recognize Landlord as its landlord under any such Transfer. If Tenant shall be in default under this Lease beyond any applicable cure and notice period, Landlord is hereby irrevocably authorized, to direct any Transferee to make all payments under or in connection with the Transfer directly to Landlord (which Landlord shall apply towards Tenant's obligations under this Lease) until such default is cured. Such Transferee shall rely on any representation by Landlord that Tenant is in default hereunder, without any need for confirmation thereof by Tenant. Upon any assignment, the assignee shall assume in writing all obligations and covenants of Tenant thereafter to be performed or observed under this Lease from and after the date of such assignment. No collection or acceptance of rent by Landlord from any Transferee shall be deemed a waiver of any provision of this Article 14 or the approval of any Transferee or a release of Tenant from any obligation under this Lease, whether theretofore or thereafter accruing. In no event shall Landlord's enforcement of any provision of this Lease against any Transferee be deemed a waiver of Landlord's right to enforce any term of this Lease against Tenant or any other person. If Tenant's obligations hereunder have been guaranteed, Landlord's consent to any Transfer shall not be effective unless the guarantor also consents to such Transfer.

**14.7 Permitted Transfers.** Notwithstanding anything to the contrary set forth in this Lease, (i) an assignment or subletting of all or a portion of the Premises to an affiliate of Tenant, which for purposes of this Lease shall mean an entity which is controlled by, controls, or is under common control with, Tenant (an "**Affiliate**"), (ii) is a sale of corporate shares of capital stock in Tenant in connection with an initial public offering of Tenant's stock on a nationally-recognized stock exchange, (iii) is an assignment of the Lease to an entity which acquires all or substantially all of the stock or assets of Tenant, or (iv) is an assignment of the Lease to an entity which is the resulting entity of a merger or consolidation of Tenant during the Lease Term or (v) results in a change in control of Tenant due to a merger or consolidation (any such merger, consolidation, assignment or sublease, a "**Permitted Transfer**", and any such assignee, sublessee or surviving Tenant shall be hereinafter referred to as a "**Permitted Transferee**") shall not be deemed a Transfer requiring Landlord's consent under this Article 14, provided that (a) Tenant notifies Landlord at least ten (10) business days prior to the effective date of such Permitted Transfer (provided if Tenant is prevented by Applicable Law or confidentiality requirements from disclosing such transaction to Landlord prior to the consummation thereof, Tenant shall provide such notice to Landlord promptly after Tenant is permitted from disclosing same) and promptly supplies Landlord with any documents or information reasonably requested by Landlord regarding such Permitted Transfer or Permitted Transferee, (b) Tenant delivers evidence of insurance as required under this Lease with respect to the Permitted Transferee, (c) Tenant is not in monetary or other material default beyond any applicable notice and cure period under this Lease, and such Transfer is not a subterfuge by Tenant to avoid its obligations under this Lease, (d) such Permitted Transferee shall be of a character and reputation consistent and compatible with the operation and quality of the Project, (e) in the event of an assignment of this Lease, such Permitted Transferee shall have a tangible net worth (not including intangibles, such as goodwill, as an asset) computed in accordance with generally accepted accounting principles ("**Net Worth**") and other financial indicators sufficient to meet Tenant's obligations under the Transfer instrument in question and its obligations hereunder, (f) Tenant shall not be relieved from any liability under this Lease, and (g) the liability of such Permitted Transferee under either an assignment or sublease shall be joint and several with Tenant. An assignee of Tenant's entire interest

in this Lease who qualifies as a Permitted Transferee may also be referred to herein as a "**Permitted Transferee Assignee.**" "**Control,**" as used in this Section 14.7, shall mean the ownership, directly or indirectly, of at least fifty-one percent (51%) of the voting securities of, or possession of the right to vote, in the ordinary direction of its affairs, of at least fifty-one percent (51%) of the voting interest in, any person or entity.

## **15. SURRENDER OF PREMISES; OWNERSHIP AND REMOVAL OF TRADE FIXTURES**

**15.1 Surrender of Premises.** No act or thing done by either party or any agent or employee thereof during the Lease Term shall be deemed to constitute an acceptance by either party of a surrender of the Premises unless such intent is specifically acknowledged in a writing signed by both parties. The delivery of keys to the Premises to Landlord or any agent or employee of Landlord shall not constitute a surrender of the Premises or effect a termination of this Lease, whether or not the keys are thereafter retained by Landlord, and notwithstanding such delivery Tenant shall be entitled to the return of such keys at any reasonable time upon request until this Lease shall have been properly terminated. The voluntary or other surrender of this Lease by Tenant, whether accepted by Landlord or not, or a mutual termination hereof, shall not work a merger, and at the option of Landlord shall operate as an assignment to Landlord of all subleases or subtenancies affecting the Premises or terminate any or all such sublessees or subtenancies.

**15.2 Removal Requirements.** Upon the expiration of the Lease Term, or upon any earlier termination of this Lease, Tenant shall, subject to the provisions of this Article 15, quit and surrender possession of the Premises to Landlord in good order and condition, reasonable wear and tear and repairs which are specifically made the responsibility of Landlord hereunder and casualty excepted. Upon such expiration or termination, Tenant shall, without expense to Landlord, remove or cause to be removed from the Premises all debris and rubbish, and such items of furniture, equipment, free-standing cabinet work, movable partitions and other articles of personal property owned by Tenant or installed or placed by Tenant at its expense in the Premises, and such similar articles of any other persons claiming under Tenant, and Tenant shall repair at its own expense all damage to the Premises and Building resulting from such removal.

**15.3 Environmental Assessment.** In connection with its surrender of the Premises, Tenant shall submit to Landlord, at least thirty (30) days prior to the Lease Expiration Date (or in the event of an earlier termination of this Lease, as soon as reasonably possible following such termination), an Environmental Assessment of the Premises by a competent and experienced environmental engineer or engineering firm reasonably satisfactory to Landlord (providing that Landlord can rely on the Environmental Assessment), which (i) evidences that the Premises are in a clean and safe condition and free and clear of any Hazardous Materials for which Tenant is responsible under this Lease; and (ii) includes a review of the Premises by an environmental consultant for asbestos, mold, fungus, spores, and other moisture conditions, and on-site chemical use, by Tenant if applicable. If such Environmental Assessment reveals that remediation or Clean-up is required under any Environmental Laws, Tenant shall submit a remediation plan prepared by a recognized environmental consultant and shall be responsible for all costs of remediation and Clean-up, as more particularly provided in Section 5.3, above.

**15.4 Condition of the Building and Premises Upon Surrender.** In addition to the above requirements of this Article 15, upon the expiration of the Lease Term, or upon any earlier termination of this Lease, Tenant shall, surrender the Premises and Building with Tenant having complied with all of Tenant's obligations under this Lease. In the event that the Building and Premises shall be surrendered in a condition which does not comply with the terms of this Section 15.4, because Tenant failed to comply with its obligations set forth in Lease, then following thirty (30) days' notice to Tenant, during which thirty (30) day period Tenant shall have the right to cure such noncompliance, Landlord shall be entitled to expend all reasonable costs in order to cause the same to comply with the required condition upon surrender and Tenant shall immediately reimburse Landlord for all such costs upon notice and Tenant shall be deemed during the period that Tenant or Landlord, as the case may be, perform obligations relating to the Surrender Improvements to be in holdover under Article 16 of this Lease.

**16. HOLDING OVER.** If Tenant holds over after the expiration of the Lease Term or earlier termination thereof, with the express written consent of Landlord, such tenancy shall be from month-to-month, and shall not constitute a

renewal hereof or an extension for any further term. If Tenant holds over after the expiration of the Lease Term of earlier termination thereof, without the express written consent of Landlord, such tenancy shall be deemed to be a tenancy by sufferance only, and shall not constitute a renewal hereof or an extension for any further term. In either case, Base Rent shall be payable at a monthly rate equal: (i) for the first three (3) months of such holdover, to one hundred twenty-five percent (125%) of the Base Rent applicable during the last rental period of the Lease Term under this Lease and (ii) for each month thereafter, one hundred fifty percent (150%) of the Base Rent applicable during the last rental period of the Lease Term under this Lease. Such month-to-month tenancy or tenancy by sufferance, as the case may be, shall be subject to every other applicable term, covenant and agreement contained herein. Nothing contained in this Article 16 shall be construed as consent by Landlord to any holding over by Tenant, and Landlord expressly reserves the right to require Tenant to surrender possession of the Premises to Landlord as provided in this Lease upon the expiration or other termination of this Lease. The provisions of this Article 16 shall not be deemed to constitute a waiver of any other rights or remedies of Landlord provided herein or at law. If Tenant fails to surrender the Premises within thirty (30) days following the termination or expiration of this Lease, in addition to any other liabilities to Landlord accruing therefrom, Tenant shall protect, defend, indemnify and hold Landlord harmless from all Losses resulting from such failure, including, without limiting the generality of the foregoing, any claims made by any succeeding tenant founded upon such failure to surrender and any lost profits to Landlord resulting therefrom.

## 17. ESTOPPEL CERTIFICATES; FINANCIAL STATEMENTS

17.1 **Estoppel Certificates.** Within ten (10) business days following a request in writing by Landlord, Tenant shall execute, acknowledge and deliver to Landlord an estoppel certificate, which, as submitted by Landlord, shall be substantially in the form of Exhibit D, attached hereto (or such other commercially reasonable form as may be required by any prospective mortgagee or purchaser of the Project, or any portion thereof), indicating therein any exceptions thereto that may exist at that time, and shall also contain any other customary information reasonably requested by Landlord or Landlord's mortgagee or prospective mortgagee. Any such certificate may be relied upon by any prospective mortgagee or purchaser of all or any portion of the Project. Tenant shall execute and deliver whatever other reasonable instruments may be reasonably required for such purposes. Failure of Tenant to timely execute, acknowledge and deliver such estoppel certificate or other instruments shall constitute an acceptance of the Premises and an acknowledgment by Tenant that statements included in the estoppel certificate are true and correct, without exception.

17.2 **Financial Statements.** At any time during the Lease Term in connection with Landlord's sale, financing or refinancing of the Project, or if Tenant requests Landlord's consent to an Alteration or a Transfer, in connection with an amendment to this Lease, or if Tenant is in default under this Lease beyond any applicable notice and cure period expressly set forth in this Lease, unless Tenant's financials are otherwise reasonably publicly available, Landlord may require Tenant to provide Landlord with (i) a balance sheet for the most recent quarter-end date, (ii) a statement of cash flows for the most recent quarter-end date, and (iii) an income statement for the trailing twelve (12) month period ending on the most recent month-end date. Such financial statements shall be prepared in accordance with generally accepted accounting principles and, if such is the normal practice of Tenant, shall be audited by an independent certified public accountant. Notwithstanding the foregoing, in the event that (i) stock in the entity which constitutes Tenant under this Lease (as opposed to an entity that "controls" Tenant or is otherwise an "affiliate" of Tenant, as those terms are defined in Section 14.8 of this Lease) is publicly traded on a national stock exchange, and (ii) Tenant has its own, separate and distinct 10K and 10Q filing requirements (as opposed joint or cumulative filings with an entity that controls Tenant or with entities which are otherwise Affiliates of Tenant), then Tenant's obligation to provide Landlord with a copy of its most recent current financial statement shall be deemed satisfied. Upon Tenant's written request, Landlord shall sign and deliver a commercially reasonable form of confidentiality agreement with respect to Tenant's financial statements..

18. **SUBORDINATION.** This Lease shall be subject and subordinate to all present and future ground or underlying leases of the Building or Project and to the lien of any mortgage, trust deed or other encumbrances now or hereafter in force against the Building or Project or any part thereof, if any, and to all renewals, extensions, modifications, consolidations and replacements thereof, and to all advances made or hereafter to be made upon the security of such mortgages or trust deeds, unless the holders of such mortgages, trust deeds or other encumbrances, or the lessors under such ground lease or underlying leases, require in writing that this Lease be superior thereto (collectively, the "**Superior Holders**"); provided, however, that as a condition precedent to Tenant's obligation to



subordinate this Lease to any future Superior Holders, shall be the receipt by Tenant of a subordination non-disturbance and attornment agreement in at commercially reasonable form provided by such Superior Holders, which requires such Superior Holder to accept this lease, and not to disturb tenant's possession, so long as an event of default has not occurred and be continuing beyond any applicable notice and cure period (a "SNDAA") executed by Landlord and the appropriate Superior Holder. Tenant covenants and agrees in the event any proceedings are brought for the foreclosure of any such mortgage or deed in lieu thereof (or if any ground lease is terminated), to attorn, without any deductions or set-offs whatsoever, to the lienholder or purchaser or any successors thereto upon any such foreclosure sale or deed in lieu thereof (or to the ground lessor), if so requested to do so by such purchaser or lienholder or ground lessor, and to recognize such purchaser or lienholder or ground lessor as the lessor under this Lease, provided such lienholder or purchaser or ground lessor shall agree to accept this Lease and not disturb Tenant's occupancy, so long as Tenant timely pays Rent and observes and performs the terms, covenants and conditions of this Lease to be observed and performed by Tenant. Landlord's interest herein may be assigned as security at any time to any lienholder. Tenant shall, within ten (10) days of request by Landlord, execute such further instruments or assurances as Landlord may reasonably deem necessary to evidence or confirm the subordination or superiority of this Lease to any such mortgages, trust deeds, ground leases or underlying leases. Should any current or prospective Mortgagee require a modification of this Lease, which modification will not cause an increased cost or expense to Tenant or in any other way materially and adversely change the rights and obligations of Tenant hereunder, then and in such event, this Lease may be so modified and Tenant shall execute whatever documents are reasonably required therefor and to deliver the same to Landlord within ten (10) days following a request therefor. Tenant hereby acknowledges that Landlord has provided Tenant with a SNDAA acceptable to Tenant in recordable form and substantially similar to the form of **Exhibit F** attached hereto, concurrently with the full execution and delivery of this Lease.

## 19. DEFAULTS; REMEDIES

19.1 **Events of Default.** In addition to any other Events of Default specified elsewhere in this Lease, the occurrence of any of the following shall constitute a default of this Lease by Tenant (each, an "Event of Default"):

19.1.1 Any failure by Tenant to pay any Rent or any other charge required to be paid under this Lease, or any part thereof, when due, unless such failure is cured within five (5) business days after written notice from Landlord; or

19.1.2 Abandonment (as defined by Applicable Laws) of the Premises by Tenant; or

19.1.3 The failure by Tenant to observe or perform according to the provisions of Articles 5, 14, 17 or 18 of this Lease or any provision of the Tenant Work Letter, where, in each instance, such failure continues for more than five(5) days after notice from Landlord; or

19.1.4 Except as set forth in this Section 19.1, any failure by Tenant to observe or perform any other provision, covenant or condition of this Lease to be observed or performed by Tenant where such failure continues for thirty (30) days after written notice thereof from Landlord to Tenant; provided that if the nature of such default is such that the same cannot reasonably be cured within a thirty (30) day period, no Event of Default shall be deemed to have occurred under this Section 19.1.4 if Tenant diligently commences such cure within such period and thereafter diligently proceeds to rectify and cure such default.

Any notices to be provided by Landlord under this Section 19.1 shall be in lieu of, and not in addition to, any notice required under Section 1161 et seq. of the Code of Civil Procedure, and may be served on Tenant in the manner allowed for service of notices under this Lease.

19.2 **Remedies Upon Event of Default.** Upon the occurrence of any Event of Default by Tenant, Landlord shall have, in addition to any other remedies available to Landlord at law or in equity (all of which remedies shall be distinct, separate and cumulative), the option to pursue any one or more of the following remedies (including, without limitation, during any eviction moratorium, to the extent allowed by Applicable Laws), each and all of which shall be cumulative and nonexclusive, without any notice or demand whatsoever.

19.2.1 Terminate this Lease in accordance with applicable legal procedures, in which event Tenant shall immediately surrender the Premises to Landlord; and Landlord may recover from Tenant the following:

- (i) The worth at the time of award of any unpaid rent which has been earned at the time of such termination; plus
- (ii) The worth at the time of award of the amount by which the unpaid rent which would have been earned after termination until the time of award exceeds the amount of such rental loss that Tenant proves could have been reasonably avoided; plus
- (iii) The worth at the time of award of the amount by which the unpaid rent for the balance of the Lease Term after the time of award exceeds the amount of such rental loss that Tenant proves could have been reasonably avoided; plus
- (iv) Any other amount necessary to compensate Landlord for all the detriment proximately caused by Tenant's failure to perform its obligations under this Lease or which in the ordinary course of things would be likely to result therefrom, specifically including but not limited to, brokerage commissions and advertising expenses incurred, expenses of remodeling the Premises or any portion thereof for a new tenant, whether for the same or a different use, and any special concessions made to obtain a new tenant; and
- (v) At Landlord's election, such other amounts in addition to or in lieu of the foregoing as may be permitted from time to time by Applicable Laws.

The term "**rent**" as used in this Section 19.2 shall be deemed to be and to mean all sums of every nature required to be paid by Tenant pursuant to the terms of this Lease, whether to Landlord or to others. As used in Sections 19.2.1(i) and (ii), above, the "worth at the time of award" shall be computed by allowing interest at the Interest Rate. As used in Section 19.2.1(iii) above, the "**worth at the time of award**" shall be computed by discounting such amount at the discount rate of the Federal Reserve Bank of San Francisco at the time of award plus one percent (1%).

19.2.2 Landlord shall have the remedy described in California Civil Code Section 1951.4 (lessor may continue lease in effect after lessee's breach and abandonment and recover rent as it becomes due, if lessee has the right to sublet or assign, subject only to reasonable limitations). Accordingly, if Landlord does not elect to terminate this Lease on account of any Event of Default by Tenant, Landlord may, from time to time, without terminating this Lease, enforce all of its rights and remedies under this Lease, including the right to recover all rent as it becomes due.

19.2.3 Landlord shall at all times have the rights and remedies (which shall be cumulative with each other and cumulative and in addition to those rights and remedies available under Sections 19.2.1 and 19.2.2 above, or any law or other provision of this Lease), without prior demand or notice except as required by Applicable Laws, to seek any declaratory, injunctive or other equitable relief, and specifically enforce this Lease, or restrain or enjoin a violation or breach of any provision hereof.

19.3 **Subleases of Tenant.** If Landlord elects to terminate this Lease on account of any Event of Default, Landlord shall have the right to terminate any and all subleases, licenses, concessions or other consensual arrangements for possession entered into by Tenant and affecting the Premises or may, in Landlord's sole discretion, succeed to Tenant's interest in such subleases, licenses, concessions or arrangements. In the event of Landlord's election to succeed to Tenant's interest in any such subleases, licenses, concessions or arrangements, Tenant shall, as of the date of notice by Landlord of such election, have no further right to or interest in the rent or other consideration receivable thereunder.

19.4 **Efforts to Relet.** No re-entry or repossession, repairs, maintenance, changes, alterations and additions, reletting, appointment of a receiver to protect Landlord's interests hereunder, or any other action or omission by Landlord shall be construed as an election by Landlord to terminate this Lease or Tenant's right to possession, or to accept a surrender of the Premises, nor shall same operate to release Tenant in whole or in part from any of Tenant's

obligations hereunder, unless express written notice of such intention is sent by Landlord to Tenant. Tenant hereby irrevocably waives any right otherwise available under any law to redeem or reinstate this Lease.

#### 19.5 **Landlord Default.**

19.5.1 **General.** Notwithstanding anything to the contrary set forth in this Lease, Landlord shall not be in default in the performance of any obligation required to be performed by Landlord pursuant to this Lease unless Landlord fails to perform such obligation within thirty (30) days after the receipt of notice from Tenant specifying in detail Landlord's failure to perform; provided, however, if the nature of Landlord's obligation is such that more than thirty (30) days are required for its performance, then Landlord shall not be in default under this Lease if it shall commence such performance within such thirty (30) day period and thereafter diligently pursue the same to completion. Upon any such default by Landlord under this Lease, Tenant may, except as otherwise specifically provided in this Lease to the contrary, exercise any of its rights provided at law or in equity.

19.5.2 **Abatement of Rent.** In the event that Tenant is prevented from using, and does not use, the Premises or any portion thereof, as a result of (i) any repair, maintenance or alteration performed by Landlord, or which Landlord failed to perform, after the Lease Commencement Date and required by this Lease, which substantially interferes with Tenant's use of the Premises, or (ii) any failure to provide services, utilities or access to the Premises as required by this Lease (either such set of circumstances as set forth in items (i) or (ii), above, to be known as an "Abatement Event"), then Tenant shall give Landlord notice of such Abatement Event, and if such Abatement Event continues for five (5) consecutive business days after Landlord's receipt of any such notice (the "Eligibility Period"), then the Base Rent, Tenant's Share of Direct Expenses, and Tenant's obligation to pay for parking (to the extent not utilized by Tenant) shall be abated or reduced, as the case may be, after expiration of the Eligibility Period for such time that Tenant continues to be so prevented from using, and does not use for the normal conduct of Tenant's business, the Premises or a portion thereof, in the proportion that the rentable area of the portion of the Premises that Tenant is prevented from using, and does not use, bears to the total rentable area of the Premises; provided, however, in the event that Tenant is prevented from using, and does not use, a portion of the Premises for a period of time in excess of the Eligibility Period and the remaining portion of the Premises is not sufficient to allow Tenant to effectively conduct its business therein, and if Tenant does not conduct its business from such remaining portion, then for such time after expiration of the Eligibility Period during which Tenant is so prevented from effectively conducting its business therein, the Base Rent and Tenant's Share of Direct Expenses for the entire Premises and Tenant's obligation to pay for parking shall be abated for such time as Tenant continues to be so prevented from using, and does not use, the Premises. If, however, Tenant reoccupies any portion of the Premises during such period, the Rent allocable to such reoccupied portion, based on the proportion that the rentable area of such reoccupied portion of the Premises bears to the total rentable area of the Premises, shall be payable by Tenant from the date Tenant reoccupies such portion of the Premises. To the extent an Abatement Event is caused by an event covered by Articles 11 or 13 of this Lease, then Tenant's right to abate rent and/or terminate this Lease shall be governed by the terms of such Article 11 or 13, as applicable, and the Eligibility Period shall not be applicable thereto. Such right to abate Base Rent and Tenant's Share of Direct Expenses shall be Tenant's sole and exclusive remedy for rent abatement at law or in equity for an Abatement Event. Except as provided in this Section 19.5.2, nothing contained herein shall be interpreted to mean that Tenant is excused from paying Rent due hereunder.

**20. COVENANT OF QUIET ENJOYMENT.** Landlord covenants that Tenant, on paying the Rent, charges for services and other payments herein reserved and on keeping, observing and performing all the other terms, covenants, conditions, provisions and agreements herein contained on the part of Tenant to be kept, observed and performed, shall, during the Lease Term, peaceably and quietly have, hold and enjoy the Premises subject to the terms, covenants, conditions, provisions and agreements hereof without interference by any persons lawfully claiming by or through Landlord. The foregoing covenant is in lieu of any other covenant express or implied.

**21. SECURITY DEPOSIT.** Concurrently with Tenant's execution of this Lease, Tenant shall deposit with Landlord a security deposit (the "Security Deposit") in the amount set forth in Section 8 of the Summary, as security for the faithful performance by Tenant of all of its obligations under this Lease. If Tenant defaults with respect to any provisions of this Lease beyond any applicable notice and cure period, including, but not limited to, the provisions relating to the payment of Rent, or the removal requirements in Article 15, Landlord may, without notice to Tenant, but shall not be required to, apply all or any part of the Security Deposit for the payment of any Rent or any other sum

in default. Tenant shall, within ten (10) days of demand therefor, restore the Security Deposit to its original amount. Tenant's failure to timely restore the Security Deposit to its original amount shall constitute an Event of Default under this Lease with no requirement for any additional notice or cure period. The Security Deposit is not an advance payment of Rent or a measure or limit of Landlord's damages upon an Event of Default. Any unapplied portion of the Security Deposit shall be returned to Tenant, or, at Landlord's option, to the last assignee of Tenant's interest hereunder, within sixty (60) days following the expiration of the Lease Term. Tenant shall not be entitled to any interest on the Security Deposit. Tenant hereby irrevocably waives and relinquishes any and all rights, benefits, or protections, if any, Tenant now has, or in the future may have, under Section 1950.7 of the California Civil Code (except 1950.7(b) relating to the priority of Tenant's claim to the Security Deposit), any successor statute, and all other provisions of law, now or hereafter in effect, including, but not limited to, any provision of law which (i) establishes the time frame by which a landlord must refund a security deposit under a lease, and/or (ii) provides that a landlord may claim from a security deposit only those sums reasonably necessary to remedy defaults in the payment of rent, to repair damage caused by a tenant, or to clean the subject premises. Tenant acknowledges and agrees that (a) any statutory time frames for the return of a security deposit are superseded by the express period identified in this Article 21, above, and (b) rather than be so limited, Landlord may claim from the Security Deposit (1) any and all sums expressly identified in this Article 21, above, and (2) any additional sums reasonably necessary to compensate Landlord for any and all losses or damages caused by Tenant's default of this Lease, including, but not limited to, all damages or rent due upon termination of this Lease pursuant to Section 1951.2 of the California Civil Code.

**22. COMMUNICATIONS AND COMPUTER LINES.** Tenant may install, maintain, replace, remove or use any communications or computer wires and cables serving the Premises (collectively, the "**Lines**"), provided that Tenant shall obtain Landlord's prior written consent, use an experienced and qualified contractor reasonably approved in writing by Landlord, and comply with all of the other provisions of Articles 7 and 8 of this Lease. Tenant shall pay all costs in connection therewith. Landlord reserves the right, upon notice to Tenant prior to the expiration or earlier termination of this Lease, to require that Tenant, at Tenant's sole cost and expense, remove any Lines located in or serving the Premises which were installed by or on behalf of Tenant prior to the expiration or earlier termination of this Lease.

## **23. SIGNS**

**23.1 Lobby Directory and Suite Signage.** Landlord, at its initial cost and expense, shall install (i) Building standard suite entry signage, and (ii) Building standard common lobby and directory signage.

**23.2 Monument Sign.** Subject to Landlord's prior written approval, which shall not be unreasonably withheld, conditioned or delayed, and provided all signs are in keeping with the quality, design and style of the Building and Project, Landlord, at its sole cost and expense (provided any subsequent changes shall be at Tenant's sole cost and expense), shall install Tenant's identification signage ("**Tenant Monument Sign**") on the Project's monument sign located at the corner of Wateridge Circle and Lusk Boulevard (the "**Monument Sign**"). The Tenant Monument Sign shall be subject to all required governmental approvals, if any, and any conditions set forth in the Underlying Documents. The Tenant Monument Sign shall be repaired and maintained by Landlord and the cost thereof shall be included in Operating Expenses to the extent not excluded by the terms of Article 4. The graphics, materials, color, design, lettering, lighting, size, illumination, specifications and exact location of Tenant Monument Sign on the Monument Sign (collectively, the "**Sign Specifications**") shall be subject to the prior written approval of Landlord, which approval shall not be unreasonably withheld, conditioned or delayed, and shall be consistent and compatible with the quality and nature of the Project.

**23.3 Prohibited Signage and Other Items.** Any signs, notices, logos, pictures, names or advertisements which are installed and that have not been separately approved by Landlord may be removed upon five (5) days notice to Tenant by Landlord at the sole expense of Tenant. Tenant may not install any signs on the exterior or roof of the Project or the Common Areas. Any signs, window coverings, or blinds (even if the same are located behind the Landlord-approved window coverings for the Building), or other items visible from the exterior of the Premises or Building, shall be subject to the prior approval of Landlord, in its sole discretion.

**24. COMPLIANCE WITH LAW.** From and after Landlord's delivery of the Premises to Tenant, Tenant shall not do anything or suffer anything to be done in or about the Premises or the Project which will in any way conflict

with any law, statute, ordinance or other rule, directive, order, regulation, guideline or requirement of any governmental entity or governmental agency now in force or which may hereafter be enacted or promulgated (collectively, "**Applicable Laws**"). At its sole cost and expense, Tenant shall promptly comply with any Applicable Laws (including the making of any alterations to the Premises required by Applicable Laws) which relate to (i) Tenant's use of the Premises, and (ii) Tenant's Repair Obligations. Should any standard or regulation now or hereafter be imposed on Landlord or Tenant by a state, federal or local governmental body charged with the establishment, regulation and enforcement of occupational, health or safety standards for employers, employees, landlords or tenants, then Tenant shall, at its sole cost and expense, comply promptly with such standards or regulations. The judgment of any court of competent jurisdiction or the admission of Tenant in any judicial action, regardless of whether Landlord is a party thereto, that Tenant has violated any of said governmental measures, shall be conclusive of that fact as between Landlord and Tenant. For purposes of Section 1938 of the California Civil Code, Landlord hereby discloses to Tenant, and Tenant hereby acknowledges, that the Project, Building and Premises have not undergone inspection by a Certified Access Specialist (CASP). As required by Section 1938(e) of the California Civil Code, Landlord hereby states as follows: "A Certified Access Specialist (CASP) can inspect the subject premises and determine whether the subject premises comply with all of the applicable construction-related accessibility standards under state law. Although state law does not require a CASp inspection of the subject premises, the commercial property owner or lessor may not prohibit the lessee or tenant from obtaining a CASp inspection of the subject premises for the occupancy or potential occupancy of the lessee or tenant, if requested by the lessee or tenant. The parties shall mutually agree on the arrangements for the time and manner of the CASp inspection, the payment of the fee for the CASp inspection, and the cost of making any repairs necessary to correct violations of construction-related accessibility standards within the premises." In furtherance of the foregoing, Landlord and Tenant hereby agree as follows: (a) any CASp inspection requested by Tenant shall be conducted, at Tenant's sole cost and expense, by a CASp approved in advance by Landlord; and (b) pursuant to Article 24 below, Tenant, at its cost, is responsible for making any repairs within the Premises to correct violations of construction-related accessibility standards; and, if anything done by or for Tenant in its use or occupancy of the Premises shall require repairs to the Building (outside the Premises) to correct violations of construction-related accessibility standards, then Tenant shall, at Landlord's option, either perform such repairs at Tenant's sole cost and expense or reimburse Landlord upon demand, as Additional Rent, for the cost to Landlord of performing such repairs. Landlord shall comply with all Applicable Laws relating to the Base Building, provided that compliance with such Applicable Laws is not the responsibility of Tenant under this Lease, and provided further that Landlord's failure to comply therewith would prohibit Tenant from obtaining or maintaining a certificate of occupancy for the Premises, or would unreasonably and materially affect the safety of Tenant's employees or create a significant health hazard for Tenant's employees, or would otherwise materially and adversely affect Tenant's use of or access to the Premises. Landlord shall be permitted to include in Operating Expenses any costs or expenses incurred by Landlord under this Article 24 to the extent not prohibited by the terms of Article 4 of this Lease, above.

**25. LATE CHARGES.** If any installment of Rent or any other sum due from Tenant shall not be received by Landlord or Landlord's designee within five (5) business days after Tenant's receipt of written notice from Landlord that said amount is past due (the "**Late Payment Notice**"), then Tenant shall pay to Landlord a late charge equal to five percent (5%) of the overdue amount; provided, however, if Tenant has previously received one (1) or more notices from Landlord during the immediately preceding twelve (12) month period stating that Tenant failed to pay any Rent or any other sum required to be paid by Tenant under this Lease when due, then Landlord shall not be required to deliver a notice to Tenant and a late charge shall immediately become payable to Landlord upon any failure by Tenant to pay any Rent or any other sum required to be paid under the Lease when due. The parties agree that such late charge represents a fair and reasonable estimate of the costs that Landlord will incur by reason of such late payment by Tenant. The late charge shall be deemed Additional Rent and the right to require it shall be in addition to all of Landlord's other rights and remedies hereunder or at law and shall not be construed as limiting Landlord's remedies in any manner. In addition to the late charge described above, any Rent or other amounts owing hereunder which are not paid within ten (10) days after the date they are due shall bear interest from the date when due until paid at an annual interest rate (the "**Interest Rate**") equal to the lesser of (i) the annual "Bank Prime Loan" rate cited in the Federal Reserve Statistical Release Publication H.15(519), published weekly (or such other comparable index as Landlord and Tenant shall reasonably agree upon if such rate ceases to be published), plus four (4) percentage points, and (ii) the highest rate permitted by Applicable Laws.

## 26. LANDLORD'S RIGHT TO CURE DEFAULT; PAYMENTS BY TENANT

26.1 **Landlord's Cure.** All covenants and agreements to be kept or performed by Tenant under this Lease shall be performed by Tenant at Tenant's sole cost and expense and without any reduction of Rent, except to the extent, if any, otherwise expressly provided herein. If Tenant shall fail to perform any obligation under this Lease, and such failure shall continue, following notice from Landlord, in excess of the time allowed under Section 19, above, unless a specific time period is otherwise stated in this Lease, Landlord may, but shall not be obligated to, make any such payment or perform any such act on Tenant's part without waiving its rights based upon any default of Tenant and without releasing Tenant from any obligations hereunder.

26.2 **Tenant's Reimbursement.** Except as may be specifically provided to the contrary in this Lease, Tenant shall pay to Landlord, within thirty (30) days following delivery by Landlord to Tenant of statements therefor: sums equal to expenditures reasonably made and obligations incurred by Landlord in connection with the remedying by Landlord of Tenant's defaults pursuant to the provisions of Section 26.1. Tenant's obligations under this Section 26.2 shall survive the expiration or earlier termination of the Lease Term.

27. **ENTRY BY LANDLORD.** Landlord reserves the right at all reasonable times and upon not less than at least forty-eight (48) hours prior notice to Tenant (except in the case of an emergency, in which case no prior notice is required) to enter the Premises to (i) inspect them; (ii) show the Premises to prospective purchasers, or to current or prospective mortgagees or insurers, or during the last eight (8) months of the Lease Term, to prospective tenants; (iii) post notices of non-responsibility; or (iv) pursuant to Section 7.2 above. Notwithstanding anything to the contrary contained in this Article 27, Landlord may enter the Premises at any time without notice to (a) perform any services required of Landlord; (b) take possession due to any breach of this Lease in the manner provided herein; and (c) perform any covenants of Tenant which Tenant fails to perform. Landlord may make any such entries without the abatement of Rent, (except as otherwise provided in this Lease), and may take such reasonable steps as required to accomplish the stated purposes; provided, however, any such entry (other than under (b) above) shall be performed in a manner so as not to unreasonably interfere with Tenant's use of the Premises and, except for (x) emergencies, or (y) repairs, alterations, improvements or additions required by Applicable Laws, shall be performed after normal business hours if reasonably practical. Tenant hereby waives any Losses for any injuries or inconvenience to or interference with Tenant's business, and/ or lost profits occasioned thereby, provided that the foregoing shall not limit Landlord's liability, if any, pursuant to applicable law for personal injury and property damage to the extent caused by the gross negligence or willful misconduct of Landlord, its agents, employees or contractors. Provided that Landlord employs commercially reasonable efforts to minimize interference with the conduct of Tenant's business in connection with entries into the Premises, Tenant hereby waives any claims for, any loss of occupancy or quiet enjoyment of the Premises in connection with such entries. For each of the above purposes, Landlord shall at all times have a key with which to unlock all the doors in the Premises, excluding Tenant's vaults, safes and other areas designated in advance by Tenant as "confidential" or "proprietary". In an emergency, Landlord shall have the right to use any means that Landlord may deem proper to open the doors in and to the Premises. Any entry into the Premises by Landlord in the manner hereinbefore described shall not be deemed to be a forcible or unlawful entry into, or a detainer of, the Premises, or an actual or constructive eviction of Tenant from any portion of the Premises. Tenant shall have the right to have a representative accompany Landlord at all times to the extent reasonably practicable under the circumstances (provided that Landlord shall not be required to delay any such entry if Tenant's representative is not available). Notwithstanding anything to the contrary set forth in this Article 27, Tenant may designate in writing certain reasonable areas of the Premises as "**Secured Areas**" should Tenant require such areas for the purpose of securing certain valuable property or confidential information; provided, that the Secure Area does not block access to Building Systems or other areas of the Building to which Landlord requires regular access. In connection with the foregoing, Landlord shall not enter such Secured Areas except in the event of an emergency or pursuant to Section 7.2, above. Landlord need not clean any area designated by Tenant as a Secured Area and shall only maintain or repair such secured areas to the extent (i) such repair or maintenance is required in order to maintain and repair the Base Building; (ii) as required by Applicable Law, or (iii) in response to specific requests by Tenant and in accordance with a schedule reasonably designated by Tenant, subject to Landlord's reasonable approval.

28. **TENANT PARKING.** Tenant shall have the right without any additional charge during the Lease Term and any extension thereof (except to the extent of costs included in Direct Expenses), to use the amount of parking set forth in Section 9 of the Summary, in the on-site parking facility (or facilities) which serve the Project. Tenant shall abide

by all reasonable rules and regulations which are prescribed from time to time for the orderly operation and use of the parking facility where the parking spaces are located (including any sticker or other identification system established by Landlord and the prohibition of vehicle repair and maintenance activities in the parking facilities), and shall cooperate in seeing that Tenant's employees and visitors also comply with such rules and regulations. Tenant's use of the Project parking facility shall be at Tenant's sole risk and Tenant acknowledges and agrees that Landlord shall have no liability whatsoever for damage to the vehicles of Tenant, its employees and/or visitors, or for other personal injury or property damage or theft relating to or connected with the parking rights granted herein or any of Tenant's, its employees' and/or visitors' use of the parking facilities, except to the extent caused by any gross negligence or willful misconduct of Landlord or Landlord Parties.

## 29. MISCELLANEOUS PROVISIONS

29.1 **Terms; Captions.** The words “**Landlord**” and “**Tenant**” as used herein shall include the plural as well as the singular. The necessary grammatical changes required to make the provisions hereof apply either to corporations or partnerships or individuals, men or women, as the case may require, shall in all cases be assumed as though in each case fully expressed. The captions of Articles and Sections are for convenience only and shall not be deemed to limit, construe, affect or alter the meaning of such Articles and Sections.

29.2 **Binding Effect.** Subject to all other provisions of this Lease, each of the covenants, conditions and provisions of this Lease shall extend to and shall, as the case may require, bind or inure to the benefit not only of Landlord and of Tenant, but also of their respective heirs, personal representatives, successors or assigns, provided this clause shall not permit any assignment by Tenant contrary to the provisions of Article 14 of this Lease.

29.3 **No Air Rights.** No rights to any view or to light or air over any property, whether belonging to Landlord or any other person, are granted to Tenant by this Lease. If at any time any windows of the Premises are temporarily darkened or the light or view therefrom is obstructed by reason of any repairs, improvements, maintenance or cleaning in or about the Project, the same shall be without liability to Landlord and without any reduction or diminution of Tenant's obligations under this Lease.

### 29.4 **Intentionally Omitted.**

29.5 **Transfer of Landlord's Interest.** Landlord has the right to transfer all or any portion of its interest in the Project or Building and in this Lease, and in the event of any such transfer, Landlord shall automatically be released from all liability under this Lease, to the extent assumed by such transferee and Tenant agrees to look solely to such transferee for the performance of Landlord's obligations hereunder after the date of transfer, and such transferee shall be deemed to have fully assumed and be liable for all obligations of this Lease to be performed by Landlord, including the return of any Security Deposit, and Tenant shall attorn to such transferee. Landlord may also assign its interest in this Lease to a mortgagee as additional security, but such an assignment shall not release Landlord from its obligations hereunder and Tenant shall continue to look to Landlord for the performance of its obligations hereunder.

29.6 **Prohibition Against Recording.** Except as provided in Section 29.4 of this Lease, neither this Lease, nor any memorandum, affidavit or other writing with respect thereto, shall be recorded by Tenant or by anyone acting through, under or on behalf of Tenant.

29.7 **Landlord's Title.** Landlord's title is and always shall be paramount to the title of Tenant. Nothing herein contained shall empower Tenant to do any act which can, shall or may encumber the title of Landlord.

29.8 **Relationship of Parties.** Nothing contained in this Lease shall be deemed or construed by the parties hereto or by any third party to create the relationship of principal and agent, partnership, joint venture or any association between Landlord and Tenant.

### 29.9 **Intentionally Omitted.**

29.10 **Time of Essence.** Time is of the essence with respect to the performance of every provision of this Lease in which time of performance is a factor.

29.11 **Partial Invalidity.** If any term, provision or condition contained in this Lease shall, to any extent, be invalid or unenforceable, the remainder of this Lease, or the application of such term, provision or condition to persons or circumstances other than those with respect to which it is invalid or unenforceable, shall not be affected thereby, and each and every other term, provision and condition of this Lease shall be valid and enforceable to the fullest extent possible permitted by law.

29.12 **No Warranty.** In executing and delivering this Lease, Tenant has not relied on any representations not expressly set forth herein, including, but not limited to, any representation as to the amount of any item comprising Additional Rent or the amount of comprising Additional Rent in the aggregate or that Landlord is furnishing the same services to other tenants, at all, on the same level or on the same basis, or any warranty or any statement of Landlord which is not set forth herein or in one or more of the exhibits attached hereto.

29.13 **Landlord Exculpation.** The liability of Landlord or the Landlord Parties to Tenant for any default by Landlord under this Lease or arising in connection herewith or with Landlord's operation, management, leasing, repair, renovation, alteration or any other matter relating to the Project or the Premises shall be limited solely and exclusively to an amount which is equal to the interest of Landlord in the Building and any proceeds therefrom. Neither Landlord, nor any of the Landlord Parties shall have any personal liability therefor, and Tenant hereby expressly waives and releases such personal liability on behalf of itself and all persons claiming by, through or under Tenant. The limitations of liability contained in this Section 29.13 shall inure to the benefit of Landlord's and the Landlord Parties' present and future partners, beneficiaries, officers, directors, trustees, shareholders, agents and employees, and their respective partners, heirs, successors and assigns. Under no circumstances shall any present or future partner of Landlord (if Landlord is a partnership), or trustee or beneficiary (if Landlord or any partner of Landlord is a trust), have any liability for the performance of Landlord's obligations under this Lease. Notwithstanding any contrary provision herein, neither Landlord nor the Landlord Parties shall be liable under any circumstances for injury or damage to, or interference with, Tenant's business, including but not limited to, loss of profits, loss of rents or other revenues, loss of business opportunity, loss of goodwill or loss of use, in each case, however occurring, or loss to inventory, scientific research, scientific experiments, laboratory animals, products, specimens, samples, and/or scientific, business, accounting and other records of every kind and description kept at the premises and any and all income derived or derivable therefrom, provided that the foregoing shall not limit Landlord's liability, if any, pursuant to applicable law for personal injury and property damage to the extent caused by the gross negligence or willful misconduct of Landlord, its agents, employees or contractors. Notwithstanding any contrary provision herein, except as set forth in Article 16 with respect to Tenant's holding over in the Premises following the expiration or sooner termination of this Lease, and except with respect to Tenant's use of Hazardous Materials in violation of this Lease, Tenant shall not be liable under any circumstances for consequential damages, including, but not limited to, Landlord's loss of profits or other revenues (not including, however, loss of rents), loss of business opportunity, or loss of goodwill, in each case, however occurring.

29.14 **Entire Agreement.** It is understood and acknowledged that there are no oral agreements between the parties hereto affecting this Lease and this Lease constitutes the parties' entire agreement with respect to the leasing of the Premises and supersedes and cancels any and all previous negotiations, arrangements, brochures, agreements and understandings, if any, between the parties hereto (including, without limitation, any confidentiality agreement, letter of intent, request for proposal, or similar agreement previously entered into between Landlord and Tenant in anticipation of this Lease) or displayed by Landlord to Tenant with respect to the subject matter thereof, and none thereof shall be used to interpret or construe this Lease. None of the terms, covenants, conditions or provisions of this Lease can be modified, deleted or added to except in writing signed by the parties hereto.

29.15 **Right to Lease.** Landlord reserves the absolute right to effect such other tenancies in the Project as Landlord in the exercise of its sole business judgment shall determine to best promote the interests of the Building or Project. Tenant does not rely on the fact, nor does Landlord represent, that any specific tenant or type or number of tenants shall, during the Lease Term, occupy any space in the Building or Project.



29.16 **Force Majeure.** Notwithstanding anything to the contrary contained in this Lease (but subject to the terms and conditions of this Section 29.16), any prevention, delay or stoppage due to strikes, lockouts, labor disputes, acts of God, acts of war, terrorist acts, inability to obtain services, labor, or materials or reasonable substitutes therefor, governmental actions, civil commotions, Casualty, actual or threatened public health emergency (including, without limitation, epidemic, pandemic, famine, disease, plague, quarantine, and other significant public health risk), governmental edicts, actions, declarations or quarantines by a governmental entity or health organization (including, without limitation, any shelter-in-place orders, stay at home orders or any restrictions on travel related thereto that preclude Tenant, its agents, contractors or its employees from accessing the Premises, national or regional emergency), breaches in cybersecurity, and other causes beyond the reasonable control of the party obligated to perform, regardless of whether such other causes are (i) foreseeable or unforeseeable or (ii) related to the specifically enumerated events in this Section 29.16 (collectively, a “**Force Majeure**”), notwithstanding anything to the contrary contained in this Lease, shall excuse the performance of such party for a period of time equal to any such prevention, delay or stoppage. If this Lease specifies a time period for performance of an obligation of either party, that time period shall be extended by the period of any delay in such party’s performance caused by a Force Majeure. Notwithstanding the foregoing or anything to the contrary in this Lease, in no event shall Force Majeure: excuse Tenant’s obligations to pay Rent and other charges due pursuant to this Lease. Tenant hereby waives any and all rights it might otherwise have pursuant to Section 1511 of the California Civil Code, and hereby agrees that this Section 29.16 is an express provision to the contrary.

29.17 **Waiver of Redemption by Tenant.** Tenant hereby waives, for Tenant and for all those claiming under Tenant, any and all rights now or hereafter existing to redeem by order or judgment of any court or by any legal process or writ, Tenant's right of occupancy of the Premises after any termination of this Lease.

29.18 **Notices.** All notices, demands, statements, designations, approvals or other communications (collectively, “**Notices**”) given or required to be given by either party to the other hereunder or by law shall be in writing, shall be (A) sent by United States certified or registered mail, postage prepaid, return receipt requested (“**Mail**”), (B) transmitted by telecopy, if such telecopy is promptly followed by a Notice sent by Mail, (C) delivered by a nationally recognized overnight courier, or (D) delivered personally. Any Notice shall be sent, transmitted, or delivered, as the case may be, to Tenant at the appropriate address set forth in Section 10 of the Summary, or to such other place as Tenant may from time to time designate in a Notice to Landlord, or to Landlord at the addresses set forth below, or to such other places as Landlord may from time to time designate in a Notice to Tenant. Any Notice will be deemed given (i) three (3) days after the date it is posted if sent by Mail, (ii) the date the telecopy is transmitted, (iii) the date the overnight courier delivery is made, or (iv) the date personal delivery is made. As of the Effective Date, any Notices to Landlord must be sent, transmitted, or delivered, as the case may be, to the following addresses:

SILVER I 2020, LLC  
c/o WTM Elements, LLC  
1 Belvedere Drive, Suite 200  
Mill Valley, California 94941  
Attention: Justin Wesley  
Jeremy Dorsett

with a copy to:

Allen Matkins Leck Gamble Mallory & Natsis LLP  
1901 Avenue of the Stars, Suite 1800  
Los Angeles, California 90067  
Attention: Michael E. McFadden, Esq.

29.19 **Joint and Several.** If the “Tenant” under this Lease is comprised of more than one legal entity and/or persons, then the obligations imposed upon Tenant under this Lease shall be joint and several.

29.20 **Authority.** If Tenant is a corporation, trust, partnership, limited liability company or other legal entity, each individual executing this Lease on behalf of Tenant hereby represents and warrants that (i) Tenant is duly formed and in good standing in Tenant's state of organization, (ii) Tenant is qualified to do business in California,

(iii) Tenant has full right and authority to execute and deliver this Lease, and (iv) each person signing on behalf of Tenant is authorized to do so.

29.21 **Attorneys' Fees.** In the event that either Landlord or Tenant should bring suit for the possession of the Premises, for the recovery of any sum due under this Lease, or because of the breach of any provision of this Lease or for any other relief against the other, then all costs and expenses, including reasonable attorneys' fees, incurred by the prevailing party therein shall be paid by the other party, which obligation on the part of the other party shall be deemed to have accrued on the date of the commencement of such action and shall be enforceable whether or not the action is prosecuted to judgment.

29.22 **Governing Law; WAIVER OF TRIAL BY JURY.**

29.22.1 **Governing Law.** This Lease shall be construed and enforced in accordance with the laws of the State of California. In any action or proceeding arising herefrom, Landlord and Tenant hereby consent to (i) the jurisdiction of any competent court within the State of California, and (ii) service of process by any means authorized by California law.

29.22.2 **WAIVER OF TRIAL BY JURY.** TO THE EXTENT LAWFUL IN THE STATE OF CALIFORNIA, IN THE INTEREST OF SAVING TIME AND EXPENSE, TRIAL WITHOUT A JURY IN ANY ACTION, PROCEEDING OR COUNTERCLAIM BROUGHT BY EITHER OF THE PARTIES HERETO AGAINST THE OTHER OR THEIR SUCCESSORS IN RESPECT OF ANY MATTER ARISING OUT OF OR IN CONNECTION WITH THIS LEASE, THE RELATIONSHIP OF LANDLORD AND TENANT, TENANT'S USE OR OCCUPANCY OF THE PREMISES, AND/OR ANY CLAIM FOR INJURY OR DAMAGE, OR ANY EMERGENCY OR STATUTORY REMEDY. IN THE EVENT LANDLORD COMMENCES ANY SUMMARY PROCEEDINGS OR ACTION FOR NONPAYMENT OF BASE RENT OR ADDITIONAL RENT, TENANT SHALL NOT INTERPOSE ANY COUNTERCLAIM OF ANY NATURE OR DESCRIPTION (UNLESS SUCH COUNTERCLAIM SHALL BE MANDATORY) IN ANY SUCH PROCEEDING OR ACTION, BUT SHALL BE RELEGATED TO AN INDEPENDENT ACTION AT LAW.

29.23 **Submission of Lease.** Submission of this instrument for examination or signature by Tenant does not constitute a reservation of, option for or option to lease, and it is not effective as a lease or otherwise until execution and delivery by both Landlord and Tenant.

29.24 **Brokers.** Landlord and Tenant hereby warrant to each other that they have had no dealings with any real estate broker or agent in connection with the negotiation of this Lease, excepting only the real estate brokers or agents specified in Section 12 of the Summary (the "**Brokers**"), and that they know of no other real estate broker or agent who is entitled to a commission in connection with this Lease. Each party shall indemnify and defend the other party against and hold the other party harmless from any and all Losses with respect to any leasing commission or equivalent compensation alleged to be owing on account of any dealings with any real estate broker or agent, other than the Brokers, occurring by, through, or under the indemnifying party. The terms of this Section 29.24 shall survive the expiration or earlier termination of the Lease Term. Landlord will pay any commission owed to the Brokers on account of this Lease pursuant to a separate agreement with the Brokers.

29.25 **Independent Covenants.** This Lease shall be construed as though the covenants herein between Landlord and Tenant are independent and not dependent and Tenant hereby expressly waives the benefit of any statute to the contrary and agrees that if Landlord fails to perform its obligations set forth herein, Tenant shall not be entitled to make any repairs or perform any acts hereunder at Landlord's expense or to any setoff of the Rent or other amounts owing hereunder against Landlord, except as expressly permitted herein.

29.26 **Project or Building Name, Address and Signage.** Landlord shall have the right at any time to change the address or name of the Project or Building and to install, affix and maintain any and all signs on the exterior and on the interior of the Project or Building as Landlord may, in Landlord's sole discretion, desire. Tenant shall not use the name of the Project or Building, or the name or logo of Landlord (or any of its affiliates), or use pictures or depictions of the Project or Building, in advertising or other publicity (including, without limitation, any websites or social media accounts) or for any purpose, without the prior written consent of Landlord. Notwithstanding the

foregoing, Tenant may use the name of the Building and Project as an element of Tenant's address with respect to the business to be conducted by Tenant in the Premises.

29.27 **Counterparts.** This Lease may be executed in counterparts with the same effect as if both parties hereto had executed the same document. Both counterparts shall be construed together and shall constitute a single lease.

29.28 **Intentionally Omitted.**

29.29 **Development of the Project.**

29.29.1 **Subdivision.** Landlord reserves the right to subdivide all or a portion of the Project, buildings and Common Areas. Tenant agrees to execute and deliver, upon demand by Landlord and in the form reasonably requested by Landlord, any additional documents needed to conform this Lease to the circumstances resulting from a subdivision and any all maps in connection therewith. Notwithstanding anything to the contrary set forth in this Lease, the separate ownership of portions of the Project, or any buildings and/or Common Areas, by an entity other than Landlord shall not affect the calculation of Direct Expenses or Tenant's payment of Tenant's Share of Direct Expenses.

29.29.2 **Construction of Property and Other Improvements.** Tenant acknowledges that (i) portions of the Project may be under construction following Tenant's occupancy of the Premises, including the construction of additional Project buildings, parking areas and structures, and other improvements, and (ii) that such construction may result in levels of noise, dust, obstruction of access, etc. which are in excess of that present in a fully constructed project. Tenant hereby waives any and all rent offsets or claims of constructive eviction which may arise in connection with such construction, provided, however, in undertaking any such construction, Landlord shall use commercially reasonable efforts to minimize interference with Tenant's use and quiet enjoyment of the Premises, Tenant's access to the Premises, and any other rights Tenant has under this Lease.

29.30 **No Violation.** Tenant hereby warrants and represents that neither its execution of nor performance under this Lease shall cause Tenant to be in violation of any agreement, instrument, contract, law, rule or regulation by which Tenant is bound, and Tenant shall protect, defend, indemnify and hold Landlord harmless from and against any Losses arising from Tenant's breach of this warranty and representation.

29.31 **Transportation Management.** Tenant shall fully comply with all present or future legally mandatory programs reasonably implemented by Landlord to manage parking, transportation or traffic in and around the Project and/or the Building, and in connection therewith, Tenant shall take responsible action for the transportation planning and management of all employees located at the Premises by working directly with Landlord, any governmental transportation management organization or any other transportation-related committees or entities. Such programs may include, without limitation: (i) restrictions on the number of peak-hour vehicle trips generated by Tenant; (ii) increased vehicle occupancy; (iii) implementation of an in-house ridesharing program and an employee transportation coordinator; (iv) working with employees and any Project, Building or area-wide ridesharing program manager; (v) instituting employer-sponsored incentives (financial or in-kind) to encourage employees to rideshare; and (vi) utilizing flexible work shifts for employees.

29.32 **Prohibited Persons; Foreign Corrupt Practices Act and Anti-Money Laundering.** Tenant hereby represents and warrants to Landlord that neither Tenant nor any of its affiliates, nor any of their respective members, partners or other equity holders, and none of their respective officers, directors or managers is, nor prior to or during the Lease Term, will become a person or entity with whom U.S. persons or entities are restricted from doing business under (a) the Patriot Act (as defined below), (b) any other requirements contained in the rules and regulations of the Office of Foreign Assets Control, Department of the Treasury ("OFAC") (including any "blocked" person or entity listed in the Annex to Executive Order Nos. 12947, 13099 and 13224 and any modifications thereto or thereof or any other person or entity named on OFAC's Specially Designated Blocked Persons List) or (c) any other U.S. statute, Executive Order (including the September 24, 2001, Executive Order Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit or Support Terrorism) or other governmental action (collectively, "Prohibited Persons"). Tenant further represents and warrants to Landlord that Tenant and its

employees and all persons acting on its behalf have at all times fully complied with, and are currently in full compliance with, the Foreign Corrupt Practices Act of 1977 and any other applicable anti-bribery or anti-corruption laws. Tenant is not entering into this Lease, directly or indirectly, in violation of any laws relating to drug trafficking, money laundering or predicate crimes to money laundering. As used herein, "**Patriot Act**" shall mean the USA Patriot Act of 2001, 107 Public Law 56 (October 26, 2001) and all other statutes, orders, rules and regulations of the U.S. government and its various executive departments, agencies and offices interpreting and implementing the Patriot Act.

29.33 **Signatures.** The parties hereto consent and agree that this Lease may be signed and/or transmitted by facsimile, e-mail of a .pdf document or using electronic signature technology (e.g., via DocuSign or similar electronic signature technology), and that such signed electronic record shall be valid and as effective to bind the party so signing as a paper copy bearing such party's handwritten signature. The parties further consent and agree that (1) to the extent a party signs this Lease using electronic signature technology, by clicking "SIGN", such party is signing this Lease electronically, and (2) the electronic signatures appearing on this Lease shall be treated, for purposes of validity, enforceability and admissibility, the same as handwritten signatures.

IN WITNESS WHEREOF, Landlord and Tenant have caused this Lease to be executed as of the Effective Date.

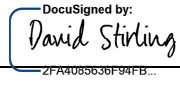
LANDLORD:

**SILVER I 2020, LLC,**  
a Delaware limited liability company

By:  \_\_\_\_\_  
Its: Vice President

TENANT:

**BIOOTHERYX, INC.,**  
a Delaware corporation

By:  \_\_\_\_\_  
David Stirling  
Print Name  
Its: Chairman

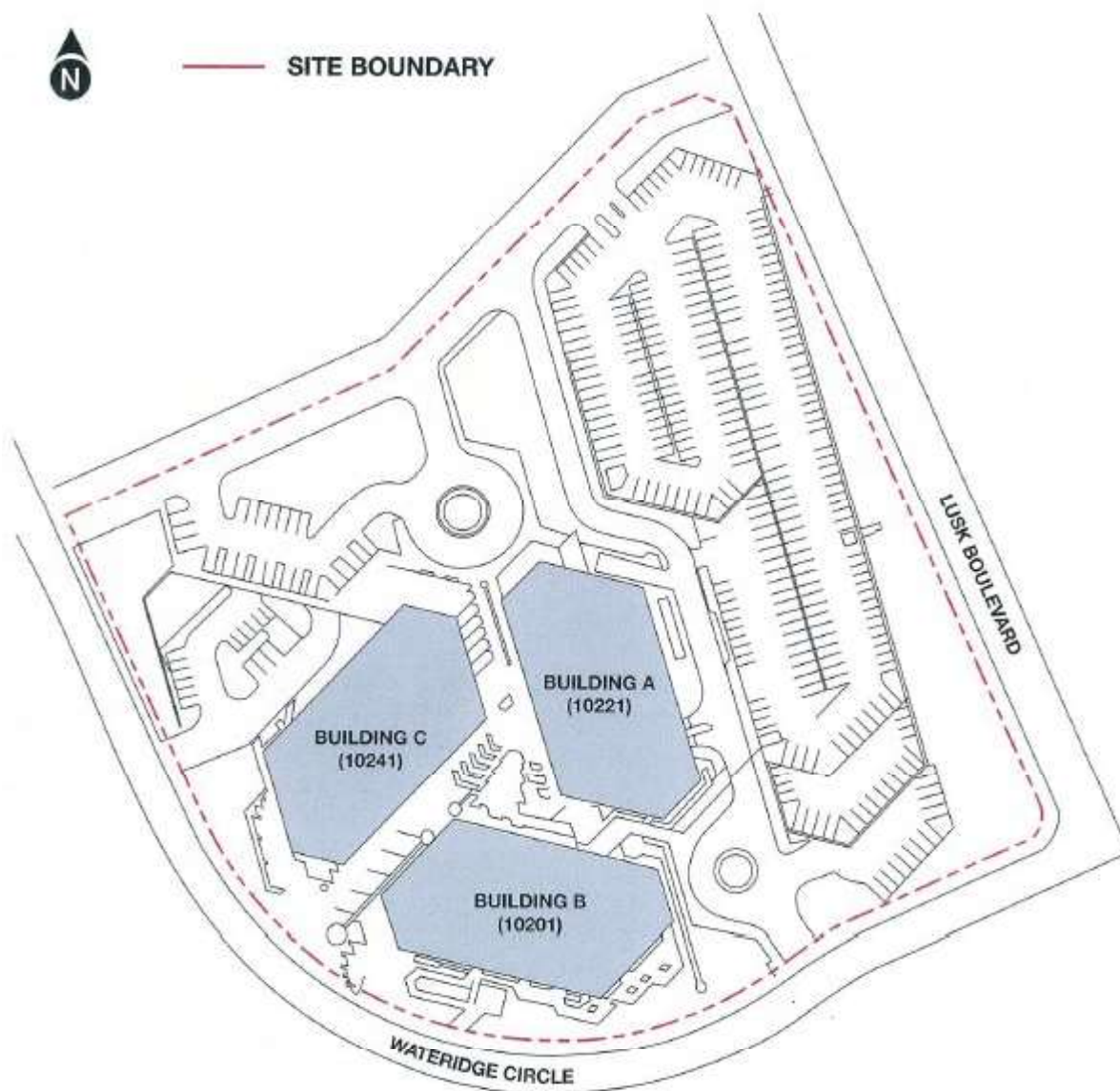
By: \_\_\_\_\_  
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Print Name  
Its: \_\_\_\_\_



**EXHIBIT A-1**

**ELEMENTS BY ALLOY PROPERTIES**

**PROJECT SITE PLAN**



**EXHIBIT B****ELEMENTS BY ALLOY PROPERTIES****TENANT WORK LETTER**

This Tenant Work Letter shall set forth the terms and conditions relating to the construction of the tenant improvements in the Premises. This Tenant Work Letter is essentially organized chronologically and addresses the issues of the construction of the Premises, in sequence, as such issues will arise during the actual construction of the Premises. All references in this Tenant Work Letter to Articles or Sections of “this Lease” shall mean the relevant portion of Articles 1 through 29 of the Lease, and all references in this Tenant Work Letter to Sections of “this Tenant Work Letter” shall mean the relevant portion of Sections 1 through 6 of this Tenant Work Letter.

**SECTION 1****TENANT IMPROVEMENTS**

Landlord has established or may establish specifications for certain Building standard components to be used in the construction of the “Tenant Improvements” (as that term is defined below) in the Premises. The quality of the Tenant Improvements shall be materially consistent with the quality of such Building standards, provided that Landlord may, at Landlord’s option, require the Tenant Improvements to comply with certain Building standards. Landlord may make changes to said specifications for Building standards from time to time.

Using Building standard materials, components and finishes, Landlord shall cause the installation and/or construction of those certain items identified on the “Approved Space Plan,” defined below (the “**Tenant Improvements**”) at Landlord's sole cost and expense; provided, however, concurrently with Tenant's execution of this Lease, Tenant shall pay Landlord \$131,971.00 as Tenant's contribution towards the costs of the Tenant Improvements (the “**Tenant's Contribution**”). The term “**Approved Space Plan**” shall mean those certain space plans prepared by McFarlane Architects, dated as of November 4, 2024 (the “**General Space Plan**”) and November 13, 2024 (the “**Tenant Parallel Work Space Plan**”) and approved by Landlord and Tenant, which Approved Space Plan is attached hereto as Schedule 1. In the event that, after the date of execution of this Lease, any revisions, changes, or substitutions shall be made (a) to any portion of the Approved Space Plan or associated Approved Working Drawings or Tenant Improvements as a result of Non-Conforming Tenant Improvements, or (b) to the Tenant Parallel Work Space Plan or associated Approved Working Drawings or Tenant Improvements as a result of Applicable Laws and other governmental orders (items (a) and (b) above are referred to herein collectively as “**Change Orders**”), any additional costs which arise in connection with such Change Orders shall be paid by Tenant to Landlord immediately upon Landlord's request as an addition to Tenant’s Contribution (as applicable “**Additional Tenant’s Contribution**”), and Landlord shall not be obligated to complete any work associated with any such Change Orders until Landlord receives such additional Tenant’s Contribution from Tenant. Immediately upon the full execution and delivery of this Lease, Tenant shall cooperate in good faith with Landlord’s architects and engineers to supply the necessary information, if any, required to allow the Landlord’s architects and engineers to complete any additional architectural and engineering drawings for the Premises in a form which is complete to allow subcontractors to bid on the work and to obtain all applicable permits and in a manner consistent with, and which are a logical extension of, the Approved Space Plan (the “**Approved Working Drawings**”). Landlord shall construct the improvements in the Premises (the “**Tenant Improvements**”) in a good and workmanlike manner pursuant to the Approved Working Drawings and shall cause the Premises to be in compliance with all Applicable Laws as of the Lease Commencement Date to the extent that Landlord's failure to comply with Applicable Laws would prohibit Tenant from obtaining or maintaining a certificate of occupancy for the Premises, or would unreasonably and materially affect the safety of Tenant's employees or create a significant health hazard for Tenant's employees, or would otherwise materially and adversely affect Tenant's use of or access to the Premises. Tenant shall make no changes, additions or modifications to the Tenant Improvements or the Approved Space Plan or require the installation of any “Non-Conforming Tenant Improvements,” as defined in Section 2, below without the prior written consent of Landlord, which consent may be withheld in Landlord’s sole discretion. Notwithstanding the foregoing or any contrary provision of this Lease, all Tenant Improvements shall be deemed Landlord’s property under the terms of this Lease. Notwithstanding any provision to the contrary set forth in this Lease or this Tenant Work Letter, but

subject to the Relocation Allowance as set forth in Section 2.2 below, Tenant shall be solely responsible, at Tenant's sole cost and expense, for acquisition and installation of all data and telephone cabling, furniture, fixtures and equipment for the Premises.

## SECTION 2

### OTHER TENANT IMPROVEMENTS; RELOCATION ALLOWANCE

2.1 **Other Tenant Improvements.** Notwithstanding anything to the contrary contained herein, Tenant shall be responsible for the cost of any items not identified on the Approved Space Plan or a logical extension of, and consistent with, the Approved Space Plan and/or any items requiring other than Building standard materials, components or finishes (collectively, the "**Non-Conforming Tenant Improvements**"). In connection therewith, any costs which arise in connection with any such Non-Conforming Tenant Improvements shall be paid by Tenant to Landlord as Additional Tenant's Contribution, prior to the implementation of any such changes, in accordance with Section 1 above.

2.2 **Relocation Allowance.** Within 30 days following the Lease Commencement Date and upon the presentation to Landlord of reasonably detailed supporting invoices detailing such expenditures, Landlord shall provide Tenant with a relocation allowance, in the amount set forth in Section 5 of the Summary (the "**Relocation Allowance**"), to be used by Tenant for moving expenses, furniture, fixtures, equipment, telephone or data cabling or wiring or other similar expenses. Notwithstanding the foregoing, Tenant shall not be entitled to receive the Relocation Allowance unless Tenant is not then in default of the Lease or this Tenant Work Letter beyond any applicable notice and cure period. If Tenant is then in default of the Lease or this Tenant Work Letter and Tenant subsequently cures such default and the Lease remains in full force and effect, then Tenant shall be entitled to receive the Relocation Allowance promptly following the date of such cure. Any furniture, reasonably moveable equipment, telephone or data cabling or wiring or other similar non-fixture items purchased using the Relocation Allowance shall be deemed Tenant's property.

## SECTION 3

### CONTRACTOR'S WARRANTIES AND GUARANTIES

Landlord hereby non-exclusively assigns to Tenant all warranties and guaranties by the contractor who constructs the Tenant Improvements (the "**Contractor**") relating to the Tenant Improvements (provided that Landlord reserves all rights in connection with such warranties and guaranties by the Contractor), and Tenant hereby waives all claims against Landlord relating to or arising out of the design and construction of the Tenant Improvements, except to the extent of any claims based upon the gross negligence or willful misconduct of Landlord. Landlord will obtain industry standard warranties for the Tenant Improvements, including a warranty that the Tenant Improvements will be free from defects for a period of at least one (1) year after completion.

## SECTION 4

### RESERVED

## SECTION 5

### COMPLETION OF THE TENANT IMPROVEMENTS; LEASE COMMENCEMENT DATE

5.1 **Substantial Completion.** For purposes of this Lease, the Premises shall be deemed to be "substantially completed" (herein referred to as "**Substantial Completion**" or "**Substantially Complete**") upon (A) the completion of construction of the Tenant Improvements in the Premises pursuant to the Approved Working Drawings, excluding the "Temporary Construction Area," as that term is defined below, with the exception of (i) any punch list items and any tenant fixtures, work-stations, built-in furniture, or equipment to be installed by Tenant or under the supervision of Contractor, and (ii) the construction of the Temporary Construction Area, provided that the incomplete construction of the Temporary Construction Area does not materially interfere with Tenant's use and



occupancy of the Premises, and (B) the issuance of a certificate of occupancy, temporary certificate of occupancy (or the legal equivalent) if and to the extent required in order for Tenant to legally use the Premises (excluding the Temporary Construction Area) for the Permitted Use. As used herein, the “**Temporary Construction Area**” shall mean that certain portion of the lab in the Premises set forth on Schedule 2, attached hereto. Landlord shall cause all Tenant Improvements in the Temporary Construction Area to be completed as soon as reasonably possible following the Substantial Completion of the Premises. Landlord shall use commercially reasonable efforts to complete the Tenant Improvements in the Temporary Construction Area in a manner which does not materially, adversely affect Tenant's use of or access to the remaining portions of the Premises.

5.2 **Delay of the Substantial Completion of the Premises.** Except as provided in this Section 5.2, the Lease Commencement Date shall occur as set forth in Section 2.1 of this Lease and Section 5.1, above. If there shall be a delay or there are delays in the Substantial Completion of the Tenant Improvements or in the occurrence of any of the other conditions precedent to the Lease Commencement Date, as set forth in Section 2.1 of this Lease, as a direct, indirect, partial, or total result of any Tenant Delay, then, notwithstanding anything to the contrary set forth in the Lease or this Tenant Work Letter and regardless of the actual date of the Substantial Completion of the Tenant Improvements, the Possession Date shall be deemed to be the date the Possession Date would have occurred if no Tenant delay or delays, as set forth above, had occurred. A “**Tenant Delay**” shall mean the occurrence of any of the following:

5.2.1 Tenant’s failure to timely approve any matter requiring Tenant’s approval;

5.2.2 A breach by Tenant of the terms of this Tenant Work Letter or the Lease;

5.2.3 Tenant’s request for changes in the Approved Space Plan, the Tenant Improvements, or, once completed, the Approved Working Drawings, or Tenant’s request for changes which cause the Approved Working Drawings to not be a logical extension of or consistent with the Approved Space Plan;

5.2.4 Any Change Orders;

5.2.5 Tenant’s requirement for materials, components, finishes or improvements which are not available in a commercially reasonable time given the anticipated date of Substantial Completion of the Premises, as set forth in the Lease, or which are different from, or not included in, Landlord’s standard improvement package items for the Building where no reasonable substitutes exist or Tenant has refused to accept such reasonable substitutes ;

5.2.6 Any failure by Tenant to pay for in cash in advance any costs for Non-Conforming Tenant Improvements;

5.2.7 Delays in obtaining a certificate of occupancy, temporary certificate of occupancy, or final permit sign off by appropriate municipal authorities due to the Tenant’s failure to complete any tenant fixtures, work-stations (including any related fixture and/or equipment electrification), built-in furniture, or equipment (including security and other Tenant systems) to be installed by Tenant; or

5.2.8 Any other acts or omissions of Tenant, or its agents, or employees, including, without limitation, failure or delay beyond the period provided for in this Tenant Work Letter, to consult with Landlord or attend meetings or return emails or telephone calls or to respond to other correspondence from Landlord.

### 5.3 **Punch List.**

5.3.1 **Creation of Punch List.** Tenant shall use commercially reasonable efforts to submit to Landlord a list of minor unfinished work (the “**Punch List**”) on or before the date that is ten (10) business days following the date of Substantial Completion of the Premises. After approval by Landlord of the Punch List, the items of work set forth therein will be diligently completed by Landlord.

5.3.2 **Entry for Punch List Work.** Landlord may enter the Premises following the Lease Commencement Date to complete the approved Punch List. Entry by Landlord, its agents, servants and employees or contractors for

such purpose shall not constitute an actual or constructive eviction, in whole or in part, or entitle Tenant to any abatement or diminution of Rent, or relieve Tenant from any of its obligations under this lease, or impose any liability upon Landlord or its agents by reason of inconvenience or annoyance to Tenant, or injury to or interruption of Tenant's business or otherwise.

## **SECTION 6**

### **MISCELLANEOUS**

6.1 **Tenant's Entry Into the Premises Prior to Substantial Completion.** Provided that Tenant and its agents do not interfere with Contractor's work in the Building and the Premises, Contractor shall allow Tenant access to the Premises up to forty-five (45) days prior to the Substantial Completion of the Tenant Improvements (but in no event prior to the full execution and delivery of this Lease by Landlord and Tenant) for the purpose of Tenant installing overstandard equipment or fixtures (including Tenant's data and telephone equipment) in the Premises. Prior to Tenant's entry into the Premises as permitted by the terms of this Section 6.1, Tenant shall submit a schedule to Landlord and Contractor, for their approval, which schedule shall detail the timing and purpose of Tenant's entry and Tenant shall deliver to Landlord the policies or certificates evidencing Tenant's insurance as required under the terms of Article 10 of this Lease. Tenant shall hold Landlord harmless from and indemnify, protect and defend Landlord against any loss or damage to the Building or Premises and against injury to any persons caused by Tenant's actions pursuant to this Section 6.1.

6.2 **Freight Elevators.** Landlord shall, consistent with its obligations to other tenants of the Building, make any freight elevator reasonably available to Tenant in connection with initial decorating, furnishing and moving into the Premises at no charge to Tenant.

6.3 **Tenant's Representative.** Tenant has designated Sandra Clark as its sole representative with respect to the matters set forth in this Tenant Work Letter (whose e-mail address for the purposes of this Tenant Work Letter is sandra-spacematters@earthlink.net), who, until further notice to Landlord, shall have full authority and responsibility to act on behalf of the Tenant as required in this Tenant Work Letter.

6.4 **Landlord's Representatives.** Landlord has designated Project Management Advisors as "Project Managers" (whose respective e-mail addresses for the purposes of this Tenant Work Letter are, respectively, \_\_\_\_\_), who, until further notice to Tenant, shall have full authority and responsibility to act on behalf of the Landlord as required in this Tenant Work Letter.

6.5 **Tenant's Agents.** To the extent required by contracts to which Landlord is a party, all contractors, subcontractors, laborers, materialmen, and suppliers retained directly by Tenant shall all be union labor in compliance with the then master labor agreements.

6.5 **Labor Harmony.** Tenant shall not use (and upon notice from Landlord shall cease using) contractors, subcontractors, services, workmen, labor, materials or equipment that, in Landlord's reasonable judgment, would disturb labor harmony with the workforce or trades engaged in performing other work, labor or services in or about the Project, Building or the Common Areas and/or that otherwise results in picketing or other labor disturbances at the Project and/or on property adjacent thereto. Without limitation of the foregoing, Tenant hereby acknowledges and agrees that Landlord shall have the right to require Tenant retain union labor in connection with the construction of any Tenant Improvements.

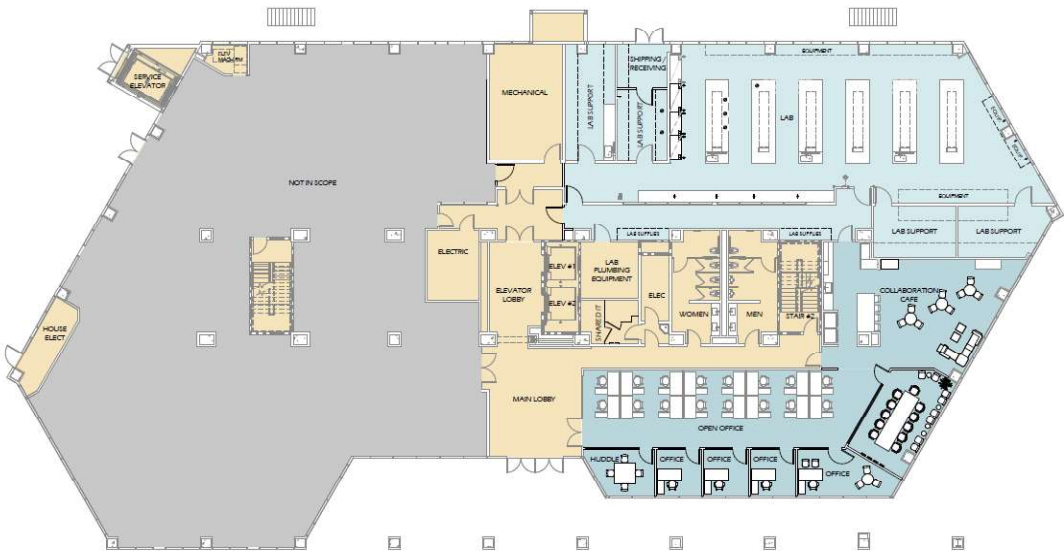
6.5 **Time of the Essence in This Tenant Work Letter.** Unless otherwise indicated, all references herein to a "number of days" shall mean and refer to calendar days. In all instances where Tenant is required to approve or deliver an item, if no written notice of approval is given or the item is not delivered within the stated time period, at Landlord's sole option, at the end of such period the item shall automatically be deemed approved or delivered by Tenant and the next succeeding time period shall commence.

6.6 **Tenant's Lease Default.** Notwithstanding any provision to the contrary contained in this Lease or this Tenant Work Letter, if any Event of Default by Tenant under this Lease or this Tenant Work Letter occurs, then

(i) in addition to all other rights and remedies granted to Landlord pursuant to this Lease, Landlord shall have the right to cause the cessation of construction of the Tenant Improvements and any other work required to be performed by Landlord pursuant to this Tenant Work Letter (in which case, Tenant shall be responsible for any delay and any costs occasioned thereby), and (ii) all other obligations of Landlord under the terms of this Tenant Work Letter shall be forgiven until such time as such default is cured pursuant to the terms of the Lease.

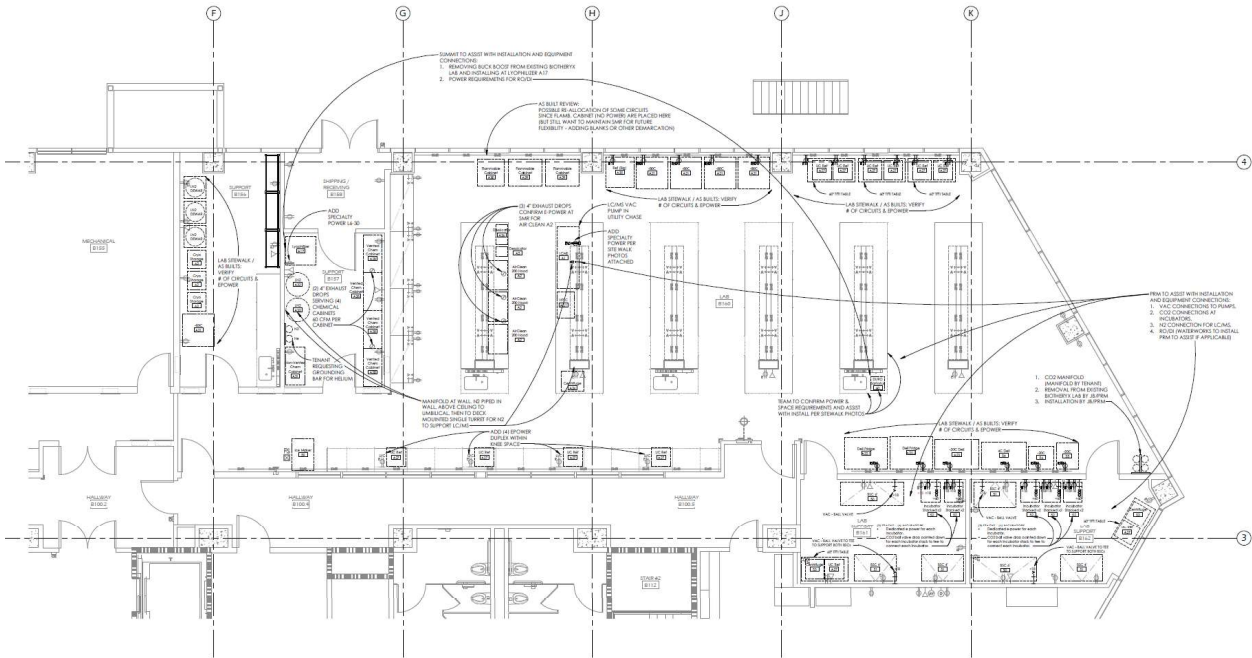
6.7 **Cooperation by Tenant.** Tenant acknowledges that the timing of the Substantial Completion of the Premises is of the utmost importance to Landlord. Accordingly, Tenant hereby agrees to fully and diligently cooperate with all reasonable requests by Landlord in connection with or related to the design and construction of the Tenant Improvements, and in connection therewith, shall respond to Landlord's reasonable requests related to the Tenant Improvements (including, without limitation, with respect to meetings, information and/or approvals), except as specifically set forth herein to the contrary, within two (2) business days following request by Landlord.

SCHEDULE 1 TO EXHIBIT B  
APPROVED SPACE PLAN



BIOOTHERYX - 10201 WATERIDGE CIRCLE  
BUILDING B - FIRST LEVEL LEASE EXHIBIT  
SCALE: 1/16" = 1'-0"

11/04/24



10201 WATERIDGE CIRCLE  
ELEMENTS BIOOTHERYX - LEVEL 1 ENLARGED LAB PLAN - TENANT PARALLEL WORK  
SCALE: 1/4" = 1'-0" (PRINTED ON A 22" x 34" SHEET)

11/13/2024



SCHEDULE 1 TO  
EXHIBIT B

ELEMENTS BY ALLOY PROPERTIES  
Biotheryx, Inc.  
Lease



**EXHIBIT C**

**ELEMENTS BY ALLOY PROPERTIES**

**NOTICE OF LEASE TERM DATES**

To: \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Re: Lease dated \_\_\_\_\_, 20\_\_ between \_\_\_\_\_, a \_\_\_\_\_  
("Landlord"), and \_\_\_\_\_, a \_\_\_\_\_ ("Tenant")  
concerning Suite \_\_\_\_\_ on floor(s) \_\_\_\_\_ of the building located at  
\_\_\_\_\_, California.

Gentlemen:

In accordance with the Lease (the "**Lease**"), we wish to advise you and/or confirm as follows:

1. The Lease Term shall commence on or has commenced on \_\_\_\_\_ for a term of \_\_\_\_\_ ending on \_\_\_\_\_.
2. Rent commenced to accrue on \_\_\_\_\_, in the amount of \_\_\_\_\_.
3. If the Lease Commencement Date is other than the first day of the month, the first billing will contain a pro rata adjustment. Each billing thereafter, with the exception of the final billing, shall be for the full amount of the monthly installment as provided for in the Lease.
4. Your rent checks should be made payable to \_\_\_\_\_ at \_\_\_\_\_.
5. The exact number of rentable/usable square feet within the Premises is \_\_\_\_\_ square feet.
6. Tenant's Share as adjusted based upon the exact number of usable square feet within the Premises is \_\_\_\_\_%.

**"Landlord":**

\_\_\_\_\_  
a \_\_\_\_\_

By: \_\_\_\_\_  
Its: \_\_\_\_\_

Agreed to and Accepted as  
of \_\_\_\_\_, 20\_\_.

**"Tenant":**

\_\_\_\_\_  
a \_\_\_\_\_

By: \_\_\_\_\_

Its: \_\_\_\_\_

**EXHIBIT D**

**ELEMENTS BY ALLOY PROPERTIES**

**FORM OF TENANT'S ESTOPPEL CERTIFICATE**

The undersigned as Tenant under that certain Lease (the "**Lease**") made and entered into as of \_\_\_\_\_, 20\_\_ by and between \_\_\_\_\_ as Landlord, and the undersigned as Tenant, for Premises consisting of \_\_\_\_\_ and located at \_\_\_\_\_, California, certifies as follows:

1. Attached hereto as **Exhibit A** is a true and correct copy of the Lease and all amendments and modifications thereto. The documents contained in **Exhibit A** represent the entire agreement between the parties as to the Premises.

2. The undersigned currently occupies the Premises described in the Lease, the Lease Term commenced on \_\_\_\_\_, and the Lease Term expires on \_\_\_\_\_, and the undersigned has no option to terminate or cancel the Lease or to purchase all or any part of the Premises, the Building and/or the Project.

3. Base Rent became payable on \_\_\_\_\_.

4. The Lease is in full force and effect and has not been modified, supplemented or amended in any way except as provided in **Exhibit A**.

5. Tenant has not transferred, assigned, or sublet any portion of the Premises nor entered into any license or concession agreements with respect thereto except as follows: \_\_\_\_\_.

6. Tenant shall not modify the documents contained in **Exhibit A** without the prior written consent of Landlord's mortgagee.

7. All monthly installments of Base Rent, all Additional Rent and all monthly installments of estimated Additional Rent have been paid when due through \_\_\_\_\_. The current monthly installment of Base Rent is \$ \_\_\_\_\_.

8. To Tenant's actual knowledge, all conditions of the Lease to be performed by Landlord necessary to the enforceability of the Lease have been satisfied and Landlord is not in default thereunder. In addition, the undersigned has not delivered any notice to Landlord regarding a default by Landlord thereunder. The Lease does not require Landlord to provide any rental concessions or to pay any leasing brokerage commissions.

9. No rental has been paid more than thirty (30) days in advance and no security has been deposited with Landlord except as provided in the Lease. Neither Landlord, nor its successors or assigns, shall in any event be liable or responsible for, or with respect to, the retention, application and/or return to Tenant of any security deposit paid to any prior landlord of the Premises, whether or not still held by any such prior landlord, unless and until the party from whom the security deposit is being sought, whether it be a lender, or any of its successors or assigns, has actually received for its own account, as landlord, the full amount of such security deposit.

10. As of the date hereof, to Tenant's knowledge, there are no existing defenses or offsets, or, to the undersigned's knowledge, claims or any basis for a claim, that the undersigned has against Landlord.

11. If Tenant is a corporation or partnership, Tenant hereby represents and warrants that Tenant is a duly formed and existing entity qualified to do business in California and that Tenant has full right and authority to execute and deliver this Estoppel Certificate and that each person signing on behalf of Tenant is authorized to do so.

12. To Tenant's actual knowledge, there are no actions pending against the undersigned under the bankruptcy or similar laws of the United States or any state. There are no actions pending against the undersigned



that there are no actions pending against the undersigned that, if determined or adjudicated adversely to the undersigned, could materially impair Tenant's ability to perform its obligations under the Lease, and as of the date hereof, no such adverse determination or judgment has been made.

13. To Tenant's actual knowledge, Tenant is in compliance with all federal, state and local laws, ordinances, rules and regulations affecting its use of the Premises, including, but not limited to, those laws, ordinances, rules or regulations relating to hazardous or toxic materials. To Tenant's actual knowledge, Tenant has never permitted or suffered, nor does Tenant have any knowledge of, the generation, manufacture, treatment, use, storage, disposal or discharge of any hazardous, toxic or dangerous waste, substance or material in, on, under or about the Project or the Premises or any adjacent premises or property in violation of any federal, state or local law, ordinance, rule or regulation.

14. To Tenant's actual knowledge, all tenant improvement work to be performed by Landlord under the Lease has been completed in accordance with the Lease and has been accepted by the undersigned and all reimbursements and allowances due to the undersigned under the Lease in connection with any tenant improvement work have been paid in full. To Tenant's actual knowledge, all work (if any) in the common areas required by the Lease to be completed by Landlord has been completed and all parking spaces required by the Lease have been furnished and/or all parking ratios required by the Lease have been met.

Tenant acknowledges that this Estoppel Certificate may be delivered to Landlord or to a prospective mortgagee or prospective purchaser, and acknowledges that said prospective mortgagee or prospective purchaser will be relying upon the statements contained herein in making the loan or acquiring the property of which the Premises are a part and that receipt by it of this certificate is a condition of making such loan or acquiring such property.

Executed at \_\_\_\_\_ on the \_\_\_\_ day of \_\_\_\_\_, 20\_\_.

**"Tenant":**

\_\_\_\_\_,  
a \_\_\_\_\_

By: \_\_\_\_\_  
Its: \_\_\_\_\_

By: \_\_\_\_\_  
Its: \_\_\_\_\_

EXHIBIT E

ELEMENTS BY ALLOY PROPERTIES

ENVIRONMENTAL QUESTIONNAIRE



THE CITY OF SAN DIEGO

FORM  
DS-165  
January 2024

Hazardous Materials and Processes Reporting Form

All non-residential projects (except retaining walls, fences, and similar projects) and/or multiple dwelling units (MDU) projects must have a completed Hazardous Materials Reporting Form at the time of project submittal. This information is used to determine the occupancy classification of the proposed structure(s) along with the fire and life safety protection systems and procedures required. For information regarding the completion of this form, see [Information Bulletin 116](#).

SECTION I: General Information

Project Name: 10201 Wateridge

Tenant Name: Biotheryx

Job Address: 10201 Wateridge Circle, San Diego, CA 92121

Building/Unit/Suite Number: B

Project Contact Name: Venkat Mali

Contact Phone Number: 8583549769

SECTION II: Hazardous Materials Summary

Will this project include the use, storage, or dispensing of any hazardous materials listed below? ☐ No ☐ Yes

If the answer above is "Yes," check off the applicable hazardous materials classifications and complete Table 1: Chemical Classification on Page 2 and Summary Sheets per Section IV below.

☐ Aerosols

☐ Corrosive Materials

☐ Flammable Solids

☐ Pyrophoric Materials

☐ Combustible/Flammable Liquids

☐ Cryogenics (inert or oxidizing)

☐ Organic Peroxides

☐ Toxic / Highly Toxic Materials

☐ Combustible Fibers

☐ Fireworks/Explosives

☐ Oxidizers

☐ Unstable Reactive Materials

☐ Compressed Gases

☐ Hammable Gases

☐ Oxidizing Gases

☐ Water Reactive Materials

SECTION III: Hazardous Process Summary

Will this business perform any of the hazardous processes listed below? ☒ No ☐ Yes

If the answer above is "Yes," check off the applicable hazardous materials processes below and complete Table 2: Energy Storage Systems, Table 3: Lithium-ion and Lithium Metal Battery Storage and/or Table 4: Refrigeration Systems on Page 3, as applicable. A technical report may be required for complex projects at the direction of the hazardous materials plan reviewer.

☐ Battery/Energy Storage

☐ Dry Cleaning

☐ Organic/Powder Coatings

☐ Semiconductor Fabrication

☐ Brewery/Distillery

☐ Dust-Producing Operations

☐ Plant Processing/Extraction

☐ Spray Finishing

☐ Dipping Operations

☐ Metal Plating

☐ Refrigeration Systems

☐ Welding/Cutting

SECTION IV: Hazardous Materials Classification

The classification of all chemicals stored and in use for this project is required to determine the requirements in the California Fire Code. Attached is Table 1, a sample Chemical Classification Table. The hazardous materials submittal must include an inventory of all chemicals along with a summary sheet detailing the total amounts for each hazardous classification. Each building or control area must have a separate summary sheet.

SECTION V: Declaration

I declare under penalty of perjury that, to the best of my knowledge, the responses made herein are true and correct.

Venkat Mali

10/24/2024

Name of ☐ owner/☐ occupant/☒ authorized agent (select one)

Signature

Date

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Upon request, this information is available in alternative formats for persons with disabilities.  
DS-165 (01-24)

CLEAR FORM





THE CITY OF SAN DIEGO

Table 2: Energy Storage Systems (ESS)<sup>a</sup>

| Battery Technology                           | Number of Batteries | Total Energy Capacity (kWh) | Location / Enclosure Type (Inside or Outside / Walk-in or Reach-in) |
|----------------------------------------------|---------------------|-----------------------------|---------------------------------------------------------------------|
| Capacitor ESS                                |                     |                             |                                                                     |
| Flow Batteries <sup>b</sup>                  |                     |                             |                                                                     |
| Lead-Acid Batteries (all types) <sup>c</sup> |                     |                             |                                                                     |
| Lithium-ion Batteries                        |                     |                             |                                                                     |
| Nickel Metal Hydride (Ni-MH)                 |                     |                             |                                                                     |
| Nickel-Cadmium Batteries (Ni-Cd)             |                     |                             |                                                                     |
| Other Battery Technologies                   |                     |                             |                                                                     |
| Other Electrochemical ESS Technologies       |                     |                             |                                                                     |

<sup>a</sup>For energy storage systems, please report the total energy capacity of all batteries (per battery technology type) in kWh per CFC Table 1207.1.1. Energy capacity is the total energy capable of being stored (nameplate rating), not the usable energy rating. For units rated in amp-hours, kWh shall equal rated voltage times amp-hour rating divided by 1,000. For batteries rated in watts per cell, kWh = the nameplate watts per cell x the number of cells divided by 1,000 and multiplied by the nameplate minutes rating / 60. (This calculation method is shown in the 2023 Edition of NFPA 855 and is proposed for the 2024 IFC / 2025 CFC).

<sup>b</sup>Shall include vanadium, zinc-bromine, polysulfide-bromide and other flowing electrolyte-type technologies.

<sup>c</sup>Fifty gallons of lead-acid battery electrolyte shall be considered equivalent to 70 kWh.

Table 3: Lithium-ion and Lithium Metal Battery Storage<sup>a</sup>

| Length (feet) | Width (feet) | Height (feet) | Total Volume of Storage (cu. ft.) |
|---------------|--------------|---------------|-----------------------------------|
|               |              |               |                                   |
|               |              |               |                                   |

<sup>a</sup>For storage of lithium-ion and lithium metal batteries, please report the total cubic feet of lithium-ion and lithium metal batteries in storage per CFC Section 322.

Table 4: Refrigerants<sup>a</sup>

| Mechanical System ID | Refrigerant Common Name | System Charge Capacity (pounds) | CMC Safety Group Classification <sup>a</sup> |
|----------------------|-------------------------|---------------------------------|----------------------------------------------|
|                      |                         |                                 |                                              |
|                      |                         |                                 |                                              |
|                      |                         |                                 |                                              |
|                      |                         |                                 |                                              |
|                      |                         |                                 |                                              |

<sup>a</sup>For refrigerants, please use Safety Group Classification per CMC Table 1102.3.

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Upon request, this information is available in alternative formats for persons with disabilities.  
DS-165 (01-24)

**Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 - Control Area (1)**  
**Actual Quantities vs. Maximum Allowable Quantities (MAQ) per Control Area**  
**Materials are on the first floor. The building is a B occupancy group.**

MAQs listed for the first floor control areas are listed as 100% as required by 2022 CBC Table 5003 - TABLE 5003.8.3.2 DESIGN AND NUMBER OF CONTROL AREAS  
MAQs are based on 2022 CBC Table 5003.1.1(1) &(2), Maximum Allowable Quantity Per Control Area of Hazardous Material Posing a Physical and Health Hazard.  
MAQs listed for storage have been adjusted to account for 100% allowable increase for storage in approved storage cabinets, day boxes, gas cabinets, gas rooms, exhausted enclosures or in listed safety cans.  
MAQs listed for storage have been adjusted to account for 100% allowable increase for automatic sprinkler system.

| Level 1 Control Area 1 - Physical Hazard Summary  |       |                |        |                   |     |                  |     |                    |     |                   |           |                  |     |                  |     |                   |     |                  |     |    |
|---------------------------------------------------|-------|----------------|--------|-------------------|-----|------------------|-----|--------------------|-----|-------------------|-----------|------------------|-----|------------------|-----|-------------------|-----|------------------|-----|----|
| PHYSICAL HAZARDS                                  |       | Storage        |        |                   |     |                  |     | Use-Closed Systems |     |                   |           |                  |     | Use-Open Systems |     |                   |     |                  |     |    |
|                                                   |       | Solid (pounds) |        | Liquid (millions) |     | Gas (cubic feet) |     | Solid (pounds)     |     | Liquid (millions) |           | Gas (cubic feet) |     | Solid (pounds)   |     | Liquid (millions) |     | Gas (cubic feet) |     |    |
|                                                   |       | Actual         | MAQ    | Actual            | MAQ | Actual           | MAQ | Actual             | MAQ | Actual            | MAQ       | Actual           | MAQ | Actual           | MAQ | Actual            | MAQ | Actual           | MAQ |    |
| Combustible Dust                                  | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Combustible Fibers                                | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Combustible Liquid Class II                       | 0     | --             | 2,850  | 480               | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Combustible Liquid Class III-A                    | 0     | --             | 0.679  | 1,920             | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Combustible Liquid Class III-B                    | 0     | --             | 1,334  | NL                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Cryogenic Flammable                               | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Cryogenic Inerting                                | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Explosives Division 1.1                           | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Explosives Division 1.2                           | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Explosives Division 1.3                           | 0     | --             | 0.083  | 2                 | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Explosives Division 1.4                           | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Explosives Division 1.4G                          | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Explosives Division 1.5                           | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Explosives Division 1.6                           | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Flammable Gas Gaseous                             | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Flammable Gas Liquefied                           | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Flammable Liquid Class 1-A                        | 0     | --             | 0.087  | 120               | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Flammable Liquid Class 1-B                        | 0     | --             | 37,028 | 480               | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Flammable Liquid Class 1-C                        | 0     | --             | 0.523  | 480               | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Flammable Liquid, Combination Class I-A, I-B, I-C | 0     | --             | 98,268 | 480               | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Flammable Solid                                   | 7,072 | 500            | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Inert Gas, Gaseous                                | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 3,022.000 | NL               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Cryogenic Inert, Liquefied                        | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Organic Peroxides Class I/II                      | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Organic Peroxides Class I                         | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Organic Peroxides Class II                        | 0     | --             | 0.026  | 20                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Organic Peroxides Class III                       | 0     | --             | 0.713  | 60                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Organic Peroxides Class IV                        | 0     | --             | 0.268  | NL                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Organic Peroxides Class V                         | 0     | --             | 0.026  | NL                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Oxidizer Class 4                                  | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Oxidizer Class 3                                  | 0     | --             | 0.048  | 4                 | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Oxidizer Class 2                                  | 0     | --             | 1,712  | 100               | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Oxidizer Class 1                                  | 0     | --             | 0.462  | NL                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Oxidizer Gas Gaseous                              | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Oxidizer Gas Liquefied                            | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Pyrophoric                                        | 0     | --             | 0.210  | 0.8               | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Unstable (Reactive) Class 4                       | 0     | --             | 0      | --                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Unstable (Reactive) Class 3                       | 0     | --             | 0.083  | 2                 | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Unstable (Reactive) Class 2                       | 0.219 | 200            | 0.118  | 20                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Unstable (Reactive) Class 1                       | 4.406 | NL             | 0.423  | NL                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Water Reactive Class 3                            | 0.185 | 20             | 0.071  | 2                 | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Water Reactive Class 2                            | 1.697 | 200            | 2.297  | 20                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |
| Water Reactive Class 1                            | 1.340 | NL             | 2.304  | NL                | 0   | --               | 0   | --                 | 0   | --                | 0         | --               | 0   | --               | 0   | --                | 0   | --               | 0   | -- |

| Level 1 Control Area 1 - Health Hazard Summary |       |                |        |                  |     |                  |     |                    |     |                  |     |                  |     |                  |     |                  |     |     |
|------------------------------------------------|-------|----------------|--------|------------------|-----|------------------|-----|--------------------|-----|------------------|-----|------------------|-----|------------------|-----|------------------|-----|-----|
| HEALTH HAZARDS                                 |       | Storage        |        |                  |     |                  |     | Use-Closed Systems |     |                  |     |                  |     | Use-Open Systems |     |                  |     |     |
|                                                |       | Solid (pounds) |        | Liquid (gallons) |     | Gas (cubic feet) |     | Solid (pounds)     |     | Liquid (gallons) |     | Gas (cubic feet) |     | Solid (pounds)   |     | Liquid (gallons) |     |     |
|                                                |       | Actual         | MAQ    | Actual           | MAQ | Actual           | MAQ | Actual             | MAQ | Actual           | MAQ | Actual           | MAQ | Actual           | MAQ | Actual           | MAQ |     |
|                                                |       |                |        |                  |     |                  |     |                    |     |                  |     |                  |     |                  |     |                  |     |     |
| Corrosives                                     | 5,376 | 20,000         | 16,808 | 2,000            | 0   | ---              | 0   | ---                | 0   | ---              | 0   | ---              | 0   | ---              | 0   | ---              | 0   | --- |
| Highly Toxics                                  | 0     | ---            | 0.073  | 4                | 0   | ---              | 0   | ---                | 0   | ---              | 0   | ---              | 0   | ---              | 0   | ---              | 0   | --- |
| Toxics                                         | 4,933 | 3,000          | 4,881  | 300              | 0   | ---              | 0   | ---                | 0   | ---              | 0   | ---              | 0   | ---              | 0   | ---              | 0   | --- |

Notes: -- MAQ is not applicable because 0 quantity is present  
NA Not Applicable  
NL Not Limited

| Compressed Gas Summary     |      |      |
|----------------------------|------|------|
| Carbon Dioxide, Compressed | 2622 | CF3  |
| Nitrogen, Compressed       | 200  | CF15 |
| Nitrogen, Compressed       | 400  | CF15 |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |             |                                                                                                       |          |         |                |  |
|---------------------------------------------------------------------------------------------|-------------|-------------------------------------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.     | CPG Class                                                                                             | Quantity | Unit    | Location       |  |
| 2-4 uralkdehyde                                                                             | 599-69-2    | COMBUSTIBLE LIQUID CLASS II                                                                           | 0.000    | Gallons | Control Area 1 |  |
| 8-Bromooctanoic acid                                                                        | 17096-11-6  | COMBUSTIBLE LIQUID CLASS II,<br>COMBUSTIBLE LIQUID CLASS III-B                                        | 0.001    | Gallons | Control Area 1 |  |
| 2,4-Bis(trifluoromethyl)benzyl bromide, 95%                                                 | 140690-56-8 | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 0.000    | Gallons | Control Area 1 |  |
| Acetic acid                                                                                 | 64-19-7     | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 1.057    | Gallons | Control Area 1 |  |
| Acetic acid, glacial ACS                                                                    | 64-19-7     | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 0.661    | Gallons | Control Area 1 |  |
| Formic acid                                                                                 | 64-18-6     | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 0.013    | Gallons | Control Area 1 |  |
| Formic acid                                                                                 | 64-18-6     | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 0.013    | Gallons | Control Area 1 |  |
| Formic acid                                                                                 | 64-18-6     | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 0.132    | Gallons | Control Area 1 |  |
| Methyl fluorosulfonothioacetate                                                             | 680-13-9    | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 0.001    | Gallons | Control Area 1 |  |
| Propionic acid                                                                              | 79-09-1     | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES                                                            | 0.007    | Gallons | Control Area 1 |  |
| 2-(Cyclohexa-1-en-1-yl)ethanamine                                                           | 2399-73-3   | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>IRRITANTS                                              | 0.000    | Gallons | Control Area 1 |  |
| 2-(Trimethylsilyl)ethoxymethyl chloride                                                     | 76313-69-4  | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>IRRITANTS                                              | 0.007    | Gallons | Control Area 1 |  |
| Aminooctaldehyde dimethyl acetal                                                            | 22483-09-6  | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>IRRITANTS                                              | 0.026    | Gallons | Control Area 1 |  |
| Aminooctaldehyde dimethylacetal, 99%                                                        | 22483-09-6  | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>IRRITANTS                                              | 0.026    | Gallons | Control Area 1 |  |
| Cyclohexyl isocyanate, 98%                                                                  | 3173-33-3   | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>IRRITANTS                                              | 0.007    | Gallons | Control Area 1 |  |
| Ethyl bromoacetate                                                                          | 105-36-2    | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                     | 0.132    | Gallons | Control Area 1 |  |
| Methyl trifluoromethanesulfonate                                                            | 333-27-7    | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS                                   | 0.001    | Gallons | Control Area 1 |  |
| Formaldehyde, 37%                                                                           | 50-00-0     | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>TOXICS                                                 | 0.132    | Gallons | Control Area 1 |  |
| Acetic anhydride                                                                            | 108-24-7    | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS I,<br>WATER REACTIVE CLASS 1 | 0.264    | Gallons | Control Area 1 |  |
| Acetic anhydride                                                                            | 108-24-7    | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS I,<br>WATER REACTIVE CLASS 1 | 0.007    | Gallons | Control Area 1 |  |
| Acetic anhydride                                                                            | 108-24-7    | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS I,<br>WATER REACTIVE CLASS 1 | 0.007    | Gallons | Control Area 1 |  |
| Acetic anhydride                                                                            | 108-24-7    | COMBUSTIBLE LIQUID CLASS II,<br>CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS I,<br>WATER REACTIVE CLASS 1 | 0.026    | Gallons | Control Area 1 |  |
| 1-Bromo-3-methyl butane                                                                     | 107-83-4    | COMBUSTIBLE LIQUID CLASS II,<br>FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS                              | 0.001    | Gallons | Control Area 1 |  |
| 1-(2-Aminoethyl)pyrrolidine                                                                 | 7154-73-6   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.000    | Gallons | Control Area 1 |  |
| 3-Bromooctane, 99%                                                                          | 3926-78-3   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.003    | Gallons | Control Area 1 |  |
| 3-4-Isooct-4-methylbenzaldehyde, 97%                                                        | 177756-62-6 | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.001    | Gallons | Control Area 1 |  |
| Acetyl bromide                                                                              | 506-96-7    | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.132    | Gallons | Control Area 1 |  |
| Bromoacetaldehyde dimethyl acetal                                                           | 7252-83-7   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.007    | Gallons | Control Area 1 |  |
| Chloromethyl pivalate                                                                       | 18997-19-8  | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.003    | Gallons | Control Area 1 |  |
| Iodomethyl pivalate                                                                         | 53064-79-2  | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.001    | Gallons | Control Area 1 |  |
| Iodomethyl pivalate                                                                         | 53064-79-2  | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.007    | Gallons | Control Area 1 |  |
| Phenyl isocyanate, 98-9%                                                                    | 103-71-9    | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.026    | Gallons | Control Area 1 |  |
| Tert-Butyl Bromoacetate                                                                     | 5292-43-3   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.007    | Gallons | Control Area 1 |  |
| Thiomorpholine 1,1-Dioxide                                                                  | 39093-93-1  | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.001    | Gallons | Control Area 1 |  |
| Trimethylacetic anhydride                                                                   | 1538-75-6   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS                                                             | 0.007    | Gallons | Control Area 1 |  |
| 2-(Trifluoromethyl)phenyl isocyanate                                                        | 329-01-1    | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                    | 0.001    | Gallons | Control Area 1 |  |
| 3-Dimethylamino-1-propanol, 99%                                                             | 3179-63-3   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                    | 0.001    | Gallons | Control Area 1 |  |
| Dimethylformamide, N,N-                                                                     | 68-12-2     | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                    | 0.026    | Gallons | Control Area 1 |  |
| Dimethylformamide, N,N-                                                                     | 68-12-2     | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                    | 0.026    | Gallons | Control Area 1 |  |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |            |                                                                                                      |          |         |                |  |
|---------------------------------------------------------------------------------------------|------------|------------------------------------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.    | CFR Class                                                                                            | Quantity | Unit    | Location       |  |
| N-(2-Hydroxyethyl)pyrrolidine, 95%                                                          | 2955-88-6  | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                   | 0.007    | Gallons | Control Area 1 |  |
| 4-Methylpyridine                                                                            | 105-89-4   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.001    | Gallons | Control Area 1 |  |
| 1-Chloroethyl chloroformate                                                                 | 50893-53-3 | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1        | 0.001    | Gallons | Control Area 1 |  |
| 1-Chloroethyl chloroformate                                                                 | 50893-53-3 | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1        | 0.001    | Gallons | Control Area 1 |  |
| 1-Chloroethyl chloroformate                                                                 | 50893-53-3 | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1        | 0.001    | Gallons | Control Area 1 |  |
| 1-Chloroethyl chloroformate                                                                 | 50893-53-3 | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1        | 0.007    | Gallons | Control Area 1 |  |
| 1-Chloroethyl chloroformate                                                                 | 50893-53-3 | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1        | 0.026    | Gallons | Control Area 1 |  |
| Benzyl isocyanate, 99%                                                                      | 3173-56-6  | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>SENSITIZERS                                            | 0.001    | Gallons | Control Area 1 |  |
| 1,2-Ethanedithiol                                                                           | 540-63-6   | COMBUSTIBLE LIQUID CLASS II,<br>IRRITANTS,<br>TOXICS                                                 | 0.007    | Gallons | Control Area 1 |  |
| Tri-n-butyltin hydride                                                                      | 688-73-3   | COMBUSTIBLE LIQUID CLASS II,<br>TOXICS                                                               | 0.000    | Gallons | Control Area 1 |  |
| Diethyl azodicarboxylate                                                                    | 1972-28-7  | COMBUSTIBLE LIQUID CLASS II,<br>UNSTABLE (REACTIVE) CLASS 1                                          | 0.007    | Gallons | Control Area 1 |  |
| Diethyl azodicarboxylate                                                                    | 1972-28-7  | COMBUSTIBLE LIQUID CLASS II,<br>UNSTABLE (REACTIVE) CLASS 1                                          | 0.026    | Gallons | Control Area 1 |  |
| 3-Methylisoxazolinone                                                                       | 585-74-0   | COMBUSTIBLE LIQUID CLASS II-A                                                                        | 0.007    | Gallons | Control Area 1 |  |
| Dimethylsulphoxide D5, TMS                                                                  | 2706-27-4  | COMBUSTIBLE LIQUID CLASS II-A                                                                        | 0.013    | Gallons | Control Area 1 |  |
| tert-Butyl acetate                                                                          | 1694-31-1  | COMBUSTIBLE LIQUID CLASS III-A                                                                       | 0.007    | Gallons | Control Area 1 |  |
| tert-Butyl acetate                                                                          | 1694-31-1  | COMBUSTIBLE LIQUID CLASS III-A                                                                       | 0.007    | Gallons | Control Area 1 |  |
| tert-Butyl acetate, 95+%                                                                    | 1694-31-1  | COMBUSTIBLE LIQUID CLASS III-A                                                                       | 0.007    | Gallons | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)benzoyl chloride                                                    | 785-56-8   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.007    | Gallons | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)benzoyl chloride                                                    | 75462-59-8 | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.000    | Gallons | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)benzoyl chloride                                                    | 75462-59-8 | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.000    | Gallons | Control Area 1 |  |
| 4-Chlorobenzylamine                                                                         | 104-86-9   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.001    | Gallons | Control Area 1 |  |
| 4-Methoxybenzoyl chloride                                                                   | 100-07-2   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.007    | Gallons | Control Area 1 |  |
| Dimethyl oxalate, 98%                                                                       | 553-90-3   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.007    | Gallons | Control Area 1 |  |
| Pyruvic acid                                                                                | 127-17-3   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.007    | Gallons | Control Area 1 |  |
| 2-Iodobenzoyl bromide, 98%                                                                  | 446-18-0   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>IRRITANTS                                          | 0.001    | Gallons | Control Area 1 |  |
| 4-Aminobutyraldehyde diethyl acetal                                                         | 6346-09-4  | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>IRRITANTS                                          | 0.007    | Gallons | Control Area 1 |  |
| Isosorbic acid                                                                              | 503-74-2   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES                                                        | 0.007    | Gallons | Control Area 1 |  |
| Methyl Bromoacetate                                                                         | 96-32-2    | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>IRRITANTS                                          | 0.007    | Gallons | Control Area 1 |  |
| Benzylamine                                                                                 | 100-16-9   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                 | 0.026    | Gallons | Control Area 1 |  |
| 2-(Methylamino)ethanol, 95%                                                                 | 109-83-1   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>SENSITIZERS | 0.026    | Gallons | Control Area 1 |  |
| 1-Methylimidazole                                                                           | 615-17-7   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS                               | 0.007    | Gallons | Control Area 1 |  |
| Dihydroxizine, 95%                                                                          | 141-43-5   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS                               | 0.007    | Gallons | Control Area 1 |  |
| n-Butyric acid                                                                              | 107-92-6   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS                               | 0.026    | Gallons | Control Area 1 |  |
| 3-(Trifluoromethyl)aniline, 99+%                                                            | 98-16-8    | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                    | 0.001    | Gallons | Control Area 1 |  |
| Benzyl chloroformate                                                                        | 501-53-1   | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                    | 0.026    | Gallons | Control Area 1 |  |
| Phenyl chloroformate                                                                        | 1885-14-9  | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                    | 0.026    | Gallons | Control Area 1 |  |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |             |                                                                                                        |          |         |                |
|---------------------------------------------------------------------------------------------|-------------|--------------------------------------------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.     | CFC Class                                                                                              | Quantity | Unit    | Location       |
| Benzoyl Chloride, 99%                                                                       | 98-88-4     | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>UNSTABLE (REACTIVE) CLASS I | 0.026    | Gallons | Control Area 1 |
| 2-Chlorobenzyl chloride, 99+%                                                               | 611-19-8    | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>SENSITIZERS,<br>TOXICS                               | 0.013    | Gallons | Control Area 1 |
| 2,5-Dichloro-3-methylthiophene, >96%                                                        | 17245-90-0  | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>TOXICS                                               | 0.001    | Gallons | Control Area 1 |
| Phenyl isothiocyanate                                                                       | 169-72-0    | COMBUSTIBLE LIQUID CLASS III-A,<br>CORROSIVES,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| 1,3-Propanediol                                                                             | 504-63-3    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| 1,4-Dioxane-8-acetate[4,5]hexane                                                            | 177-11-7    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| 1-[3-(Trifluoromethyl)phenyl]ethylamine                                                     | 59382-36-4  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| 1-Bromo-2,4-bis(trifluoromethyl)benzene                                                     | 327-73-3    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| 2-(p-tolyl)ethylamine                                                                       | 3261-62-9   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.000    | Gallons | Control Area 1 |
| 2,4'-Difluoroacetophenone                                                                   | 364-83-0    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.003    | Gallons | Control Area 1 |
| 2,5-Bis(trifluoromethyl)aniline                                                             | 328-93-8    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| 2-Methylthioacetaldehyde                                                                    | 16630-32-7  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.000    | Gallons | Control Area 1 |
| 2-(Trifluoromethoxy)aniline                                                                 | 1535-73-5   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| 3-(Trifluoromethyl)acetophenone                                                             | 149-76-8    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| 3',5'-Bis(trifluoromethyl)acetophenone, 98%                                                 | 30071-93-3  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| 3,5-Bis(trifluoromethyl)benzaldehyde, 97%                                                   | 401-95-6    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| 3,5-Bis(trifluoromethyl)benzaldehyde, 97%                                                   | 401-95-6    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| 3,5-Bis(trifluoromethyl)benzaldehyde, 97%                                                   | 401-95-6    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| 3,5-Bis(trifluoromethyl)benzaldehyde, 97%                                                   | 401-95-6    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| 3,5-Bis(trifluoromethyl)benzamide, 97%                                                      | 130783-62-7 | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.000    | Gallons | Control Area 1 |
| 4-(dimethoxymethyl)piperidine                                                               | 188646-83-5 | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.006    | Gallons | Control Area 1 |
| 4-Fluoroacetophenone                                                                        | 403-42-9    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| 4-Pentyn-1-ol                                                                               | 5390-04-5   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| ETHYL 3-CHLORO BENZOYLFORMATE                                                               | 104-57-4    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.000    | Gallons | Control Area 1 |
| Methyl 1,2-dimethyl-1H-pyrazole-3-carboxylate, 95%                                          | 14186-51-7  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.000    | Gallons | Control Area 1 |
| Methyl 2-methylthio-3-carboxylate, 95%                                                      | 6141-58-8   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.026    | Gallons | Control Area 1 |
| Methyl 4-bromo-2-(trifluoromethyl) benzoate                                                 | 957207-58-8 | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| methyl benzoate-2-yl-acetate                                                                | 75782-23-1  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.000    | Gallons | Control Area 1 |
| m-Toloyl chloride 98.5%                                                                     | 1711-06-4   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| N-decylpropylbenzylamine                                                                    | 102-97-6    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.007    | Gallons | Control Area 1 |
| Pinacol                                                                                     | 76-09-5     | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.026    | Gallons | Control Area 1 |
| tert-butyl-3-bromopropionate                                                                | 55666-43-8  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.000    | Gallons | Control Area 1 |
| tert-butyl-3-bromopropionate                                                                | 55666-43-8  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| tert-butyl-3-bromopropionate                                                                | 55666-43-8  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| tert-butyl-3-bromopropionate                                                                | 55666-43-8  | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.003    | Gallons | Control Area 1 |
| thiophene-3-carboxaldehyde                                                                  | 498-62-4    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS                                                           | 0.001    | Gallons | Control Area 1 |
| 1-Methyl-2-pyrrolidinone                                                                    | 872-50-4    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                  | 0.026    | Gallons | Control Area 1 |
| 1-Methyl-2-pyrrolidinone                                                                    | 872-50-4    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                  | 0.026    | Gallons | Control Area 1 |
| 1-Methyl-2-pyrrolidinone                                                                    | 872-50-4    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                  | 0.026    | Gallons | Control Area 1 |
| 2-[2-(Dimethylamino)-ethoxy]ethanol                                                         | 1704-62-7   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                  | 0.007    | Gallons | Control Area 1 |
| Acetophenone                                                                                | 98-86-2     | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                  | 0.007    | Gallons | Control Area 1 |
| Diethyl phosphite                                                                           | 762-04-9    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                  | 0.066    | Gallons | Control Area 1 |
| Vinylacetic acid, 95%                                                                       | 625-38-7    | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                  | 0.001    | Gallons | Control Area 1 |



| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |            |                                                                                                                 |          |         |                |
|---------------------------------------------------------------------------------------------|------------|-----------------------------------------------------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.    | CFR Class                                                                                                       | Quantity | Unit    | Location       |
| Phenylhydrazine                                                                             | 100-63-0   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>SENSITIZERS,<br>TOXICS                | 0.026    | Gallons | Control Area 1 |
| 1-Dodecanethiol                                                                             | 112-55-0   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>SENSITIZERS                                                    | 0.007    | Gallons | Control Area 1 |
| Phenylacetaldehyde                                                                          | 122-78-1   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>SENSITIZERS                                                    | 0.001    | Gallons | Control Area 1 |
| Benzyl bromide                                                                              | 109-39-0   | COMBUSTIBLE LIQUID CLASS III-A,<br>IRRITANTS,<br>TOXICS                                                         | 0.026    | Gallons | Control Area 1 |
| N-Methylamine, 98%                                                                          | 100-61-8   | COMBUSTIBLE LIQUID CLASS III-A,<br>OTHER HEALTH HAZARDS,<br>SENSITIZERS                                         | 0.007    | Gallons | Control Area 1 |
| 2-Thioxoline                                                                                | 348-54-9   | COMBUSTIBLE LIQUID CLASS III-A,<br>TOXICS                                                                       | 0.007    | Gallons | Control Area 1 |
| 1-Propanesulfonyl chloride, 97%                                                             | 10147-36-1 | COMBUSTIBLE LIQUID CLASS III-A,<br>WATER REACTIVE CLASS 1                                                       | 0.026    | Gallons | Control Area 1 |
| 4-Bromo-2-chlorobenzoaldehyde                                                               | 18791-73-8 | COMBUSTIBLE LIQUID CLASS III-B                                                                                  | 0.001    | Gallons | Control Area 1 |
| 4-Methylacetophenone                                                                        | 122-69-9   | COMBUSTIBLE LIQUID CLASS III-B                                                                                  | 0.001    | Gallons | Control Area 1 |
| 1,8-Diazabicyclo[5.4.0]undec-7-ene                                                          | 6674-22-2  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.013    | Gallons | Control Area 1 |
| 1,8-Diazabicyclo[5.4.0]undec-7-ene                                                          | 6674-22-2  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.013    | Gallons | Control Area 1 |
| 1,8-Diazabicyclo[5.4.0]undec-7-ene                                                          | 6674-22-2  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.026    | Gallons | Control Area 1 |
| 1,8-Diazabicyclo[5.4.0]undec-7-ene, DBU                                                     | 6674-22-2  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.013    | Gallons | Control Area 1 |
| 1,8-Diazabicyclo[5.4.0]undec-7-ene, DBU                                                     | 6674-22-2  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.013    | Gallons | Control Area 1 |
| 2-Bromo-2'-methoxyacetophenone                                                              | 31949-21-0 | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.001    | Gallons | Control Area 1 |
| 3,3-Dimethylbutyric acid                                                                    | 1070-83-3  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.007    | Gallons | Control Area 1 |
| 3-Chlorobenzyl chloride                                                                     | 620-20-2   | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.007    | Gallons | Control Area 1 |
| 4-Amino-1-butanol                                                                           | 13325-10-5 | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES                                                                   | 0.007    | Gallons | Control Area 1 |
| 3,4-Dichlorobenzyl chloride, 97%                                                            | 102-47-6   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.026    | Gallons | Control Area 1 |
| 4-Methoxybenzylamine, 98%                                                                   | 2393-23-9  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>IRRITANTS                                                     | 0.007    | Gallons | Control Area 1 |
| Bromosuccinyl bromide                                                                       | 598-21-0   | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>IRRITANTS                                                     | 0.007    | Gallons | Control Area 1 |
| Hexanoic Acid                                                                               | 142-62-1   | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.007    | Gallons | Control Area 1 |
| 1-(Bromomethyl)-4-chloro-2-fluorobenzene                                                    | 71916-82-0 | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1 | 0.003    | Gallons | Control Area 1 |
| Dimethylsulfonyl chloride                                                                   | 13360-57-1 | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| 4-Methoxyphenyl isothiocyanate, 97%                                                         | 2284-28-0  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>WATER REACTIVE CLASS 1                                        | 0.003    | Gallons | Control Area 1 |
| 1-Naphthyl chloride, 99%                                                                    | 879-18-5   | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>WATER REACTIVE CLASS 1                                        | 0.003    | Gallons | Control Area 1 |
| 2-Methoxyphenyl isothiocyanate, 98%                                                         | 3288-04-8  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>WATER REACTIVE CLASS 1                                        | 0.001    | Gallons | Control Area 1 |
| tert-Butyl(chloro)diphenylsilane                                                            | 58479-61-1 | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>WATER REACTIVE CLASS 1                                        | 0.003    | Gallons | Control Area 1 |
| tert-Butyl(chloro)diphenylsilane                                                            | 58479-61-1 | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>WATER REACTIVE CLASS 1                                        | 0.066    | Gallons | Control Area 1 |
| 2,6-Dichlorobenzoyl chloride                                                                | 4659-45-4  | COMBUSTIBLE LIQUID CLASS III-B,<br>CORROSIVES,<br>WATER REACTIVE CLASS 2                                        | 0.007    | Gallons | Control Area 1 |
| 1-(1-Naphthyl)ethyl isocyanate, 95%                                                         | 88442-63-1 | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.000    | Gallons | Control Area 1 |
| 1-(2-Hydroxyethyl)piperazine                                                                | 103-76-4   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.001    | Gallons | Control Area 1 |
| 1-(2-Pyridinyl)piperazine, 99.5+%                                                           | 34803-66-2 | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.001    | Gallons | Control Area 1 |
| 1-(Benzylcarbonyl)piperazine                                                                | 31166-44-6 | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.007    | Gallons | Control Area 1 |
| 1,4-Dibromobutane                                                                           | 110-52-1   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.007    | Gallons | Control Area 1 |
| 1,5-Dibromopentane                                                                          | 111-24-0   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.026    | Gallons | Control Area 1 |
| 1,5-Dibromopentane, 98%                                                                     | 111-24-0   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.007    | Gallons | Control Area 1 |
| 1,6-Dibromohexane                                                                           | 629-63-8   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.007    | Gallons | Control Area 1 |
| 1-Eoc-ethylmethanamine, 98%                                                                 | 57260-73-8 | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.007    | Gallons | Control Area 1 |
| 1-Bromo-3-iodobenzene                                                                       | 591-18-4   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.007    | Gallons | Control Area 1 |
| 1-Bromo-5-chloropentane                                                                     | 54512-75-3 | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                                                    | 0.001    | Gallons | Control Area 1 |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |             |                                                                                         |          |         |                |  |
|---------------------------------------------------------------------------------------------|-------------|-----------------------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.     | CFC Class                                                                               | Quantity | Unit    | Location       |  |
| 1-Iodooxaphthalene                                                                          | 90-14-2     | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 2-(2-Chlorophenyl)ethan-1-amine                                                             | 13078-80-3  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 2-(4-CHLORO-OPHENYL)ETHYLAMINE                                                              | 156-41-2    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 2-(4-methoxyphenyl)ethan-1-amine                                                            | 55-81-2     | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.000    | Gallons | Control Area 1 |  |
| 2-Cyclopentylacetic acid                                                                    | 1123-00-8   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 2-(Aminomethyl)pyridine, 99+%                                                               | 2721-52-9   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)phenol, 97%                                                         | 349-58-6    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 3-Bromobenzyl alcohol                                                                       | 15852-73-0  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.007    | Gallons | Control Area 1 |  |
| 3-Bromoquinoline                                                                            | 5332-24-1   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.007    | Gallons | Control Area 1 |  |
| 3-Chloro-4-methylphenyl isocyanate                                                          | 28479-22-3  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 3-Chloro-4-methylphenyl isocyanate, 98%                                                     | 28479-22-3  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 3-Cyclopenten-1-carboxylic acid                                                             | 7688-77-3   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 3-Phenylpropionaldehyde                                                                     | 104-53-0    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 4-Bromobutyronitrile                                                                        | 5332-06-9   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 4-methyl valeric acid                                                                       | 646-07-1    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.007    | Gallons | Control Area 1 |  |
| 4-Methyl-2-nitroanisole                                                                     | 119-10-8    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 5-Bromo-2-thiophenecarbaldehyde                                                             | 4701-17-1   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| 7-Bromo-1-octanol                                                                           | 10160-24-4  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.003    | Gallons | Control Area 1 |  |
| 7-Bromo-1-octanol                                                                           | 10160-24-4  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.003    | Gallons | Control Area 1 |  |
| 7-Bromo-1-octanol                                                                           | 10160-24-4  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.007    | Gallons | Control Area 1 |  |
| Benzoophenone imine                                                                         | 1013-88-3   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.007    | Gallons | Control Area 1 |  |
| methyl 11-bromoundecanoate                                                                  | 6287-96-7   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| Methyl 3-methyl-2-nitrobenzoate                                                             | 606-27-9    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.026    | Gallons | Control Area 1 |  |
| METHYL 4-CHLORO BENZOYLACETATE                                                              | 72027-53-8  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.000    | Gallons | Control Area 1 |  |
| Methyl 5-bromovalerate                                                                      | 5151-83-1   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| N-(2-Hydroxyethyl)morpholine, 99%                                                           | 622-40-2    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| N-Carbobenzoyl-L-serine methyl ester, >98%                                                  | 1676-81-9   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| N-Carbobenzoyl-L-serine methyl ester, >98%                                                  | 1676-81-9   | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.001    | Gallons | Control Area 1 |  |
| Polycaprolactone                                                                            | 502-44-3    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.066    | Gallons | Control Area 1 |  |
| Polycaprolactone                                                                            | 502-44-3    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.066    | Gallons | Control Area 1 |  |
| Polycaprolactone                                                                            | 502-44-3    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.066    | Gallons | Control Area 1 |  |
| tert-butyl 1,4-thiazepane-1-carboxylate, 97%                                                | 112275-50-0 | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.000    | Gallons | Control Area 1 |  |
| tert-butyl 1,4-thiazepane-1-carboxylate, 97%                                                | 112275-50-0 | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.000    | Gallons | Control Area 1 |  |
| Tert-Butyl N-(2-Aminoethyl)Carbamate, 97%                                                   | 57260-73-8  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.000    | Gallons | Control Area 1 |  |
| Tert-Butyl N-(2-Aminoethyl)Carbamate, 97%                                                   | 57260-73-8  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS                                            | 0.000    | Gallons | Control Area 1 |  |
| Benzyl alcohol                                                                              | 100-51-6    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>ORGANIC PEROXIDES CLASS V              | 0.026    | Gallons | Control Area 1 |  |
| 2-Azacycloctanone                                                                           | 673-66-5    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.001    | Gallons | Control Area 1 |  |
| 4-tert-Butylaniline                                                                         | 769-92-6    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.001    | Gallons | Control Area 1 |  |
| Benzaldehyde                                                                                | 100-52-7    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.026    | Gallons | Control Area 1 |  |
| Ethylene glycol                                                                             | 107-21-1    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.007    | Gallons | Control Area 1 |  |
| Phylene glycol                                                                              | 107-21-1    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.132    | Gallons | Control Area 1 |  |
| Tert-butyl n-(2-oxoethyl)carbamate                                                          | 89711-08-0  | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.000    | Gallons | Control Area 1 |  |
| 3-Methoxy-1-propanol                                                                        | 57-55-6     | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>SENSITIZERS   | 0.007    | Gallons | Control Area 1 |  |
| 1-Naphthyl isocyanate, 98%                                                                  | 96-81-0     | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>SENSITIZERS,<br>WATER REACTIVE CLASS 1 | 0.001    | Gallons | Control Area 1 |  |
| 3-Chloroaniline                                                                             | 108-42-9    | COMBUSTIBLE LIQUID CLASS III-B,<br>IRRITANTS,<br>TOXICS                                 | 0.001    | Gallons | Control Area 1 |  |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |              |                                                                                    |          |         |                |  |
|---------------------------------------------------------------------------------------------|--------------|------------------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.      | CPC Class                                                                          | Quantity | Unit    | Location       |  |
| 4-Acetamido-3-chlorobenzenesulfonyl chloride                                                | 000499-00-0  | COMBUSTIBLE LIQUID CLASS III-4;<br>OTHER HEALTH HAZARDS                            | 0.000    | Gallons | Control Area 1 |  |
| poly(dimethylsiloxane)                                                                      | 9016-00-6    | COMBUSTIBLE LIQUID CLASS III-4;<br>OTHER HEALTH HAZARDS                            | 0.132    | Gallons | Control Area 1 |  |
| poly(dimethylsiloxane)                                                                      | 9016-00-6    | COMBUSTIBLE LIQUID CLASS III-4;<br>OTHER HEALTH HAZARDS                            | 0.132    | Gallons | Control Area 1 |  |
| Triphenyl Phosphite                                                                         | 101-02-0     | COMBUSTIBLE LIQUID CLASS III-4;<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1 | 0.007    | Gallons | Control Area 1 |  |
| Triphenyl phosphite                                                                         | 101-02-0     | COMBUSTIBLE LIQUID CLASS III-4;<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1 | 0.132    | Gallons | Control Area 1 |  |
| Triphenyl phosphite                                                                         | 101-02-0     | COMBUSTIBLE LIQUID CLASS III-4;<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1 | 0.132    | Gallons | Control Area 1 |  |
| 1-Bromo-3-chloropropane, 99%                                                                | 109-70-6     | COMBUSTIBLE LIQUID CLASS III-4;<br>TOXICS                                          | 0.001    | Gallons | Control Area 1 |  |
| 2-(3-fluoro-2-yl)prop-2-en-1-ol chloride                                                    | 63487-47-6   | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| 1,1,1,3,3,3-hexafluoro-2-propanol                                                           | 920-66-1     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 1,2-Dimethylimidazole-5-sulfonyl chloride                                                   | 137869-02-6  | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 1,4-Bis(bromomethyl)benzene                                                                 | 623-24-5     | CORROSIVES                                                                         | 0.003    | Gallons | Control Area 1 |  |
| 2-(4-Benzylpiperazin-1-yl)-1-amine, 95+%                                                    | 4353-21-3    | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2-Bromo-1-(2-thienyl)-2-methoxyethane, 95%                                                  | 91319-12-5   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2,1,2-Trichlorobenzene(methyl chloride, 90%)                                                | 51527-73-3   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2,4,6-Trisopropylbenzenesulfonyl chloride                                                   | 6553-96-4    | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 2,4-Dichlorobenzenesulfonyl chloride, 98%                                                   | 16271-33-3   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2,4-Dichlorobenzoyl chloride, 98%                                                           | 89-75-8      | CORROSIVES                                                                         | 0.026    | Gallons | Control Area 1 |  |
| 2,4-Dichlorobenzyl bromide, 93%                                                             | 20413-69-6   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 2,5-Dichlorobenzoyl chloride                                                                | 2745-49-5    | CORROSIVES                                                                         | 0.000    | Lbs.    | Control Area 1 |  |
| 2,5-Dichlorobenzylamine, 9%                                                                 | 10541-69-2   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2,5-Dimethylfuran-3-carboxyl chloride                                                       | 50996-93-7   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2,5-Dimethylfuran-3-sulfonyl chloride                                                       | 166964-26-7  | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2-Bromo-1-(2-thienyl)-1-ethanone, 90%                                                       | 10531-41-6   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 2-Bromo-1-(2-thienyl)-1-ethanone, 90%                                                       | 10531-41-6   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 2-Bromo-1-(2-thienyl)-1-ethanone, 90%                                                       | 10531-41-6   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 2-Bromo-1-(4-methoxyphenyl)ethanone                                                         | 5009-45-7    | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 2-Bromo-1-(4-methylphenyl)-2-methoxyethane, 95%                                             | 110813-45-2  | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 2-Bromo-3-methoxyacetophenone                                                               | 5006-65-7    | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 2-Bromo-3-methoxyacetophenone                                                               | 5006-65-7    | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 2-Bromo-3-nitroacetophenone, 97%                                                            | 2227-61-7    | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 2-Methyl-5-(methylsulfonyl)-3-thioureic acid, 95+%                                          | 266936-37-8  | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| 2-methylimidazole                                                                           | 693-98-1     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)phenyl isothiocyanate, 99+%                                         | 23163-29-9   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)phenylacetyl chloride                                               | 174083-39-7  | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)phenylacetyl chloride                                               | 174083-39-7  | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| 3,5-Bis(trifluoromethyl)phenylacetyl chloride                                               | 174083-39-7  | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| 3,5-dimethylphenol                                                                          | 108-68-9     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 3,5-dimethylphenol                                                                          | 108-68-9     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 3,5-Dimethylphenol                                                                          | 108-68-9     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 3-Bromo-2-chloromethylpropionic acid                                                        | 41459-42-1   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 3-Chloro-4-methylbenzaldehyde, 96%                                                          | 3411-03-8    | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 3-Chloro-4-methylbenzyl Chloride, Pnct.                                                     | 2719-40-6    | CORROSIVES                                                                         | 0.003    | Gallons | Control Area 1 |  |
| 3-CYANOBENZYL CHLORIDE                                                                      | 1711-11-1    | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 2-cylohexylpropionyl chloride                                                               | 99996-73-4   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 3-Methyl-5-phenyl-1-isocyanidecarboxyl chloride, 97%                                        | 91185-77-3   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 4-(4-Methylpiperazinobenzyl)amine, 90-9%                                                    | 216144-45-5  | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| 4-(thiuronil)benzoic acid                                                                   | 435-26-5     | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 4-(thiuronil)benzoyl chloride                                                               | 402-35-1     | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 4-morpholinomethyl benzylamine                                                              | 21271-84-0   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 4-(Trifluoromethyl)benzenesulfonyl chloride, 97%                                            | 2991-42-6    | CORROSIVES                                                                         | 0.003    | Gallons | Control Area 1 |  |
| 4-Bromo-3-(trifluoromethyl)benzenesulfonyl chloride                                         | 604142-00-0  | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 4-Bromomethylbenzotrifluoride                                                               | 17201-43-3   | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 4-Chloro-3-nitrobenzenesulfonyl chloride                                                    | 97-68-5      | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 4-Methoxy-2,6-dimethylbenzene-1-sulfonyl chloride                                           | 55661-88-0   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 4-Methoxyphenyl isocyanate, 99%                                                             | 5416-93-3    | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 4-Methyl-2-phenyl-1,3-oxazole-5-carboxyl chloride, 97%                                      | 52169-89-8   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 4-Nitro-3-(trifluoromethyl)benzenesulfonyl chloride, 95%                                    | 39234-83-8   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 4-Nitro-2-(trifluoromethyl)benzenesulfonyl chloride, 95%                                    | 39234-83-8   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 4-nitroxybenzene-1-sulfonyl chloride                                                        | 46249-41-6   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 5-Chloroguanoline-8-sulfonyl chloride, HCl                                                  | 21121-51-0   | CORROSIVES                                                                         | 0.000    | Lbs.    | Control Area 1 |  |
| 5-Chloroguanoline-8-sulfonyl chloride, HCl                                                  | 21121-51-0   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 5-Chloroguaniline-1,2,4-triazole, 97+%                                                      | 199338-31-9  | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 5-Methyl-2-phenyl-1,3-oxazole-4-carboxyl chloride, 97+%                                     | 91655-71-1   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 5-Methyl-2-phenyl-1,3-furyl chloride, 97+%                                                  | 183210-32-4  | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 6-Bromobenzoic acid                                                                         | 4234-70-8    | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| 6-Imipronic acid                                                                            | 2094-40-2    | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 6-Methyl-4-piperazine-2-(trifluoromethyl)piperazine, 95%                                    | 244129-23-6  | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 6-Morpholin-4-yl-pyridine-3-sulfonyl chloride                                               | 337508-68-6  | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| 7-Bromooctanoic acid                                                                        | 30513-28-7   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| 7-methyl-2,3-dioxo-1,4-dihydroquinoline-6-sulfonyl chloride                                 | 955-71-5     | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| 8-Quinoxalinemethyl chloride, 98%                                                           | 18784-57-5   | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| Aluminum iodide                                                                             | 7784-23-8    | CORROSIVES                                                                         | 0.003    | Gallons | Control Area 1 |  |
| Benzothylurea-3-carboxyl chloride, 97%                                                      | 111964-21-7  | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| Benzyol 3-bromopropylcarbamate, 95%                                                         | 59943-54-5   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| Benzyol 3-bromopropylcarbamate, 95%                                                         | 59943-54-5   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| Benzyol 3-bromopropylcarbamate, 95%                                                         | 59943-54-5   | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| BrettPhos                                                                                   | 1078663-78-3 | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| BrettPhos                                                                                   | 1078663-78-3 | CORROSIVES                                                                         | 0.000    | Gallons | Control Area 1 |  |
| Chloroacetyl chloride, 98%                                                                  | 75-04-9      | CORROSIVES                                                                         | 0.026    | Gallons | Control Area 1 |  |
| Cyclohexyl isothiocyanate, 98%                                                              | 1123-82-3    | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| Diazoyl Chloride                                                                            | 465-63-2     | CORROSIVES                                                                         | 0.001    | Gallons | Control Area 1 |  |
| Dimethylaminoethyl chloride hydrochloride                                                   | 60853-81-8   | CORROSIVES                                                                         | 0.001    | Lbs.    | Control Area 1 |  |
| Glyoxylic Acid, 50.0%                                                                       | 298-12-4     | CORROSIVES                                                                         | 0.132    | Gallons | Control Area 1 |  |
| Hydrogen Bromide Solution, 33 wt. % in acetic acid                                          | 10035-10-6   | CORROSIVES                                                                         | 0.066    | Gallons | Control Area 1 |  |
| Hydroxylamine-O-sulfonic acid                                                               | 2540-43-8    | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| Imidazole                                                                                   | 288-32-4     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| Imidazole                                                                                   | 288-32-4     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| Imidazole                                                                                   | 288-32-4     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| Imidazole                                                                                   | 288-32-4     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |
| Imidazole                                                                                   | 288-32-4     | CORROSIVES                                                                         | 0.007    | Gallons | Control Area 1 |  |

## Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121

|  | Chemical Name                                                    | CAS No.                  | GFC Class                                                                                                          | Quantity              | Unit | Location                         |
|--|------------------------------------------------------------------|--------------------------|--------------------------------------------------------------------------------------------------------------------|-----------------------|------|----------------------------------|
|  | Iminazole                                                        | 288-32-4                 | CORROSIVES                                                                                                         | 0.007 Gallons         |      | Control Area 1                   |
|  | Iminazole                                                        | 288-32-4                 | CORROSIVES                                                                                                         | 0.007 Gallons         |      | Control Area 1                   |
|  | Iminazole                                                        | 288-32-4                 | CORROSIVES                                                                                                         | 0.007 Gallons         |      | Control Area 1                   |
|  | Iminazole                                                        | 288-32-4                 | CORROSIVES                                                                                                         | 0.026 Gallons         |      | Control Area 1                   |
|  | Methyl 2-chloromethyl-1-(3-trifluoromethoxyphenyl)benzene, 95%   | 24603-68-7               | CORROSIVES                                                                                                         | 0.001 Gallons         |      | Control Area 1                   |
|  | N-Hydroxy-2-(1-maphetyl)methanimidate                            | 6661-51-6                | CORROSIVES                                                                                                         | 0.000 Gallons         |      | Control Area 1                   |
|  | O-Phosphorylethanamine 98%                                       | 1071-2-4                 | CORROSIVES                                                                                                         | 0.001 Gallons         |      | Control Area 1                   |
|  | Pteroyl phosphoric acid chloride                                 | 778-12-7                 | CORROSIVES                                                                                                         | 0.007 Gallons         |      | Control Area 1                   |
|  | Piperidine 4-pipridine-1-yl-methanone, 97+%<br>PIROCTONE OLAMINE | 63714-58-4<br>68890-66-1 | CORROSIVES<br>CORROSIVES                                                                                           | 0.001 Lbs.<br>Gallons |      | Control Area 1<br>Control Area 1 |
|  | Potassium trimethyleneisolate                                    | 10519-96-7               | CORROSIVES                                                                                                         | 0.007 Gallons         |      | Control Area 1                   |
|  | p-Toluenesulfonic acid monohydrate                               | 6192-52-3                | CORROSIVES                                                                                                         | 0.026 Gallons         |      | Control Area 1                   |
|  | p-Toluenesulfonic acid monohydrate                               | 6192-52-3                | CORROSIVES                                                                                                         | 0.026 Gallons         |      | Control Area 1                   |
|  | p-Xylene dichloride                                              | 622-23-6                 | CORROSIVES                                                                                                         | 0.007 Gallons         |      | Control Area 1                   |
|  | Selenium                                                         | 7446-08-4                | CORROSIVES                                                                                                         | 0.026 Gallons         |      | Control Area 1                   |
|  | Selenium(IV) disoxide                                            | 7446-08-4                | CORROSIVES                                                                                                         | 0.001 Gallons         |      | Control Area 1                   |
|  | Selenium(VI) oxide, 99.8%<br>Stannous chloride dihydrate         | 7446-08-4<br>10023-69-1  | CORROSIVES<br>CORROSIVES                                                                                           | 0.007 Gallons         |      | Control Area 1<br>Control Area 1 |
|  | SULFOACETIC ACID                                                 | 123-43-3                 | CORROSIVES                                                                                                         | 0.001 Gallons         |      | Control Area 1                   |
|  | Tin(ii) chloride dihydruat                                       | 10023-69-1               | CORROSIVES                                                                                                         | 0.007 Gallons         |      | Control Area 1                   |
|  | Trimethylboroxine                                                | 823-96-1                 | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-A,<br>IRRITANTS,<br>WATER REACTIVE CLASS 3                                 | 0.001 Gallons         |      | Control Area 1                   |
|  | Trimethylboroxine                                                | 823-96-1                 | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-A,<br>IRRITANTS,<br>WATER REACTIVE CLASS 3                                 | 0.001 Gallons         |      | Control Area 1                   |
|  | Dithiamine solution (2 M in THF)                                 | 75-04-7                  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-A,<br>TOXICS                                                               | 0.026 Gallons         |      | Control Area 1                   |
|  | Acetyl chloride                                                  | 75-36-5                  | CORROSIVES,<br>PLAMMABLE LIQUID CLASS I-A,<br>WATER REACTIVE CLASS I                                               | 0.026 Gallons         |      | Control Area 1                   |
|  | Acetyl chloride, 99%                                             | 75-36-5                  | CORROSIVES,<br>PLAMMABLE LIQUID CLASS I-A,<br>WATER REACTIVE CLASS I                                               | 0.026 Gallons         |      | Control Area 1                   |
|  | 1-Glutamylamino-2-propyne, 98%                                   | 7223-38-3                | CORROSIVES,<br>PLAMMABLE LIQUID CLASS I-B                                                                          | 0.001 Gallons         |      | Control Area 1                   |
|  | Cyclopropylmethanimine                                           | 2516-47-4                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B                                                                          | 0.007 Gallons         |      | Control Area 1                   |
|  | Diisopropylamine                                                 | 108-18-9                 | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B                                                                          | 0.066 Gallons         |      | Control Area 1                   |
|  | Propyl isothiocyanate, 98%                                       | 628-30-5                 | CORROSIVES,<br>PLAMMABLE LIQUID CLASS I-B                                                                          | 0.001 Gallons         |      | Control Area 1                   |
|  | Methylhydrazine, 98%                                             | 60-34-4                  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>HIGH % TOXICS,<br>OTHER HEALTH HAZARDS,                              | 0.007 Gallons         |      | Control Area 1                   |
|  | 3-Bromo-1,1,1-trifluoroacetone                                   | 431-35-6                 | CORROSIVES,<br>PLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS                                                            | 0.007 Gallons         |      | Control Area 1                   |
|  | N,N-Diisopropylethyamine                                         | 7087-68-5                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,                                  | 0.026 Gallons         |      | Control Area 1                   |
|  | N,N-Diisopropylethylamine                                        | 7087-68-5                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,                                  | 0.026 Gallons         |      | Control Area 1                   |
|  | N,N-Diisopropylethylamine                                        | 7087-68-5                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,                                  | 0.026 Gallons         |      | Control Area 1                   |
|  | N,N-Diisopropylethylamine                                        | 7087-68-5                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,                                  | 0.026 Gallons         |      | Control Area 1                   |
|  | N,N-Diisopropylethylamine                                        | 7087-68-5                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,                                  | 0.026 Gallons         |      | Control Area 1                   |
|  | N,N-Diisobutylaluminum hydride                                   | 1191-15-7                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>PYROFORIC,<br>WATER REACTIVE CLASS 2 | 0.026 Gallons         |      | Control Area 1                   |
|  | Diisobutylaluminium hydride                                      | 1191-15-7                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>PYROFORIC,<br>WATER REACTIVE CLASS 2 | 0.026 Gallons         |      | Control Area 1                   |
|  | Diisobutylaluminium hydride                                      | 1191-15-7                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>PYROFORIC,<br>WATER REACTIVE CLASS 2 | 0.026 Gallons         |      | Control Area 1                   |
|  | Diisobutylaluminium hydride                                      | 1191-15-7                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>PYROFORIC,<br>WATER REACTIVE CLASS 2 | 0.026 Gallons         |      | Control Area 1                   |
|  | Diisobutylaluminium hydride                                      | 1191-15-7                | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>PYROFORIC,<br>WATER REACTIVE CLASS 2 | 0.026 Gallons         |      | Control Area 1                   |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |            |                                                                                                      |          |         |                |
|---------------------------------------------------------------------------------------------|------------|------------------------------------------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.    | CFC Class                                                                                            | Quantity | Unit    | Location       |
| Methylmagnesium bromide solution, 3.0M in diethyl ether                                     | 75-16-1    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>WATER REACTIVE CLASS 2 | 0.026    | Gallons | Control Area 1 |
| Sodium bis(trimethylsilyl)amide / NaHMDS                                                    | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.026    | Gallons | Control Area 1 |
| Sodium bis(trimethylsilyl)amide / NaHMDS                                                    | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.026    | Gallons | Control Area 1 |
| Sodium bis(trimethylsilyl)amide / NaHMDS                                                    | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.026    | Gallons | Control Area 1 |
| Sodium bis(trimethylsilyl)amide / NaHMDS                                                    | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.026    | Gallons | Control Area 1 |
| Sodium bis(trimethylsilyl)amide / NaHMDS                                                    | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.026    | Gallons | Control Area 1 |
| Sodium bis(trimethylsilyl)amide / NaHMDS                                                    | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.026    | Gallons | Control Area 1 |
| Sodium bis(trimethylsilyl)amide / NaHMDS                                                    | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.026    | Gallons | Control Area 1 |
| Sodium hexamethyldisilazane, 95%                                                            | 1070-89-9  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS IV,<br>WATER REACTIVE CLASS 2  | 0.001    | Gallons | Control Area 1 |
| N,N-Dimethylacetamide dimethyl acetal                                                       | 18871-66-4 | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS                                   | 0.007    | Gallons | Control Area 1 |
| Tetrabutylammonium fluoride                                                                 | 429-41-4   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III   | 0.026    | Gallons | Control Area 1 |
| Tetrabutylammonium fluoride                                                                 | 429-41-4   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III   | 0.026    | Gallons | Control Area 1 |
| Tetrabutylammonium fluoride                                                                 | 429-41-4   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III   | 0.026    | Gallons | Control Area 1 |
| Tetrabutylammonium fluoride                                                                 | 429-41-4   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III   | 0.026    | Gallons | Control Area 1 |
| Tetrabutylammonium fluoride, 1M in THF                                                      | 429-41-4   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III   | 0.026    | Gallons | Control Area 1 |
| N,N,N',N'-Tetramethylethylenediamine, 98%                                                   | 110-18-9   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.007    | Gallons | Control Area 1 |
| n-Butylamine, 99.5%                                                                         | 109-73-9   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.007    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.026    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.026    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.026    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.026    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.026    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.026    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.026    | Gallons | Control Area 1 |
| Triethylamine                                                                               | 121-44-8   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>TOXICS                        | 0.132    | Gallons | Control Area 1 |
| Acryloyl chloride                                                                           | 814-68-6   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1        | 0.003    | Gallons | Control Area 1 |

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| Chemical Name                                                                               | CAS No.     | CFR Class                                                                                                   | Quantity | Unit    | Location       |
| Lithium aluminum hydride 2.1M in THF                                                        | 16853-85-3  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>TOXICS,<br>WATER REACTIVE CLASS 2              | 0.026    | Gallons | Control Area 1 |
| Tri-tert-butylphosphine, 98%                                                                | 13716-12-6  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>WATER REACTIVE CLASS 1                         | 0.000    | Gallons | Control Area 1 |
| n-Butyllithium                                                                              | 109-72-8    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>WATER REACTIVE CLASS 2                         | 0.007    | Gallons | Control Area 1 |
| n-Butyllithium                                                                              | 109-72-8    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>WATER REACTIVE CLASS 2                         | 0.007    | Gallons | Control Area 1 |
| n-Butyllithium                                                                              | 109-72-8    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>WATER REACTIVE CLASS 2                         | 0.007    | Gallons | Control Area 1 |
| n-Butyllithium                                                                              | 109-72-8    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>WATER REACTIVE CLASS 2                         | 0.007    | Gallons | Control Area 1 |
| n-Butyllithium                                                                              | 109-72-8    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>WATER REACTIVE CLASS 2                         | 0.007    | Gallons | Control Area 1 |
| n-Butyllithium                                                                              | 109-72-8    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>PYROPHORIC,<br>WATER REACTIVE CLASS 2                         | 0.026    | Gallons | Control Area 1 |
| Benzyltriethylammonium hydroxide                                                            | 100-83-6    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>TOXICS                                                        | 0.007    | Gallons | Control Area 1 |
| Diethylamine                                                                                | 109-89-7    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>TOXICS                                                        | 0.264    | Gallons | Control Area 1 |
| Piperidine, 99+%                                                                            | 110-89-4    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>TOXICS                                                        | 0.026    | Gallons | Control Area 1 |
| Propionyl chloride                                                                          | 79-93-8     | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-B,<br>WATER REACTIVE CLASS 2                                        | 0.007    | Gallons | Control Area 1 |
| Trimethyl phosphite, 99+%                                                                   | 121-43-9    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C                                                                   | 0.026    | Gallons | Control Area 1 |
| 2,5-Dimethylisoxazole-4-sulfonyl chloride, 97%                                              | 90466-79-1  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                            | 0.000    | Gallons | Control Area 1 |
| Cyclohexylamine, 99%                                                                        | 108-91-8    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                 | 0.066    | Gallons | Control Area 1 |
| (Diethylamino)sulfur Trifluoride                                                            | 58078-09-0  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2 | 0.001    | Gallons | Control Area 1 |
| Isopropylmagnesium chloride, 2.0 solution in THF                                            | 1068-35-9   | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2 | 0.026    | Gallons | Control Area 1 |
| n-Butyl-dimethylsilyl triflate                                                              | 69739-34-0  | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| 2,2,2-Trifluoroethanol                                                                      | 75-89-8     | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>TOXICS                                                        | 0.093    | Gallons | Control Area 1 |
| N,N-Dimethyl-1,3-propanediamine                                                             | 109-53-7    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>TOXICS                                                        | 0.007    | Gallons | Control Area 1 |
| N,N-Dimethyldiaminoethane                                                                   | 110-70-3    | CORROSIVES,<br>FLAMMABLE LIQUID CLASS I-C,<br>TOXICS                                                        | 0.007    | Gallons | Control Area 1 |
| 1,4-Diazabicyclo[2.2.2]octane                                                               | 280-57-9    | CORROSIVES,<br>FLAMMABLE SOLID                                                                              | 0.055    | Lbs.    | Control Area 1 |
| 2,5-Bis(trifluoromethyl)benzylamine                                                         | 85968-29-7  | CORROSIVES,<br>FLAMMABLE SOLID                                                                              | 0.011    | Lbs.    | Control Area 1 |
| tert-Butyl(dimethylchlorosilane                                                             | 18162-48-6  | CORROSIVES,<br>FLAMMABLE SOLID                                                                              | 0.219    | Lbs.    | Control Area 1 |
| tert-Butyl(dimethylsilyl chloride                                                           | 18162-48-6  | CORROSIVES,<br>FLAMMABLE SOLID                                                                              | 0.219    | Lbs.    | Control Area 1 |
| tert-Butyl(dimethylsilyl chloride, 97%                                                      | 18162-48-6  | CORROSIVES,<br>FLAMMABLE SOLID                                                                              | 0.055    | Lbs.    | Control Area 1 |
| III-1,2,3-Benzotriazol-1-ol hydrate                                                         | 123333-53-9 | CORROSIVES,<br>FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                       | 0.007    | Gallons | Control Area 1 |
| Potassium t-butoxide, >98%                                                                  | 865-47-4    | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                                     | 0.219    | Lbs.    | Control Area 1 |
| Potassium tert-butoxide                                                                     | 865-47-4    | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                                     | 0.109    | Lbs.    | Control Area 1 |
| Potassium tert-butoxide                                                                     | 865-47-4    | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                                     | 0.109    | Lbs.    | Control Area 1 |
| Potassium tert-butoxide                                                                     | 865-47-4    | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                                     | 0.109    | Lbs.    | Control Area 1 |

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| Chemical Name                                                                               | CAS No.      | CFR Class                                                                                            | Quantity | Unit    | Location       |
| Potassium tert-butoxide                                                                     | 865-47-4     | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                              | 0.219    | Lbs.    | Control Area 1 |
| Potassium tert-butoxide                                                                     | 865-47-4     | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                              | 0.219    | Lbs.    | Control Area 1 |
| Potassium tert-butoxide                                                                     | 865-47-4     | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                              | 0.219    | Lbs.    | Control Area 1 |
| Potassium tert-butoxide                                                                     | 865-47-4     | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS                                              | 0.219    | Lbs.    | Control Area 1 |
| Potassium Borohydride                                                                       | 13763-51-1   | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2                   | 0.219    | Lbs.    | Control Area 1 |
| Sodium tert-butoxide                                                                        | 865-48-5     | CORROSIVES,<br>FLAMMABLE SOLID,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2                   | 0.055    | Lbs.    | Control Area 1 |
| Sodium cyanoborohydride                                                                     | 25895-60-7   | CORROSIVES,<br>FLAMMABLE SOLID,<br>TOXICS,<br>WATER REACTIVE CLASS 1                                 | 0.184    | Lbs.    | Control Area 1 |
| Sodium cyanoborohydride                                                                     | 25895-60-7   | CORROSIVES,<br>FLAMMABLE SOLID,<br>TOXICS,<br>WATER REACTIVE CLASS 1                                 | 0.548    | Lbs.    | Control Area 1 |
| Sodium cyanoborohydride                                                                     | 25895-60-7   | CORROSIVES,<br>FLAMMABLE SOLID,<br>TOXICS,<br>WATER REACTIVE CLASS 1                                 | 0.548    | Lbs.    | Control Area 1 |
| Sodium cyanoborohydride, 95%                                                                | 25895-60-7   | CORROSIVES,<br>FLAMMABLE SOLID,<br>TOXICS,<br>WATER REACTIVE CLASS 1                                 | 0.022    | Lbs.    | Control Area 1 |
| Phosphorus pentasulfide, 99%                                                                | 1314-89-3    | CORROSIVES,<br>FLAMMABLE SOLID,<br>UNSTABLE (REACTIVE) CLASS 2,<br>TOXICS,<br>WATER REACTIVE CLASS 2 | 0.219    | Lbs.    | Control Area 1 |
| Lithium bis(trimethylsilyl)amide / LHMDS                                                    | 4039-32-1    | CORROSIVES,<br>FLAMMABLE SOLID,<br>WATER REACTIVE CLASS 2                                            | 0.109    | Lbs.    | Control Area 1 |
| Lithium bis(trimethylsilyl)amide / LHMDS                                                    | 4039-32-1    | CORROSIVES,<br>FLAMMABLE SOLID,<br>WATER REACTIVE CLASS 2                                            | 0.219    | Lbs.    | Control Area 1 |
| Lithium bis(trimethylsilyl)amide / LHMDS                                                    | 4039-32-1    | CORROSIVES,<br>FLAMMABLE SOLID,<br>WATER REACTIVE CLASS 2                                            | 0.219    | Lbs.    | Control Area 1 |
| Lithium bis(trimethylsilyl)amide / LHMDS                                                    | 4039-32-1    | CORROSIVES,<br>FLAMMABLE SOLID,<br>WATER REACTIVE CLASS 2                                            | 0.219    | Lbs.    | Control Area 1 |
| Lithium bis(trimethylsilyl)amide / LHMDS                                                    | 4039-32-1    | CORROSIVES,<br>FLAMMABLE SOLID,<br>WATER REACTIVE CLASS 2                                            | 0.219    | Lbs.    | Control Area 1 |
| Sodium methoxide                                                                            | 124-41-4     | CORROSIVES,<br>FLAMMABLE SOLID,<br>WATER REACTIVE CLASS 2                                            | 0.219    | Lbs.    | Control Area 1 |
| 2-(2-aminoethoxy)ethyl)dimethylamine                                                        | 85322-63-0   | CORROSIVES,<br>IRRITANTS                                                                             | 0.000    | Gallons | Control Area 1 |
| 2,3-Dihydro-1,4-benzodioxine-6-thiophenyl Chloride                                          | 63758-12-3   | CORROSIVES,<br>IRRITANTS                                                                             | 0.000    | Gallons | Control Area 1 |
| 2,3-dihydro-1,4-benzodioxine-6-thiophenyl chloride                                          | 63758-12-3   | CORROSIVES,<br>IRRITANTS                                                                             | 0.001    | Lbs.    | Control Area 1 |
| 2,4-Dichlorobenzyl chloride, 99%                                                            | 94-99-5      | CORROSIVES,<br>IRRITANTS                                                                             | 0.026    | Gallons | Control Area 1 |
| 2,6-Bis(benzoyl)pyridine                                                                    | 16727-46-1   | CORROSIVES,<br>IRRITANTS                                                                             | 0.001    | Gallons | Control Area 1 |
| 2,6-bis(phenylmethoxy)-3-(4,4,5,5-tetramethyl-1,3,2-dioxaborolan-2-yl)pyridine              | 2152673-80-6 | CORROSIVES,<br>IRRITANTS                                                                             | 0.007    | Gallons | Control Area 1 |
| 2,6-Diethylbenzene-1-nitrophenyl chloride                                                   | 91920-36-8   | CORROSIVES,<br>IRRITANTS                                                                             | 0.000    | Gallons | Control Area 1 |
| 2-Bromo-3-(trifluoromethyl)acetophenone                                                     | 2003-18-3    | CORROSIVES,<br>IRRITANTS                                                                             | 0.000    | Gallons | Control Area 1 |
| 2-Bromo-4'-fluoroacetophenone                                                               | 403-29-3     | CORROSIVES,<br>IRRITANTS                                                                             | 0.007    | Gallons | Control Area 1 |
| 2-Bromo-4'-methoxyacetophenone, 98%                                                         | 2632-13-5    | CORROSIVES,<br>IRRITANTS                                                                             | 0.001    | Gallons | Control Area 1 |
| 2-Bromo-4-pyridinemethanol                                                                  | 118289-16-0  | CORROSIVES,<br>IRRITANTS                                                                             | 0.003    | Gallons | Control Area 1 |
| 2-Bromobenzyl bromide, 98%                                                                  | 3431-80-5    | CORROSIVES,<br>IRRITANTS                                                                             | 0.007    | Gallons | Control Area 1 |
| 2-Chloro-6-fluorobenzyl chloride, 98%                                                       | 55117-15-2   | CORROSIVES,<br>IRRITANTS                                                                             | 0.007    | Gallons | Control Area 1 |
| 2-Chlorobenzene sulfonfyl chloride                                                          | 2905-23-9    | CORROSIVES,<br>IRRITANTS                                                                             | 0.001    | Gallons | Control Area 1 |
| 2-Fluoro-6-(trifluoromethyl)benzyl bromide, 98%                                             | 239687-68-2  | CORROSIVES,<br>IRRITANTS                                                                             | 0.000    | Gallons | Control Area 1 |
| 2-Methyl-5-phenylboron-3-carboxyl chloride                                                  | 175276-57-0  | CORROSIVES,<br>IRRITANTS                                                                             | 0.000    | Gallons | Control Area 1 |
| 3-Bromophenacyl bromide                                                                     | 18523-22-3   | CORROSIVES,<br>IRRITANTS                                                                             | 0.001    | Gallons | Control Area 1 |
| 4-(4-Bromophenyl)-5-methyl-2H-pyrazol-3-amine                                               | 955575-53-8  | CORROSIVES,<br>IRRITANTS                                                                             | 0.001    | Gallons | Control Area 1 |
| 4-Chlorobenzyl chloride, 95%                                                                | 104-83-6     | CORROSIVES,<br>IRRITANTS                                                                             | 0.026    | Gallons | Control Area 1 |
| 4-Methoxybenzyl chloride                                                                    | 824-94-2     | CORROSIVES,<br>IRRITANTS                                                                             | 0.007    | Gallons | Control Area 1 |
| 4-Methoxybenzyl chloride                                                                    | 824-94-2     | CORROSIVES,<br>IRRITANTS                                                                             | 0.007    | Gallons | Control Area 1 |
| Boc-pipericine hydrochloride                                                                | 76525-74-5   | CORROSIVES,<br>IRRITANTS                                                                             | 0.007    | Gallons | Control Area 1 |

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| Chemical Name                                                                               | CAS No.      | CFR Class                                                                                    | Quantity | Unit    | Location       |
| Boc-piperazine hydrochloride                                                                | 76335-74-5   | CORROSIVES,<br>IRRITANTS                                                                     | 0.007    | Gallons | Control Area 1 |
| Boc-piperazine hydrochloride                                                                | 76335-74-5   | CORROSIVES,<br>IRRITANTS                                                                     | 0.007    | Gallons | Control Area 1 |
| ETHYL 3-METHOXYBENZOYLFORMATE                                                               | 86338-29-4   | CORROSIVES,<br>IRRITANTS                                                                     | 0.000    | Gallons | Control Area 1 |
| Methyl 2-(bromomethyl)-5-cyanobenzoate                                                      | 421551-82-8  | CORROSIVES,<br>IRRITANTS                                                                     | 0.000    | Gallons | Control Area 1 |
| Methyl 2-(bromomethyl)-5-cyanobenzoate                                                      | 421551-82-8  | CORROSIVES,<br>IRRITANTS                                                                     | 0.001    | Gallons | Control Area 1 |
| m-Tolylhexyl chloride                                                                       | 13910-79-7   | CORROSIVES,<br>IRRITANTS                                                                     | 0.001    | Lbs.    | Control Area 1 |
| PEPPSI II[Hept-C1 -]                                                                        | 1814936-54-3 | CORROSIVES,<br>IRRITANTS                                                                     | 0.000    | Gallons | Control Area 1 |
| PEPPSI II[Hept-C1 -]                                                                        | 1814936-54-3 | CORROSIVES,<br>IRRITANTS                                                                     | 0.000    | Gallons | Control Area 1 |
| p-Toluene sulfinyl chloride                                                                 | 98-59-9      | CORROSIVES,<br>IRRITANTS                                                                     | 0.066    | Gallons | Control Area 1 |
| p-Toluenesulfonyl chloride                                                                  | 98-59-9      | CORROSIVES,<br>IRRITANTS                                                                     | 0.026    | Gallons | Control Area 1 |
| p-Toluenesulfonyl chloride                                                                  | 98-59-9      | CORROSIVES,<br>IRRITANTS                                                                     | 0.066    | Gallons | Control Area 1 |
| 4-(Bromomethyl)phenylmethanol                                                               | 71831-21-5   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| 4-(Bromomethyl)phenylmethanol                                                               | 71831-21-5   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| 4-(Bromomethyl)phenylmethanol                                                               | 71831-21-5   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| 4-(Bromomethyl)phenylmethanol                                                               | 71831-21-5   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| 4-(Bromomethyl)phenylmethanol                                                               | 71831-21-5   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| (R)-1-(3-Bromophenyl)ethanone                                                               | 176707-77-0  | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| 1-Bromo-3-nitro-5-trifluoromethylbenzene                                                    | 630125-09-4  | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| 1-Naphthalenesulfinyl chloride                                                              | 85-46-1      | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.003    | Gallons | Control Area 1 |
| 2-(Di-tert-butylphosphino)-2',3',6'-triisopropyl-3,5-dimethoxybiphenyl                      | 1168861-53-9 | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.001    | Lbs.    | Control Area 1 |
| 2,3-Dichlorobenzyl bromide, 99%                                                             | 57915-78-3   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.001    | Gallons | Control Area 1 |
| 2-Chloro-4-fluorobenzyl bromide, 99%                                                        | 45767-66-6   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| 3-(7-Bromo-3-oxo-1H-indol-2-yl)piperidine-2,6-dione                                         | 2093387-36-9 | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.003    | Gallons | Control Area 1 |
| 5-Bromo-2-methylimidazo[1,2-a]pyridine                                                      | 74420-51-2   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| 6-Bromo-1-methyl-1H-pyrol[3,2-b]pyridine                                                    | 1086064-46-1 | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| Allylpalladium(II) chloride dimer                                                           | 12012-95-2   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Gallons | Control Area 1 |
| Cesium hydroxide monohydrate, 95%                                                           | 25103-79-8   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| Glyoxylic acid monohydrate                                                                  | 563-96-2     | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.001    | Gallons | Control Area 1 |
| Methyl 4-(bromomethyl)benzoate                                                              | 2417-72-3    | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| Roxalitinib                                                                                 | 941678-49-5  | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Lbs.    | Control Area 1 |
| Roxalitinib                                                                                 | 941678-49-5  | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.000    | Lbs.    | Control Area 1 |
| Strontous chloride                                                                          | 7772-99-8    | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| Strontous chloride                                                                          | 7772-99-8    | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| Strontous chloride                                                                          | 7772-99-8    | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.026    | Gallons | Control Area 1 |
| Sulfamic acid                                                                               | 5329-14-6    | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.001    | Gallons | Control Area 1 |
| Triphenylchloromethane                                                                      | 76-83-5      | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |
| Dichlorobis(triphenylphosphine)nickel(II)                                                   | 14264-16-5   | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>SENSITIZERS,<br>WATER REACTIVE CLASS 1 | 0.001    | Gallons | Control Area 1 |



| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |              |                                                                              |          |         |                |
|---------------------------------------------------------------------------------------------|--------------|------------------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.      | CFR Class                                                                    | Quantity | Unit    | Location       |
| 3-iodo-2-methylbenzoic acid                                                                 | 133232-56-1  | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                 | 0.001    | Gallons | Control Area 1 |
| 3-iodo-2-methylbenzoic acid                                                                 | 133232-56-1  | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                 | 0.001    | Gallons | Control Area 1 |
| Mesitylglyoxylic acid                                                                       | 9112-46-7    | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1 | 0.001    | Lbs.    | Control Area 1 |
| Mesitylglyoxylic acid                                                                       | 9112-46-7    | CORROSIVES,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1 | 0.000    | Gallons | Control Area 1 |
| 3-Bromo-1-methylpyrrolid[2,3-b]pyridine                                                     | 281192-91-4  | CORROSIVES,<br>IRRITANTS,<br>TOXICS                                          | 0.000    | Gallons | Control Area 1 |
| Erlotinib                                                                                   | 183321-74-6  | CORROSIVES,<br>IRRITANTS,<br>TOXICS                                          | 0.000    | Gallons | Control Area 1 |
| Methyl 8-bromooctanoate                                                                     | 26825-92-3   | CORROSIVES,<br>IRRITANTS,<br>TOXICS                                          | 0.000    | Gallons | Control Area 1 |
| 4-tert-Butylphenyl isocyanate                                                               | 1943-67-5    | CORROSIVES,<br>IRRITANTS,<br>WATER REACTIVE CLASS 3                          | 0.000    | Gallons | Control Area 1 |
| 1-(2-Dimethylaminoethyl)-piperazine                                                         | 110-83-0     | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| 1-(2-Dimethylaminoethyl)-piperazine                                                         | 110-83-0     | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.001    | Gallons | Control Area 1 |
| 1-Propanephosphonic acid cyclic anhydride                                                   | 6897-94-8    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| 2-Bromo-1-(2-furyl)-1-ethanone                                                              | 15169-94-1   | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| 3-Methyl-8-quinoline sulfonyl chloride                                                      | 74863-82-4   | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| 3-Methyl-8-quinoline sulfonyl chloride                                                      | 74863-82-4   | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| 3-Methyl-8-quinoline sulfonyl chloride                                                      | 74863-82-4   | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| 4-(chloromethyl)benzaldehyde                                                                | 75291-09-5   | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.001    | Gallons | Control Area 1 |
| 4,4'-trifluorobenzoyl chloride                                                              | 406-91-7     | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| 3-Methyl-3-phenyl-4-isocoumaronyl chloride                                                  | 857283-56-8  | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.000    | Gallons | Control Area 1 |
| Ammonia                                                                                     | 9007664-41-7 | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.264    | Gallons | Control Area 1 |
| Ammonia                                                                                     | 9007664-41-7 | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.264    | Gallons | Control Area 1 |
| Cupric bromide, Copper (II) bromide                                                         | 7789-45-9    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.007    | Gallons | Control Area 1 |
| Cyanocetic acid                                                                             | 372-09-8     | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.264    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.661    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 1.037    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric Acid                                                                           | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Hydrochloric acid, 37.0%                                                                    | 7647-01-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.264    | Gallons | Control Area 1 |
| Iron(III) chloride anhydrous                                                                | 7705-08-0    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.001    | Gallons | Control Area 1 |
| Methoxylamine hydrochloride, 98+%                                                           | 593-56-6     | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.001    | Gallons | Control Area 1 |
| methyl 6-bromo-nicotinate                                                                   | 26218-78-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.001    | Gallons | Control Area 1 |
| Phosphoric acid, ACS                                                                        | 7664-38-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.661    | Gallons | Control Area 1 |
| Propylphosphonic anhydride solution                                                         | 6897-94-8    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.026    | Gallons | Control Area 1 |
| Propylphosphonic anhydride solution in DMF                                                  | 6897-94-8    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 9.026    | Gallons | Control Area 1 |
| Sodium hydroxide, 1N                                                                        | 0001310-73-2 | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.264    | Gallons | Control Area 1 |
| Sodium hydroxide, 1N                                                                        | 0001310-73-2 | CORROSIVES,<br>OTHER HEALTH HAZARDS                                          | 0.264    | Gallons | Control Area 1 |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |              |                                                                    |          |         |                |
|---------------------------------------------------------------------------------------------|--------------|--------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.      | CFC Class                                                          | Quantity | Unit    | Location       |
| Sodium hydroxide, 1N                                                                        | 0001310-73-2 | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.264    | Gallons | Control Area 1 |
| Sodium hydroxide, 1N                                                                        | 0001310-73-2 | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.264    | Gallons | Control Area 1 |
| Sodium hydroxide, 1N                                                                        | 0001310-73-2 | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.264    | Gallons | Control Area 1 |
| Trifluoroacetic acid                                                                        | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.026    | Gallons | Control Area 1 |
| Trifluoroacetic Acid                                                                        | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.132    | Gallons | Control Area 1 |
| Trifluoroacetic acid                                                                        | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.132    | Gallons | Control Area 1 |
| Trifluoroacetic acid                                                                        | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.132    | Gallons | Control Area 1 |
| Trifluoroacetic acid                                                                        | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.132    | Gallons | Control Area 1 |
| Trifluoroacetic acid                                                                        | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.132    | Gallons | Control Area 1 |
| Trifluoroacetic acid                                                                        | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.132    | Gallons | Control Area 1 |
| Trifluoroacetic acid 99.0%                                                                  | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.026    | Gallons | Control Area 1 |
| Trifluoroacetic acid 99.0%                                                                  | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.026    | Gallons | Control Area 1 |
| Trifluoroacetic acid 99.0%                                                                  | 76-05-1      | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.132    | Gallons | Control Area 1 |
| Ammonia solution in dioxane, 0.5 M                                                          | 7664-41-7    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS IV | 0.026    | Gallons | Control Area 1 |
| Ammonia solution in methanol, 7 N                                                           | 7664-41-7    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS IV | 0.026    | Gallons | Control Area 1 |
| Ammonia solution in THF, 0.5 M                                                              | 7664-41-7    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS IV | 0.026    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Cesium fluoride                                                                             | 13400-13-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Hydrofluoroic acid                                                                          | 16872-11-0   | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.007    | Gallons | Control Area 1 |
| Methanesulfonic acid, 99%                                                                   | 75-75-2      | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.026    | Gallons | Control Area 1 |
| N,N-Dicyclohexylcarbodiimide, 1M solution in DCM                                            | 538-75-0     | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.026    | Gallons | Control Area 1 |
| N,N-Dicyclohexylcarbodiimide, 1M solution in DCM                                            | 538-75-0     | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>TOXICS                     | 0.026    | Gallons | Control Area 1 |
| Lithium hydroxide                                                                           | 1310-65-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1     | 0.026    | Gallons | Control Area 1 |
| Lithium hydroxide, anhydrous                                                                | 1310-65-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1     | 0.026    | Gallons | Control Area 1 |
| Lithium hydroxide, anhydrous                                                                | 1310-65-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1     | 0.026    | Gallons | Control Area 1 |
| Sodium hydroxide                                                                            | 1310-73-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1     | 0.132    | Gallons | Control Area 1 |
| Sodium Hydroxide                                                                            | 1310-73-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1     | 0.132    | Gallons | Control Area 1 |
| Sodium hydroxide                                                                            | 1310-73-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1     | 0.132    | Gallons | Control Area 1 |
| Sodium hydroxide                                                                            | 1310-73-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1     | 0.132    | Gallons | Control Area 1 |
| Hydrogen peroxide, 30 wt % in H2O                                                           | 7722-84-1    | CORROSIVES,<br>OXIDIZER CLASS 2                                    | 0.026    | Gallons | Control Area 1 |
| N-Chlorosuccinimide                                                                         | 128-09-6     | CORROSIVES,<br>OXIDIZER CLASS 2                                    | 0.007    | Gallons | Control Area 1 |
| N-Chlorosuccinimide                                                                         | 128-09-6     | CORROSIVES,<br>OXIDIZER CLASS 2                                    | 0.007    | Gallons | Control Area 1 |
| Periodic acid                                                                               | 10450-66-9   | CORROSIVES,<br>OXIDIZER CLASS 2                                    | 0.007    | Gallons | Control Area 1 |
| Supersignal West Pento Stable Peroxide Buffer                                               | 7722-84-1    | CORROSIVES,<br>OXIDIZER CLASS 2                                    | 0.013    | Gallons | Control Area 1 |
| Nitric acid, ACS                                                                            | 7697-37-2    | CORROSIVES,<br>OTHER HEALTH HAZARDS                                | 0.661    | Gallons | Control Area 1 |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |            |                                                          |          |         |                |
|---------------------------------------------------------------------------------------------|------------|----------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.    | CFR Class                                                | Quantity | Unit    | Location       |
| Nitric acid, ACS                                                                            | 7697-37-2  | CORROSIVES,<br>OXIDIZER CLASS 2,<br>OTHER HEALTH HAZARDS | 0.106    | Gallons | Control Area 1 |
| Nitric Acid, fuming,                                                                        | 7697-37-2  | CORROSIVES,<br>OXIDIZER CLASS 2,<br>OTHER HEALTH HAZARDS | 0.663    | Gallons | Control Area 1 |
| Sodium metaperiodate                                                                        | 7798-28-5  | CORROSIVES,<br>OXIDIZER CLASS 2,<br>OTHER HEALTH HAZARDS | 0.007    | Gallons | Control Area 1 |
| 4-Dimethylaminopyridine (DMAP)                                                              | 1122-58-3  | CORROSIVES,<br>TOXICS                                    | 0.093    | Gallons | Control Area 1 |
| 4-Dimethylaminopyridine (DMAP)                                                              | 1122-58-3  | CORROSIVES,<br>TOXICS                                    | 0.007    | Gallons | Control Area 1 |
| 4-Dimethylaminopyridine (DMAP)                                                              | 1122-58-3  | CORROSIVES,<br>TOXICS                                    | 0.007    | Gallons | Control Area 1 |
| 4-Dimethylaminopyridine (DMAP)                                                              | 1122-58-3  | CORROSIVES,<br>TOXICS                                    | 0.026    | Gallons | Control Area 1 |
| Bromine                                                                                     | 7726-95-6  | CORROSIVES,<br>TOXICS                                    | 0.026    | Gallons | Control Area 1 |
| Copper (I) chloride                                                                         | 7758-89-6  | CORROSIVES,<br>TOXICS                                    | 0.007    | Gallons | Control Area 1 |
| Copper chloride                                                                             | 7758-89-6  | CORROSIVES,<br>TOXICS                                    | 0.013    | Gallons | Control Area 1 |
| Copper(I) chloride                                                                          | 7758-89-6  | CORROSIVES,<br>TOXICS                                    | 0.003    | Gallons | Control Area 1 |
| Cuprous chloride                                                                            | 7758-89-6  | CORROSIVES,<br>TOXICS                                    | 0.003    | Gallons | Control Area 1 |
| Cuprous chloride                                                                            | 7758-89-6  | CORROSIVES,<br>TOXICS                                    | 0.007    | Gallons | Control Area 1 |
| Cuprous chloride                                                                            | 7758-89-6  | CORROSIVES,<br>TOXICS                                    | 0.007    | Gallons | Control Area 1 |
| Diethylenetriaminepentakis(methylphosphonic acid) solution                                  | 15827-60-8 | CORROSIVES,<br>TOXICS                                    | 0.026    | Gallons | Control Area 1 |
| Iron(III) chloride hexahydrate                                                              | 10025-77-1 | CORROSIVES,<br>TOXICS                                    | 0.007    | Gallons | Control Area 1 |
| Phthalaldehyde                                                                              | 643-79-8   | CORROSIVES,<br>TOXICS                                    | 0.001    | Gallons | Control Area 1 |
| Potassium fluoride                                                                          | 7789-23-3  | CORROSIVES,<br>TOXICS                                    | 0.007    | Gallons | Control Area 1 |
| Zinc chloride, anhydrous, 98+%                                                              | 7664-85-7  | CORROSIVES,<br>TOXICS                                    | 0.132    | Gallons | Control Area 1 |
| Potassium hydroxide                                                                         | 1318-58-3  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 1         | 0.026    | Gallons | Control Area 1 |
| Potassium hydroxide                                                                         | 1318-58-3  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 1         | 0.026    | Gallons | Control Area 1 |
| Potassium hydroxide                                                                         | 1318-58-3  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 1         | 0.026    | Gallons | Control Area 1 |
| Potassium hydroxide                                                                         | 1318-58-3  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 1         | 0.026    | Gallons | Control Area 1 |
| Potassium hydroxide                                                                         | 1318-58-3  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 1         | 0.132    | Gallons | Control Area 1 |
| Potassium hydroxide (Pellets)                                                               | 1318-58-3  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 1         | 0.026    | Gallons | Control Area 1 |
| Stannic chloride                                                                            | 7664-78-8  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 1         | 0.000    | Gallons | Control Area 1 |
| Methanesulfonyl chloride                                                                    | 124-63-0   | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.026    | Gallons | Control Area 1 |
| Phosphorus oxychloride                                                                      | 10025-87-3 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.066    | Gallons | Control Area 1 |
| Phosphorus oxychloride                                                                      | 10025-87-3 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.066    | Gallons | Control Area 1 |
| Phosphorus oxychloride                                                                      | 10025-87-3 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.066    | Gallons | Control Area 1 |
| Phosphorus oxychloride                                                                      | 10025-87-3 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.066    | Gallons | Control Area 1 |
| Phosphorus(V) Oxychloride                                                                   | 10025-87-3 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.066    | Gallons | Control Area 1 |
| Sodium borohydride                                                                          | 16940-66-2 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.007    | Gallons | Control Area 1 |
| Sodium borohydride                                                                          | 16940-66-2 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.026    | Gallons | Control Area 1 |
| Sodium borohydride                                                                          | 16940-66-2 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.026    | Gallons | Control Area 1 |
| Sodium borohydride                                                                          | 16940-66-2 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.026    | Gallons | Control Area 1 |
| Sodium borohydride, 98+%                                                                    | 16940-66-2 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.093    | Gallons | Control Area 1 |
| Sodium borohydride, 99%                                                                     | 16940-66-2 | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.007    | Gallons | Control Area 1 |
| Sulfuric acid                                                                               | 7664-93-9  | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2         | 0.026    | Gallons | Control Area 1 |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |             |                                                                                  |          |         |                |
|---------------------------------------------------------------------------------------------|-------------|----------------------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.     | CFR Class                                                                        | Quantity | Unit    | Location       |
| Sulfuric acid                                                                               | 7664-93-9   | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2                                 | 0.026    | Gallons | Control Area 1 |
| Sulfuric acid                                                                               | 7664-93-9   | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2                                 | 0.026    | Gallons | Control Area 1 |
| Sulfuric acid                                                                               | 7664-93-9   | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2                                 | 0.132    | Gallons | Control Area 1 |
| Sulfuric acid, ACB                                                                          | 7664-93-9   | CORROSIVES,<br>TOXICS,<br>WATER REACTIVE CLASS 2                                 | 0.661    | Gallons | Control Area 1 |
| Trifluoroacetic anhydride, 99%                                                              | 407-25-0    | CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS 1                                       | 0.026    | Gallons | Control Area 1 |
| Chlorosulfonic acid, 97%                                                                    | 7790-94-5   | CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS 2,<br>TOXICS,<br>WATER REACTIVE CLASS 2 | 0.026    | Gallons | Control Area 1 |
| Chlorosulfonic acid, 99%                                                                    | 7790-94-5   | CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS 2,<br>TOXICS,<br>WATER REACTIVE CLASS 2 | 0.000    | Lbs.    | Control Area 1 |
| Chlorosulfonic acid, 99%                                                                    | 7790-94-5   | CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS 2,<br>TOXICS,<br>WATER REACTIVE CLASS 2 | 0.026    | Gallons | Control Area 1 |
| Phosphorous trichloride, 99%                                                                | 7719-12-2   | CORROSIVES,<br>UNSTABLE (REACTIVE) CLASS 2,<br>TOXICS,<br>WATER REACTIVE CLASS 2 | 0.066    | Gallons | Control Area 1 |
| 1,1'-Carbonyldiimidazole                                                                    | 530-63-1    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| 2-Nitrobenzenesulfonyl chloride                                                             | 1691-92-4   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| 2-Nitrobenzenesulfonyl chloride                                                             | 1694-92-4   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| 3-Nitrobenzenesulfonyl chloride                                                             | 121-51-7    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| 4-Bromo-2-(trifluoromethyl)benzenesulfonyl chloride, 97%                                    | 176225-10-8 | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.000    | Gallons | Control Area 1 |
| 4-Bromo-2-ethylbenzene-1-sulfonyl chloride, 95%                                             | 175278-24-7 | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.003    | Gallons | Control Area 1 |
| 4-Chlorobenzenesulfonyl chloride, 97%                                                       | 98-60-2     | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.001    | Gallons | Control Area 1 |
| 4-Fluorobenzenesulfonyl chloride, 98%                                                       | 349-88-3    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| 4-Nitrobenzene-1-sulfonyl chloride                                                          | 98-74-8     | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| 4-Nitrobenzenesulfonyl chloride, 97%                                                        | 98-74-8     | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.001    | Gallons | Control Area 1 |
| 4-tert-Butylbenzenesulfonyl chloride                                                        | 15084-51-2  | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.001    | Gallons | Control Area 1 |
| 5-Methyl-2-(trifluoromethyl)-3-fumarsulfonyl chloride, 97%                                  | 366935-02-4 | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.000    | Gallons | Control Area 1 |
| 5-Methyl-2-(trifluoromethyl)-3-fumarsulfonyl chloride, 97%                                  | 366935-02-4 | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.000    | Gallons | Control Area 1 |
| CDI, reagent grade                                                                          | 530-63-1    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| Chloromethyl chloroformate                                                                  | 22128-62-7  | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| Chloromethyl chloroformate                                                                  | 22128-62-7  | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.026    | Gallons | Control Area 1 |
| Methanesulfonyl anhydride                                                                   | 7143-01-3   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| Methanesulfonyl anhydride                                                                   | 7143-01-3   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| Methanesulfonyl anhydride                                                                   | 7143-01-3   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| Methanesulfonyl anhydride                                                                   | 7143-01-3   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.026    | Gallons | Control Area 1 |
| METHYL 5-(CHLOROSULFONYL)-2-METHYL-3-furante                                                | 366936-35-6 | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.000    | Gallons | Control Area 1 |
| N,N'-Carbonyldiimidazole                                                                    | 530-62-1    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| N,N'-Carbonyldiimidazole                                                                    | 530-63-1    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.026    | Gallons | Control Area 1 |
| N,N'-Carbonyldiimidazole, CDI                                                               | 530-62-1    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.026    | Gallons | Control Area 1 |
| N-Acrylmethylamide                                                                          | 121-60-8    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.001    | Gallons | Control Area 1 |
| Phenylmethanesulfonyl chloride, 98%                                                         | 1939-99-7   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.001    | Gallons | Control Area 1 |
| Phenylmethanesulfonyl chloride, 98%                                                         | 1939-99-7   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.001    | Gallons | Control Area 1 |
| Trifluoromethanesulfonic acid                                                               | 1493-13-6   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.066    | Gallons | Control Area 1 |
| Trifluoroacetic anhydride                                                                   | 421-83-0    | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.001    | Gallons | Control Area 1 |
| Triphenylphosphine dibromide                                                                | 1034-39-5   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| Triphenylphosphine dibromide                                                                | 1034-39-5   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |
| Triphenylphosphine dibromide                                                                | 1034-39-5   | CORROSIVES,<br>WATER REACTIVE CLASS 1                                            | 0.007    | Gallons | Control Area 1 |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |               |                                                                         |          |         |                |
|---------------------------------------------------------------------------------------------|---------------|-------------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.       | CFR Class                                                               | Quantity | Unit    | Location       |
| Triphenylphosphine dibromide                                                                | 1034-39-5     | CORROSIVES,<br>WATER REACTIVE CLASS 1                                   | 0.007    | Gallons | Control Area 1 |
| Triphenylphosphine dibromide                                                                | 1034-39-5     | CORROSIVES,<br>WATER REACTIVE CLASS 1                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide                                                                            | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide                                                                            | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide                                                                            | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide                                                                            | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide                                                                            | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide                                                                            | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide                                                                            | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Boron tribromide, 1.0 M in methylene chloride                                               | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Boron tribromide, 1M solution in methylene chloride                                         | 10294-33-4    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Methyl-4-[(chlorodifluoromethyl)benzoate, 95%                                               | 130617-14-2   | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.000    | Gallons | Control Area 1 |
| Phosphorus Pentachloride                                                                    | 10026-13-8    | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Sodium hydride                                                                              | 7646-69-7     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.001    | Gallons | Control Area 1 |
| Sodium hydride                                                                              | 7646-69-7     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.003    | Gallons | Control Area 1 |
| Sodium hydride                                                                              | 7646-69-7     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Sodium hydride                                                                              | 7646-69-7     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Sodium hydride                                                                              | 7646-69-7     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Sodium hydride                                                                              | 7646-69-7     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Sodium hydride                                                                              | 7646-69-7     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Sulphuryl chloride                                                                          | 7791-25-5     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.007    | Gallons | Control Area 1 |
| Sulphuryl chloride                                                                          | 7791-25-5     | CORROSIVES,<br>WATER REACTIVE CLASS 2                                   | 0.026    | Gallons | Control Area 1 |
| Lithium aluminum hydride                                                                    | 00016853-83-3 | CORROSIVES,<br>WATER REACTIVE CLASS 3,<br>WATER REACTIVE CLASS 3        | 0.055    | Lbs.    | Control Area 1 |
| Lithium aluminum hydride                                                                    | 00016853-83-3 | CORROSIVES,<br>WATER REACTIVE CLASS 3,<br>WATER REACTIVE CLASS 3        | 0.055    | Lbs.    | Control Area 1 |
| Lithium aluminum hydride                                                                    | 00016853-83-3 | CORROSIVES,<br>WATER REACTIVE CLASS 3,<br>WATER REACTIVE CLASS 3        | 0.055    | Lbs.    | Control Area 1 |
| 1-Hydroxybenzotriazole hydrate, 98%                                                         | 123333-53-9   | EXPLOSIVES DIVISION 1.3,<br>IRRITANTS                                   | 0.026    | Gallons | Control Area 1 |
| Hydrogen Gas                                                                                | 1333-74-0     | FLAMMABLE GAS GASEOUS<br>LIQUEFIED                                      | 200.000  | Cu. Ft. | Control Area 1 |
| Ethanol                                                                                     | 75-08-1       | FLAMMABLE LIQUID CLASS 1-A                                              | 0.007    | Gallons | Control Area 1 |
| 3,4-Dihydro-2H-pyran                                                                        | 110-87-2      | FLAMMABLE LIQUID CLASS 1-B                                              | 0.007    | Gallons | Control Area 1 |
| Flammable Liquid Waste                                                                      | 000136-00-0   | FLAMMABLE LIQUID CLASS 1-B                                              | 55.000   | Gallons | Control Area 1 |
| Methylboronic acid pinacol ester                                                            | 91213-83-0    | FLAMMABLE LIQUID CLASS 1-B                                              | 0.007    | Gallons | Control Area 1 |
| Methylboronic acid pinacol ester                                                            | 91213-83-0    | FLAMMABLE LIQUID CLASS 1-B                                              | 0.007    | Gallons | Control Area 1 |
| Pivaloyl chloride                                                                           | 7282-39-2     | FLAMMABLE LIQUID CLASS 1-B                                              | 0.026    | Gallons | Control Area 1 |
| Pivaloyl chloride                                                                           | 7282-39-2     | FLAMMABLE LIQUID CLASS 1-B                                              | 0.026    | Gallons | Control Area 1 |
| Pyrimidine                                                                                  | 123-75-1      | FLAMMABLE LIQUID CLASS 1-B                                              | 0.026    | Gallons | Control Area 1 |
| 2-hexanol                                                                                   | 75-65-0       | FLAMMABLE LIQUID CLASS 1-B                                              | 0.026    | Gallons | Control Area 1 |
| 2-hexanol                                                                                   | 75-65-0       | FLAMMABLE LIQUID CLASS 1-B                                              | 0.026    | Gallons | Control Area 1 |
| 3-CHLORO-2,4-PENTANEDIONE                                                                   | 1694-29-7     | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.007    | Gallons | Control Area 1 |
| 4-Methylpiperidine                                                                          | 626-58-4      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.001    | Gallons | Control Area 1 |
| 5-bromo-4-methyl-1,2-thiazole                                                               | 503427-64-1   | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.000    | Gallons | Control Area 1 |
| Buryl Vinyl ether                                                                           | 111-34-2      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.007    | Gallons | Control Area 1 |
| Cyclopentylacetyl chloride                                                                  | 1122-99-2     | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.000    | Gallons | Control Area 1 |
| Cyclopropyl Methyl Ketone                                                                   | 765-43-5      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.007    | Gallons | Control Area 1 |
| ethyl pent-4-ynoate                                                                         | 63092-41-4    | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.000    | Gallons | Control Area 1 |
| isovaleraldehyde                                                                            | 599-86-3      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.001    | Gallons | Control Area 1 |
| Methyl propiolate                                                                           | 922-67-8      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.007    | Gallons | Control Area 1 |
| tert-Butyl acetate                                                                          | 540-88-5      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.066    | Gallons | Control Area 1 |
| tert-Butyl acrylate                                                                         | 1663-39-4     | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.007    | Gallons | Control Area 1 |
| tert-Butyl acrylate                                                                         | 1663-39-4     | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.007    | Gallons | Control Area 1 |
| Tetradifluoroboric acid diethyl ether complex                                               | 67969-82-8    | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.026    | Gallons | Control Area 1 |
| Triethylsilane                                                                              | 617-86-7      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.007    | Gallons | Control Area 1 |
| Trimethyl silyl acetylene, 98%                                                              | 1066-54-2     | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS                                | 0.001    | Gallons | Control Area 1 |
| Cyclopentene                                                                                | 142-29-0      | FLAMMABLE LIQUID CLASS 1-B,<br>IRRITANTS,<br>ORGANIC PEROXIDES CLASS II | 0.026    | Gallons | Control Area 1 |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |            |                                                                                                   |          |         |                |  |
|---------------------------------------------------------------------------------------------|------------|---------------------------------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.    | CFR Class                                                                                         | Quantity | Unit    | Location       |  |
| 1-Bromopropane, 98%                                                                         | 106-94-5   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.001    | Gallons | Control Area 1 |  |
| 2-Bromo-2-methylpropane, 98%                                                                | 507-19-7   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.026    | Gallons | Control Area 1 |  |
| 2-Bromopropane                                                                              | 75-26-3    | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.007    | Gallons | Control Area 1 |  |
| cyclopropylacetylene                                                                        | 6746-94-7  | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.007    | Gallons | Control Area 1 |  |
| cyclopropylacetylene                                                                        | 6746-94-7  | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.007    | Gallons | Control Area 1 |  |
| Iodoacetaldehyde                                                                            | 78-84-2    | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.007    | Gallons | Control Area 1 |  |
| Methanol D4                                                                                 | 811-98-3   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.003    | Gallons | Control Area 1 |  |
| n-Propanol                                                                                  | 71-23-8    | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.007    | Gallons | Control Area 1 |  |
| Pyridine                                                                                    | 110-86-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.026    | Gallons | Control Area 1 |  |
| Pyridine                                                                                    | 110-86-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.026    | Gallons | Control Area 1 |  |
| Pyridine                                                                                    | 110-86-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.026    | Gallons | Control Area 1 |  |
| Pyridine                                                                                    | 110-86-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.132    | Gallons | Control Area 1 |  |
| Pyridine                                                                                    | 110-86-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.132    | Gallons | Control Area 1 |  |
| trimethoxymethyl silane 98-%                                                                | 1185-55-3  | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                 | 0.007    | Gallons | Control Area 1 |  |
| 1,4-Dioxane                                                                                 | 123-91-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III | 0.264    | Gallons | Control Area 1 |  |
| 1,4-Dioxane                                                                                 | 123-91-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III | 0.026    | Gallons | Control Area 1 |  |
| 1,4-Dioxane                                                                                 | 123-91-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III | 0.026    | Gallons | Control Area 1 |  |
| 1,4-Dioxane                                                                                 | 123-91-1   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>ORGANIC PEROXIDES CLASS III | 0.026    | Gallons | Control Area 1 |  |
| Allyl acetate                                                                               | 591-87-7   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                      | 0.007    | Gallons | Control Area 1 |  |
| isomyl nitrite                                                                              | 110-46-3   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                      | 0.007    | Gallons | Control Area 1 |  |
| Di-tert-butyl peroxide                                                                      | 110-65-4   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OXIDIZER CLASS I,<br>ORGANIC PEROXIDES CLASS III     | 0.026    | Gallons | Control Area 1 |  |
| tert-Butyl nitrite                                                                          | 540-80-7   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OXIDIZER CLASS I,<br>TOXICS                          | 0.007    | Gallons | Control Area 1 |  |
| tert-Butyl nitrite                                                                          | 540-80-7   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>OXIDIZER CLASS I,<br>TOXICS                          | 0.026    | Gallons | Control Area 1 |  |
| Isopropyl isocyanate, 98+%                                                                  | 1795-48-8  | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>SENSITIZERS                                          | 0.007    | Gallons | Control Area 1 |  |
| sec-Butyl isocyanate, 98%                                                                   | 15585-98-5 | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>SENSITIZERS                                          | 0.003    | Gallons | Control Area 1 |  |
| Ethyl isocyanate, 98%                                                                       | 109-90-0   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>SENSITIZERS,<br>TOXICS,<br>WATER REACTIVE CLASS 1    | 0.007    | Gallons | Control Area 1 |  |
| Ethyl isocyanate, 98%                                                                       | 109-90-0   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>SENSITIZERS,<br>TOXICS,<br>WATER REACTIVE CLASS 1    | 0.007    | Gallons | Control Area 1 |  |
| Propargyl bromide                                                                           | 106-96-7   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |  |
| Propargyl Bromide                                                                           | 106-96-7   | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |  |
| N,N-Dimethylformamide dimethyl acetal                                                       | 4637-24-5  | FLAMMABLE LIQUID CLASS I-B,<br>IRRITANTS,<br>WATER REACTIVE CLASS 1                               | 0.026    | Gallons | Control Area 1 |  |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |            |                                                                                                |          |         |                |  |
|---------------------------------------------------------------------------------------------|------------|------------------------------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.    | CFR Class                                                                                      | Quantity | Unit    | Location       |  |
| Acrylonitrile                                                                               | 107-13-1   | FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>TOXICS                          | 0.007    | Gallons | Control Area 1 |  |
| Tetrahydrofuran                                                                             | 109-99-9   | FLAMMABLE LIQUID CLASS I-B,<br>ORGANIC PEROXIDES CLASS III,<br>UNSTABLE (REACTIVE) CLASS 1     | 0.026    | Gallons | Control Area 1 |  |
| 2-Methylbutyraldehyde                                                                       | 96-17-3    | FLAMMABLE LIQUID CLASS I-B,<br>UNSTABLE (REACTIVE) CLASS 1                                     | 0.001    | Gallons | Control Area 1 |  |
| 1-(4-TERT-BUTYLPHENYL)ETHAN-1-ONE                                                           | 943-27-1   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS                                                       | 0.001    | Gallons | Control Area 1 |  |
| 1-Decanopentanoic                                                                           | 110-93-2   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS                                                       | 0.001    | Gallons | Control Area 1 |  |
| 3-Butyn-1-ol, 97%                                                                           | 927-74-2   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS                                                       | 0.007    | Gallons | Control Area 1 |  |
| Cyclopropyl methyl carbinol, 96%                                                            | 765-42-4   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS                                                       | 0.007    | Gallons | Control Area 1 |  |
| 2,5-Dimethylthiophene, 98%                                                                  | 633-02-8   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                              | 0.007    | Gallons | Control Area 1 |  |
| Isobutanol                                                                                  | 78-83-1    | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                              | 0.007    | Gallons | Control Area 1 |  |
| 2,2,6,6-Tetramethylpiperidine                                                               | 763-66-1   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.007    | Gallons | Control Area 1 |  |
| Di- <i>t</i> -butyl dicarbonate                                                             | 24424-99-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.026    | Gallons | Control Area 1 |  |
| Di- <i>t</i> -butyl dicarbonate                                                             | 24424-99-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.013    | Gallons | Control Area 1 |  |
| Di- <i>t</i> -butyl dicarbonate                                                             | 24424-99-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.026    | Gallons | Control Area 1 |  |
| Di- <i>t</i> -butyl dicarbonate                                                             | 24424-99-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.026    | Gallons | Control Area 1 |  |
| Di- <i>t</i> -butyl dicarbonate                                                             | 24424-99-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.026    | Gallons | Control Area 1 |  |
| Di- <i>t</i> -butyl dicarbonate, 97%                                                        | 24424-99-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.026    | Gallons | Control Area 1 |  |
| Di- <i>tert</i> -butyl dicarbonate                                                          | 24424-99-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                   | 0.026    | Gallons | Control Area 1 |  |
| N,N'-Diisopropylcarbodiimide                                                                | 693-13-0   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>SENSITIZERS,<br>TOXICS,<br>WATER REACTIVE CLASS 1 | 0.007    | Gallons | Control Area 1 |  |
| 2,6-dimethylpyridine                                                                        | 108-48-5   | FLAMMABLE LIQUID CLASS I-C,<br>TOXICS                                                          | 0.007    | Gallons | Control Area 1 |  |
| 2,6-Teridine                                                                                | 108-48-5   | FLAMMABLE LIQUID CLASS I-C,<br>TOXICS                                                          | 0.026    | Gallons | Control Area 1 |  |
| 2,6-Lutidine                                                                                | 108-48-5   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>TOXICS                                            | 0.026    | Gallons | Control Area 1 |  |
| Phyl 4,4,4-trifluoroacetate, 99%                                                            | 372-31-6   | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>TOXICS                                            | 0.007    | Gallons | Control Area 1 |  |
| Bromomethyl methyl ether                                                                    | 13057-17-5 | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>WATER REACTIVE CLASS 1                            | 0.000    | Gallons | Control Area 1 |  |
| Triethyl orthoacetate                                                                       | 78-39-7    | FLAMMABLE LIQUID CLASS I-C,<br>IRRITANTS,<br>WATER REACTIVE CLASS 1                            | 0.007    | Gallons | Control Area 1 |  |
| 2,5-Dimethoxytetrahydrofuran                                                                | 696-59-3   | FLAMMABLE LIQUID CLASS I-C,<br>OTHER HEALTH HAZARDS                                            | 0.007    | Gallons | Control Area 1 |  |
| 2-Bromoethyl methyl ether                                                                   | 6482-24-2  | FLAMMABLE LIQUID CLASS I-C,<br>OTHER HEALTH HAZARDS                                            | 0.001    | Gallons | Control Area 1 |  |
| Chlorotrimethylsilane, 98%+                                                                 | 75-77-1    | FLAMMABLE LIQUID CLASS I-C,<br>WATER REACTIVE CLASS 3                                          | 0.066    | Gallons | Control Area 1 |  |
| Palladium on activated charcoal                                                             | 7440-05-3  | FLAMMABLE SOLID                                                                                | 0.109    | Lbs.    | Control Area 1 |  |
| Palladium on activated charcoal                                                             | 7440-05-3  | FLAMMABLE SOLID                                                                                | 0.109    | Lbs.    | Control Area 1 |  |
| Palladium on carbon                                                                         | 7440-05-3  | FLAMMABLE SOLID                                                                                | 0.022    | Lbs.    | Control Area 1 |  |
| Palladium on carbon                                                                         | 7440-05-3  | FLAMMABLE SOLID                                                                                | 0.022    | Lbs.    | Control Area 1 |  |
| Palladium/C                                                                                 | 7440-05-3  | FLAMMABLE SOLID                                                                                | 0.109    | Lbs.    | Control Area 1 |  |
| Rhodium on alumina                                                                          | 7440-05-3  | FLAMMABLE SOLID                                                                                | 0.011    | Lbs.    | Control Area 1 |  |
| 1,3,5-Trisocane, 98%                                                                        | 110-88-3   | FLAMMABLE SOLID,<br>IRRITANTS                                                                  | 0.055    | Lbs.    | Control Area 1 |  |
| 1-Hydroxybenzotriazole / HOBt                                                               | 2592-95-2  | FLAMMABLE SOLID,<br>IRRITANTS                                                                  | 0.548    | Lbs.    | Control Area 1 |  |
| 4-Acetylbenzotriazole                                                                       | 709-63-7   | FLAMMABLE SOLID,<br>IRRITANTS                                                                  | 0.055    | Lbs.    | Control Area 1 |  |
| 5-Bromo-2-methylaniline, 98%                                                                | 39478-78-9 | FLAMMABLE SOLID,<br>IRRITANTS                                                                  | 0.055    | Lbs.    | Control Area 1 |  |
| Activated Carbon                                                                            | 7440-44-0  | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                                         | 0.022    | Lbs.    | Control Area 1 |  |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |            |                                                                          |          |         |                |  |
|---------------------------------------------------------------------------------------------|------------|--------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.    | CFR Class                                                                | Quantity | Unit    | Location       |  |
| Azobisisobutyronitrile                                                                      | 78-67-1    | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.219    | Lbs.    | Control Area 1 |  |
| Azobisisobutyronitrile                                                                      | 78-67-1    | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.219    | Lbs.    | Control Area 1 |  |
| Platinum (IV) oxide hydrate                                                                 | 52783-06-5 | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.002    | Lbs.    | Control Area 1 |  |
| Platinum 1% and vanadium 2% on activated carbon                                             | 7440-06-4  | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.022    | Lbs.    | Control Area 1 |  |
| Platinum on activated carbon                                                                | 7410-06-4  | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.002    | Lbs.    | Control Area 1 |  |
| Platinum on activated carbon                                                                | 7440-06-4  | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                   | 0.002    | Lbs.    | Control Area 1 |  |
| Paraformaldehyde, Powder                                                                    | 30525-89-4 | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>SENSITIZERS   | 0.011    | Lbs.    | Control Area 1 |  |
| Tris(triphenylphosphine)iodium(I) chloride                                                  | 14694-93-2 | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS        | 0.002    | Lbs.    | Control Area 1 |  |
| Tris(triphenylphosphine)iodium(I) chloride                                                  | 14694-93-2 | FLAMMABLE SOLID,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS        | 0.002    | Lbs.    | Control Area 1 |  |
| N,N1-Dimethylbenzene-1,1'-diamine, 97%                                                      | 99-98-9    | HIGHLY TOXICS,<br>IRRITANTS                                              | 0.007    | Gallons | Control Area 1 |  |
| Cyclotrimide solution                                                                       | 66-81-6    | HIGHLY TOXICS,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                     | 0.000    | Gallons | Control Area 1 |  |
| Potassium cyanide, 97+%                                                                     | 151-50-3   | HIGHLY TOXICS,<br>IRRITANTS,<br>OTHER HEALTH HAZARDS                     | 0.026    | Gallons | Control Area 1 |  |
| Sodium azide                                                                                | 26626-22-8 | HIGHLY TOXICS,<br>UNSTABLE (REACTIVE) CLASS 3,<br>WATER REACTIVE CLASS 2 | 0.026    | Gallons | Control Area 1 |  |
| Sodium azide, 99.51%                                                                        | 26626-22-8 | HIGHLY TOXICS,<br>UNSTABLE (REACTIVE) CLASS 3,<br>WATER REACTIVE CLASS 2 | 0.007    | Gallons | Control Area 1 |  |
| Carbon Dioxide Gas                                                                          | 124-38-9   | INERT GAS, GASEOUS                                                       | 437.000  | Cu. Ft. | Control Area 1 |  |
| Carbon Dioxide Gas                                                                          | 124-38-9   | INERT GAS, GASEOUS                                                       | 437.000  | Cu. Ft. | Control Area 1 |  |
| Carbon Dioxide Gas                                                                          | 124-38-9   | INERT GAS, GASEOUS                                                       | 437.000  | Cu. Ft. | Control Area 1 |  |
| Carbon Dioxide Gas                                                                          | 124-38-9   | INERT GAS, GASEOUS                                                       | 437.000  | Cu. Ft. | Control Area 1 |  |
| Carbon Dioxide Gas                                                                          | 124-38-9   | INERT GAS, GASEOUS                                                       | 437.000  | Cu. Ft. | Control Area 1 |  |
| Carbon Dioxide Gas                                                                          | 124-38-9   | INERT GAS, GASEOUS                                                       | 437.000  | Cu. Ft. | Control Area 1 |  |
| Nitrogen Gas                                                                                | 7727-37-9  | INERT GAS, GASEOUS                                                       | 200.000  | Cu. Ft. | Control Area 1 |  |
| Nitrogen Gas                                                                                | 7727-37-9  | INERT GAS, GASEOUS                                                       | 200.000  | Cu. Ft. | Control Area 1 |  |
| Cobalt (II) acetate, anhydrous 98%+                                                         | 71-48-7    | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>SENSITIZERS,<br>TOXICS            | 0.013    | Gallons | Control Area 1 |  |
| (Z)-2,2'-Bis(diphenylphosphino)-1,1'-binaphthyl, 98%                                        | 98327-87-8 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| [1,1'-Bis(diphenylphosphino)ferrocene]dichloropalladium(II), complex with dichloroethane    | 95464-03-1 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| [1,1'-Bis(diphenylphosphino)ferrocene]dichloropalladium(II), complex with dichloroethane    | 95464-03-4 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| [1,1'-Bis(diphenylphosphino)ferrocene]dichloropalladium(II), complex with dichloroethane    | 95464-03-4 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.007    | Gallons | Control Area 1 |  |
| [1,1'-Bis(diphenylphosphino)ferrocene]dichloropalladium(II) dichloroethane                  | 95464-03-1 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.007    | Gallons | Control Area 1 |  |
| 1,1'-Bis(diphenylphosphino)ferrocene-palladium(II)dichloride dichloroethane                 | 95464-03-4 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| 1,1'-Bis(diphenylphosphino)ferrocene-palladium(II)dichloride dichloroethane                 | 95464-03-4 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| 1,1'-Bis(diphenylphosphino)ferrocene-palladium(II)dichloride dichloroethane                 | 95464-03-1 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| 1,1'-bis(diphenylphosphino)ferrocene-palladium(II)dichloride dichloroethane                 | 95464-03-4 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| 1,2-Dibromoothane                                                                           | 106-93-4   | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.007    | Gallons | Control Area 1 |  |
| 1,2-Dibromoothane                                                                           | 106-93-4   | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.066    | Gallons | Control Area 1 |  |
| 2,2'-Bis(diphenylphosphino)-1,1'-binaphthalene                                              | 98327-87-8 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.026    | Gallons | Control Area 1 |  |
| 2,2'-Bis(diphenylphosphino)-1,1'-binaphthalene (BINAP)                                      | 98327-87-8 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.026    | Gallons | Control Area 1 |  |
| 2,2'-Bis(diphenylphosphino)-1,1'-binaphthalene, 97%                                         | 98327-87-8 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |
| 2,2'-Bis(diphenylphosphino)-1,1'-binaphthalene, 97%                                         | 98327-87-8 | IRRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                            | 0.001    | Gallons | Control Area 1 |  |



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|---------------------------------------------------------------------------------------------|--------------|------------------------------------------------------------------------------|----------|---------|----------------|--|
| Chemical Name                                                                               | CAS No.      | CFR Class                                                                    | Quantity | Unit    | Location       |  |
| 4-Aminobiphenyl                                                                             | 92-67-1      | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.001    | Gallons | Control Area 1 |  |
| 5-Azacytidine                                                                               | 320-67-3     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.003    | Gallons | Control Area 1 |  |
| Aniline                                                                                     | 62-53-3      | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.001    | Gallons | Control Area 1 |  |
| Cadmium chloride                                                                            | 7794-78-5    | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.003    | Gallons | Control Area 1 |  |
| Chloroform D                                                                                | 865-49-6     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.013    | Gallons | Control Area 1 |  |
| Copper (I) cyanide                                                                          | 544-92-3     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.026    | Gallons | Control Area 1 |  |
| Copper (I) cyanide, 99%                                                                     | 544-92-3     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.007    | Gallons | Control Area 1 |  |
| Copper (I) cyanide, 99%                                                                     | 544-92-3     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.026    | Gallons | Control Area 1 |  |
| Diphenylphosphoryl azide                                                                    | 26386-88-9   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.007    | Gallons | Control Area 1 |  |
| Indole-3-butyric acid                                                                       | 133-32-4     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.001    | Gallons | Control Area 1 |  |
| Iodoacetamide                                                                               | 144-48-9     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.001    | Gallons | Control Area 1 |  |
| Lithium iodide, anhydrous 99%                                                               | 10377-51-2   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.013    | Gallons | Control Area 1 |  |
| Methyl iodide                                                                               | 74-88-4      | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.132    | Gallons | Control Area 1 |  |
| Methyl iodide                                                                               | 74-88-4      | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.132    | Gallons | Control Area 1 |  |
| Nickel(II) chloride hexahydrate                                                             | 7791-20-0    | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.001    | Gallons | Control Area 1 |  |
| Thimerosal                                                                                  | 54-64-8      | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.003    | Gallons | Control Area 1 |  |
| Zinc cyanide                                                                                | 557-21-1     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.066    | Gallons | Control Area 1 |  |
| Zinc cyanide, 98%                                                                           | 557-21-1     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>TOXICS                                 | 0.001    | Gallons | Control Area 1 |  |
| Potassium nitrite                                                                           | 7758-09-0    | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>UNSTABLE (REACTIVE) CLASS 1,<br>TOXICS | 2.203    | Lbs.    | Control Area 1 |  |
| Potassium nitrite                                                                           | 7758-09-0    | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>UNSTABLE (REACTIVE) CLASS 1,<br>TOXICS | 2.203    | Lbs.    | Control Area 1 |  |
| Isopropyl chloroformate                                                                     | 108-23-6     | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1                 | 0.026    | Gallons | Control Area 1 |  |
| Sodium triacetyborohydride                                                                  | 56553-60-7   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1                 | 0.007    | Gallons | Control Area 1 |  |
| Sodium triacetyborohydride                                                                  | 56553-60-7   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1                 | 0.132    | Gallons | Control Area 1 |  |
| Triphosgene, 99%                                                                            | 32315-10-9   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 1                 | 0.001    | Gallons | Control Area 1 |  |
| Lithium borohydride                                                                         | 16949-15-8   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2                 | 0.003    | Gallons | Control Area 1 |  |
| Lithium borohydride                                                                         | 16949-15-8   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2                 | 0.003    | Gallons | Control Area 1 |  |
| Lithium borohydride                                                                         | 16949-15-8   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2                 | 0.026    | Gallons | Control Area 1 |  |
| Lithium borohydride                                                                         | 16949-15-8   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2                 | 0.026    | Gallons | Control Area 1 |  |
| Zinc borohydride, polymer-bound (poly(4-vinylpyridine))                                     | 16949-15-8   | IRITANTS,<br>OTHER HEALTH HAZARDS,<br>WATER REACTIVE CLASS 2                 | 0.007    | Gallons | Control Area 1 |  |
| Manganese(IV) oxide, 80-85%, powder                                                         | 1313-13-9    | IRITANTS,<br>OXIDIZER CLASS 1                                                | 0.007    | Gallons | Control Area 1 |  |
| Silver oxide                                                                                | 1301-96-8    | IRITANTS,<br>OXIDIZER CLASS 1                                                | 0.007    | Gallons | Control Area 1 |  |
| Silver oxide                                                                                | 1301-96-8    | IRITANTS,<br>OXIDIZER CLASS 1                                                | 0.007    | Gallons | Control Area 1 |  |
| Silver nitrate                                                                              | 0007761-88-8 | IRITANTS,<br>OXIDIZER CLASS 1,<br>OTHER HEALTH HAZARDS                       | 0.026    | Gallons | Control Area 1 |  |
| Silver nitrate                                                                              | 0007761-88-8 | IRITANTS,<br>OXIDIZER CLASS 1,<br>OTHER HEALTH HAZARDS                       | 0.026    | Gallons | Control Area 1 |  |

| Inventory Report for Biotheryx, Inc. - 10201 Wateridge Circle, Suite B, San Diego, CA 92121 |             |                                                                   |          |         |                |
|---------------------------------------------------------------------------------------------|-------------|-------------------------------------------------------------------|----------|---------|----------------|
| Chemical Name                                                                               | CAS No.     | CFR Class                                                         | Quantity | Unit    | Location       |
| Osmium(VIII)-tetroxide                                                                      | 20816-12-0  | IRITANTS,<br>OXIDIZER CLASS 1,<br>OTHER HEALTH HAZARDS,<br>TOXICS | 0.000    | Gallons | Control Area 1 |
| Sodium nitrite                                                                              | 7632-00-0   | IRITANTS,<br>OXIDIZER CLASS 1,<br>OTHER HEALTH HAZARDS,<br>TOXICS | 0.066    | Gallons | Control Area 1 |
| 3-Chloroperoxybenzoic acid / mCPBA                                                          | 937-14-4    | IRITANTS,<br>OXIDIZER CLASS 1,<br>OXIDIZER CLASS 2                | 0.026    | Gallons | Control Area 1 |
| 3-Chloroperoxybenzoic acid, <77%                                                            | 937-14-4    | IRITANTS,<br>OXIDIZER CLASS 1,<br>OXIDIZER CLASS 2                | 0.007    | Gallons | Control Area 1 |
| 3-Chloroperoxybenzoic acid, <77%                                                            | 937-14-4    | IRITANTS,<br>OXIDIZER CLASS 1,<br>OXIDIZER CLASS 2                | 0.026    | Gallons | Control Area 1 |
| Potassium permanganate                                                                      | 7722-64-7   | IRITANTS,<br>OXIDIZER CLASS 2                                     | 0.132    | Gallons | Control Area 1 |
| Dibenzoyl peroxide                                                                          | 94-36-0     | IRITANTS,<br>OXIDIZER CLASS 2,<br>ORGANIC PEROXIDES CLASS III     | 0.026    | Gallons | Control Area 1 |
| Deo-Martin periodinane                                                                      | 87413-09-0  | IRITANTS,<br>OXIDIZER CLASS 3                                     | 0.001    | Gallons | Control Area 1 |
| Deo-Martin periodinane                                                                      | 87413-09-0  | IRITANTS,<br>OXIDIZER CLASS 3                                     | 0.007    | Gallons | Control Area 1 |
| Deo-Martin periodinane                                                                      | 87413-09-0  | IRITANTS,<br>OXIDIZER CLASS 3                                     | 0.007    | Gallons | Control Area 1 |
| Deo-Martin periodinane                                                                      | 87413-09-0  | IRITANTS,<br>OXIDIZER CLASS 3                                     | 0.007    | Gallons | Control Area 1 |
| Deo-Martin periodinane                                                                      | 87413-09-0  | IRITANTS,<br>OXIDIZER CLASS 3                                     | 0.013    | Gallons | Control Area 1 |
| Deo-Martin periodinane                                                                      | 87413-09-0  | IRITANTS,<br>OXIDIZER CLASS 3                                     | 0.013    | Gallons | Control Area 1 |
| 3,5-Bis(trifluoromethyl)phenyl isocyanate, 98%                                              | 16588-74-2  | IRITANTS,<br>IRITANTS,<br>SENSITIZERS,<br>WATER REACTIVE CLASS 1  | 0.001    | Gallons | Control Area 1 |
| 3,5-Bis(trifluoromethyl)phenyl isocyanate, 98%                                              | 16588-74-2  | IRITANTS,<br>IRITANTS,<br>SENSITIZERS,<br>WATER REACTIVE CLASS 1  | 0.001    | Gallons | Control Area 1 |
| 4-Nitrophenyl isocyanate                                                                    | 100-28-7    | IRITANTS,<br>IRITANTS,<br>SENSITIZERS,<br>WATER REACTIVE CLASS 1  | 0.001    | Gallons | Control Area 1 |
| 1,10-Phenanthroline                                                                         | 5144-89-8   | IRITANTS,<br>TOXICS                                               | 0.001    | Gallons | Control Area 1 |
| 1,10-Phenanthroline, 99%                                                                    | 96-11-7     | IRITANTS,<br>TOXICS                                               | 0.001    | Gallons | Control Area 1 |
| 1,3-Dibromo-5,5-dimethylhydantoin                                                           | 77-48-5     | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| 1,3-Dibromo-5,5-dimethylimidazolidine-2,4-dione                                             | 77-48-5     | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| 1-Chloroethyl-4-fluoro-1,4-diazoniabicyclo[2.2.2]octane bis(tetrafluoroborate)              | 140681-55-6 | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| 2-(3-Bromopropyl)-1,3-dioxane                                                               | 62563-07-9  | IRITANTS,<br>TOXICS                                               | 0.000    | Gallons | Control Area 1 |
| 2-amino-4,6-dibromopyrimidine                                                               | 356973-26-7 | IRITANTS,<br>TOXICS                                               | 0.001    | Lbs.    | Control Area 1 |
| 3-(Carbobenzoxycarbonyl)-1-propanol, 98-9%                                                  | 34637-22-4  | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| 3,4-Dimethoxyphenyl isothiocyanate, 97%                                                     | 33904-04-0  | IRITANTS,<br>TOXICS                                               | 0.003    | Gallons | Control Area 1 |
| 2-[[[4-(tert-butylcarboxycarbonyl)hippurazin-1-yl]hydrazyl]benzoic acid                     | 500013-38-7 | IRITANTS,<br>TOXICS                                               | 0.000    | Gallons | Control Area 1 |
| 3-Aminopyridine                                                                             | 462-08-8    | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| 4-Amino-1-Boc piperidine                                                                    | 87120-72-7  | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| 4-Formylbenzoic acid                                                                        | 619-66-9    | IRITANTS,<br>TOXICS                                               | 0.003    | Gallons | Control Area 1 |
| 4-Nitrophenol                                                                               | 100-02-7    | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| Benzocyclindol-2(1H)-one                                                                    | 120-00-7    | IRITANTS,<br>TOXICS                                               | 0.026    | Gallons | Control Area 1 |
| Cobalt (III) chloride anhydrous, >98%                                                       | 7646-79-9   | IRITANTS,<br>TOXICS                                               | 0.013    | Gallons | Control Area 1 |
| Copper(II) sulfite                                                                          | 7758-98-7   | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| Copper(II) sulfite                                                                          | 7758-98-7   | IRITANTS,<br>TOXICS                                               | 0.026    | Gallons | Control Area 1 |
| Diethyl piperazine-1-carboxylate, 99%                                                       | 120-43-4    | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| Methylidene bis[(4-methylphenyl)methyl]guanidinium                                          | 36635-61-7  | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| Methyltri-n-octylammonium chloride                                                          | 5137-55-3   | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| P8-Tripentylphosphine                                                                       | 39319-11-4  | IRITANTS,<br>TOXICS                                               | 0.007    | Gallons | Control Area 1 |
| Selectfluor fluorinating reagent                                                            | 140681-55-6 | IRITANTS,<br>TOXICS                                               | 0.001    | Gallons | Control Area 1 |
| Tetrahydroxydiboron                                                                         | 13675-18-8  | IRITANTS,<br>TOXICS                                               | 0.001    | Gallons | Control Area 1 |
| Thiozyl chloride                                                                            | 7719-09-7   | IRITANTS,<br>TOXICS                                               | 0.264    | Gallons | Control Area 1 |
| Triphenylphosphine resin, 100-200 mesh                                                      | 39319-11-4  | IRITANTS,<br>TOXICS                                               | 0.001    | Gallons | Control Area 1 |
| Tetrahydrofuran-3-carbaldehyde in water                                                     | 79710-86-4  | IRITANTS,<br>UNSTABLE (REACTIVE) CLASS 1                          | 0.000    | Gallons | Control Area 1 |
| Benzotriazol-1-yl-oxo-4-tris(dimethylamino)phosphonium hexadecylphosphate                   | 128625-52-5 | IRITANTS,<br>WATER REACTIVE CLASS 1                               | 0.093    | Gallons | Control Area 1 |
| Benzotriazol-1-yl-oxo-4-trispyrrolidino)phosphonium hexadecylphosphate                      | 128625-52-5 | IRITANTS,<br>WATER REACTIVE CLASS 1                               | 0.001    | Gallons | Control Area 1 |
| Benzotriazol-1-yl-oxo-4-trispyrrolidino)phosphonium hexadecylphosphate (PyBOP)              | 128625-52-5 | IRITANTS,<br>WATER REACTIVE CLASS 1                               | 0.001    | Gallons | Control Area 1 |

| Chemical Name                                         | CAS No.     | CFC Class                                                                                                   | Quantity      | Unit | Location       |
|-------------------------------------------------------|-------------|-------------------------------------------------------------------------------------------------------------|---------------|------|----------------|
| Benzyl isothiocyanate, 98%                            | 622-78-6    | IRRITANTS,<br>WATER REACTIVE CLASS 1                                                                        | 0.001 Gallons |      | Control Area 1 |
| Bit(2,2,2-trifluoroethyl) phosphite                   | 92466-70-1  | IRRITANTS,<br>WATER REACTIVE CLASS 1<br><br>OTHER HEALTH HAZARDS,<br>SENSITIZERS,<br>WATER REACTIVE CLASS 1 | 0.007 Gallons |      | Control Area 1 |
| Phthalic anhydride, 99%+                              | 85-44-9     | OTHER HEALTH HAZARDS,<br>TOXICS                                                                             | 0.132 Gallons |      | Control Area 1 |
| m-Aniline Hydrochloride                               | 27191-09-9  | TOXICS                                                                                                      | 0.007 Gallons |      | Control Area 1 |
| Ammonium cerium(IV) sulfate dihydrate                 | 160784-75-9 | OXIDIZER CLASS 1                                                                                            | 0.025 Gallons |      | Control Area 1 |
| Benzenesulfonic acid                                  | 98-11-3     | OXIDIZER CLASS 1                                                                                            | 0.007 Gallons |      | Control Area 1 |
| Tetrazenesulfonic acid                                | 98-11-3     | OXIDIZER CLASS 1                                                                                            | 0.007 Gallons |      | Control Area 1 |
| Benzenesulfonic acid                                  | 98-11-3     | OXIDIZER CLASS 1                                                                                            | 0.025 Gallons |      | Control Area 1 |
| Potassium Nitrate, 99%+                               | 7557-79-1   | OXIDIZER CLASS 1                                                                                            | 0.132 Gallons |      | Control Area 1 |
| 2,4-Dichlorophenyl isocyanate, 99%                    | 2612-37-9   | TOXICS,<br>WATER REACTIVE CLASS 1                                                                           | 0.007 Gallons |      | Control Area 1 |
| 1-(3-Chlorobenzyl)guanidine hydrochloride             | 2111-05-5   | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 1-(3-cyclohexylpropyl) piperazine                     | 860172-97-8 | TOXICS                                                                                                      | 0.001 Gallons |      | Control Area 1 |
| 18-Crown-6 ether                                      | 17455-13-6  | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 18-Crown-6 ether                                      | 17455-13-6  | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 18-Crown-6 ether                                      | 17455-13-6  | TOXICS                                                                                                      | 0.007 Gallons |      | Control Area 1 |
| 1-aminoanthracene                                     | 134-32-7    | TOXICS                                                                                                      | 0.001 Gallons |      | Control Area 1 |
| 1-phénylthiouamide                                    | 102-02-3    | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 2-[C-FLUOROPHENYL]-2-OXOACETIC ACID                   | 7947-78-4   | TOXICS                                                                                                      | 0.000 Lbs.    |      | Control Area 1 |
| 2-Etanoctanolic, 98%                                  | 883-57-8    | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 2-Methylthiophene-3-Carballic acid                    | 1918-78-1   | TOXICS                                                                                                      | 0.003 Gallons |      | Control Area 1 |
| 2-Methylthiophene-3-Carballic acid                    | 1918-78-1   | TOXICS                                                                                                      | 0.007 Gallons |      | Control Area 1 |
| 3-Nitropropanol                                       | 25182-84-7  | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 1-Oxodihydroimidazolinone acid                        | 619-94-1    | TOXICS                                                                                                      | 0.007 Gallons |      | Control Area 1 |
| 4-methylphenyl-oxo-acetic acid                        | 1163-50-9   | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Lbs.    |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(4-bromophenyl)-2-(2-trifluoromethyl)-3-thioic acid | 229957-02-2 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| 5-(Trifluoromethyl)pyridin-3-amine                    | 112110-07-5 | TOXICS                                                                                                      | 0.000 Gallons |      | Control Area 1 |
| Diglycine                                             | 11024-24-1  | TOXICS                                                                                                      | 0.000 Lbs.    |      | Control Area 1 |
| Iodobutane, 98%                                       | 7-40-6      | TOXICS                                                                                                      | 0.022 Gallons |      | Control Area 1 |
| N,N-Diethylaniline                                    | 91-66-7     | TOXICS                                                                                                      | 0.066 Gallons |      | Control Area 1 |
| Ribociclib                                            | 121141-98-3 | TOXICS                                                                                                      | 0.605 Gallons |      | Control Area 1 |
| 2,2'-Azobis(2-Methylpropionitrile)                    | 78-67-1     | UNSTABLE (REACTIVE) CLASS 2,<br>IRBITANTS,<br>OTHER HEALTH HAZARDS                                          | 0.055 Lbs.    |      | Control Area 1 |
| 2,2'-Azobis(isobutyronitrile)                         | 78-67-1     | UNSTABLE (REACTIVE) CLASS 2,<br>IRBITANTS,<br>OTHER HEALTH HAZARDS                                          | 0.055 Lbs.    |      | Control Area 1 |



**EXHIBIT F**

**FORM OF SNDAA**

**RETURN TO:**

Gibson, Dunn & Crutcher LLP  
One Embarcadero Center Suite 2600  
San Francisco, CA 94111-3715  
Attn: Kahlil Yearwood, Esq.

**SUBORDINATION, NON-DISTURBANCE AND ATTORNMENT AGREEMENT**

THIS SUBORDINATION, NON-DISTURBANCE AND ATTORNMENT AGREEMENT (hereinafter referred to as “**Agreement**”) made this \_\_\_\_ day of \_\_\_\_\_, 2024, among **RBC REAL ESTATE CAPITAL CORP.**, a Delaware corporation (together with its successors, assigns, designees and/or nominees, collectively hereinafter referred to as “**Lender**”), **BIOOTHERYX, INC.**, a Delaware limited liability company (hereinafter referred to as “**Tenant**”), and **SILVER I 2020, LLC**, a Delaware limited liability company (hereinafter referred to as “**Landlord**”).

**R E C I T A L S:**

A. Tenant is the tenant and lessee under a certain Lease (as the same may now or hereafter be amended, restated, replaced or otherwise modified, collectively, the “**Lease**”) relating to the premises described in the Lease (hereinafter referred to as the “**Premises**”), located at the real property more particularly described on Exhibit A attached hereto (hereinafter referred to as the “**Property**”).

B. Lender has made or will make a loan to Landlord (hereinafter referred to as the “**Loan**”), which such Loan is (i) secured by a Deed of Trust, Security Agreement, Assignment of Leases and Rents and Fixture Filing (as the same may be amended, restated, extended, or otherwise modified from time to time, the “**Mortgage**”) and an Assignment of Leases and Rents (as the same may be amended, restated, extended, or otherwise modified from time to time, the “**Assignment of Leases**”), in each case, from Landlord to Lender covering the Property including the Premises and (ii) evidenced by certain other documents and instruments by and among Lender and Landlord, among others (the same, together with the Mortgage and Assignment of Leases, collectively, the “**Loan Documents**”).

C. Tenant has agreed that the Lease shall be subject and subordinate to the Loan and Loan Documents, provided Tenant is assured of continued occupancy of the Premises under the terms of the Lease.

NOW, THEREFORE, for and in consideration of the mutual covenants herein contained, and other good and valuable considerations, the receipt and sufficiency of which are hereby acknowledged, and notwithstanding anything in the Lease to the contrary, it is hereby agreed as follows:

1. Subordination and Consent. Lender, Tenant and Landlord do hereby covenant and agree that the Lease with all rights, options, liens and charges created thereby (including, without limitation, any option or rights contained in the Lease, or otherwise existing, to acquire any or all of the Premises, or any superior leasehold interest therein), is and shall continue to be subject and subordinate in all respects to the lien and terms of the Loan Documents, and to any renewals, modifications, consolidations, replacements and extensions thereof and to all advancements made thereunder, subject to the terms and conditions of this Agreement. Tenant acknowledges that Landlord will execute and deliver to Lender an assignment of the Lease as security for the Loan, and Tenant hereby expressly consents to such assignment. Tenant agrees that if there is a default by Landlord in the performance and observance of any of the terms of such Loan, Lender may, at its option, upon prior written notice, demand all rents due under the Lease be paid by Tenant directly to Lender at the address specified below, or as otherwise specified by Lender. Tenant agrees that upon Lender’s written request for payment of rent directly to Lender, Tenant will timely remit any and all payments due under the Lease directly to, and payable to the order of, Lender. Such payments to Lender will constitute performance of Tenant’s payment obligations under the Lease.

2. Non-Disturbance. Lender does hereby agree with Tenant that, in the event Lender succeeds to Landlord's interest in the Premises by foreclosure, conveyance in lieu of foreclosure or otherwise, so long as Tenant is not in default beyond any applicable notice and cure period under the terms of the Lease and performs its obligations under the Lease, (a) the Lease shall continue in full force and effect as a direct Lease between Lender and Tenant, upon and subject to all of the terms, covenants and conditions of the Lease, for the balance of the term of the Lease, and Lender will not disturb the possession of Tenant, or Tenant's use and occupancy of Tenant's Premises and (b) the Premises shall be subject to the Lease and Lender shall recognize Tenant as the tenant of the Premises for the remainder of the term of the Lease in accordance with the provisions thereof; provided, however, that Lender shall not be:

(i) subject to any claims, offsets or defenses which Tenant might have against any prior landlord (including Landlord) other than those arising from a default of a continuing nature that continues past the date of transfer and of which Lender is given written notice and opportunity to cure as set forth in Section 4 hereof ("**Continuing Default**");

(ii) liable for any act or omission of any prior landlord (including Landlord), other than those arising from a Continuing Default;

(iii) bound by any rent or additional rent which Tenant might have paid for more than the current month or any security deposit or other prepaid charge paid to any prior landlord (including Landlord) which has not, as such, been transferred to Lender;

(iv) bound by any amendment or modification of the Lease made without its written consent (which consent shall not be unreasonably withheld or delayed), other than an amendment to document the exercise of rights already granted to Tenant under the Lease as in effect on the date hereof; or

(v) liable for any deposit that Tenant may have given to any previous landlord (including Landlord) which has not, as such, been transferred to Lender.

Nothing contained herein shall prevent Lender from naming Tenant in any foreclosure or other action or proceeding initiated by Lender pursuant to the Loan Documents to the extent necessary under applicable law in order for Lender to avail itself of and complete the foreclosure or other remedy. Tenant acknowledges and agrees that it has no right or option of any nature whatsoever, whether pursuant to the Lease or otherwise, to purchase the Premises or the Property, or any portion thereof or any interest therein, and to the extent that Tenant has had, or hereafter acquires, any such right or option, the same is hereby acknowledged to be subject and subordinate to the lien and terms of the Loan Documents and is hereby waived and released as against Lender.

3. Attornment. Tenant does hereby agree with Lender that, in the event Lender becomes the owner of the Property by foreclosure, conveyance in lieu of foreclosure or otherwise, then, upon Tenant's receipt of a written notice from Lender, Tenant shall attorn to and recognize Lender as the landlord under the Lease for the remainder of the term thereof and, subject to this Agreement, Lender shall assume and perform all obligations of Landlord which accrue from and after the date upon which Lender obtains the right to possession or succeeds to Landlord's interest, and Tenant shall perform and observe its obligations thereunder, subject only to the terms and conditions of the Lease. Tenant further covenants and agrees to execute and deliver upon request of Lender a reasonable agreement of attornment to Lender and any subsequent titleholder of the Premises.

4. Lease Defaults. In the event Landlord shall fail to perform or observe any of the terms, conditions or agreements in the Lease, Tenant shall give written notice thereof to Lender, simultaneous with its notice to Landlord of same, and Lender shall have the right (but not the obligation) to cure such default. Tenant shall not take any action with respect to such default under the Lease, including without limitation any action in order to terminate, rescind or avoid the Lease or to withhold any rent or other monetary obligations thereunder, for a period of thirty (30) days following receipt of such written notice by Lender; provided, however, that in the case of any default which cannot with diligence be cured within said thirty (30) day period, if Lender shall proceed promptly to cure such default and thereafter prosecute the curing of such default with diligence and continuity, the time within which such default may be cured shall be extended for such period as may be necessary to complete the curing of such default with diligence and continuity.

5. Obligations and Liability of Lender. Lender shall have no obligations nor incur any liability with respect to any warranties of any nature whatsoever, whether pursuant to the Lease or otherwise, including, without limitation, any warranties respecting use, compliance with zoning, hazardous wastes or environmental laws, Landlord's title, Landlord's authority, habitability, fitness for purpose or possession. Furthermore, in the event that Lender shall acquire Landlord's interest in the Property, Lender shall have no obligation, nor incur any liability, beyond Lender's then equity interest, if any, in the Property, and Tenant shall look exclusively to such equity interest of Lender, if any, in the Property for the payment and discharge of any obligations or liability imposed upon Lender hereunder, under the Lease (or under any new lease with Tenant), and Lender is hereby released and relieved of any other obligations or liability hereunder, under the Lease or under any such new lease. Lender shall not, either by virtue of the Loan Documents or this Agreement, be or become a mortgagee in possession or be or become subject to any liability or obligation under the Lease or otherwise until Lender shall have acquired the Landlord's interest in the Property and then such liability or obligation of Lender under the Lease (as modified by the terms of this Agreement) shall extend only to those liability or obligations accruing subsequent to the date that Lender has acquired Landlord's interest in the Property. Without limiting the generality of the foregoing, neither the Loan Documents nor this Agreement shall operate to place responsibility for the control, care, management or repair of the Property upon Lender or impose upon Lender responsibility for the carrying out of any of the terms or conditions of the Lease, and Lender shall not be responsible or liable for any waste committed on either the Premises or the Property by any party whatsoever, for any dangerous or defective condition of the Property or for any negligence in the management, upkeep, repair or control of either the Premises or the Property, in each case, prior to Lender's acquisition of Landlord's interest in the Property.

6. Severability. If any portion or portions of this Agreement shall be held invalid or inoperative, then all of the remaining portions shall remain in full force and effect, and, so far as is reasonable and possible, effect shall be given to the intent manifested by the portion or portions held to be invalid or inoperative.

7. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of California. Jurisdiction and exclusive venue shall be proper only in the county in which the Premises is located.

8. Notices. So long as the Mortgage remains outstanding and unsatisfied, Tenant will mail or deliver to Lender, at the address and in the manner hereinbelow provided, a copy of all notices permitted or required to be given to the Landlord by Tenant under and pursuant to the terms and provisions of the Lease. All notices or other communications required or permitted to be given pursuant to the provisions hereof shall be in writing and shall be considered as properly given if (i) mailed to the addressee by first class United States mail, postage prepaid, registered or certified with return receipt requested, (ii) by delivering same in person to the addressee, or (iii) by delivery to a third party commercial delivery service for same day or next day delivery to the office of the addressee with proof of delivery. Notice so given shall be effective, as applicable, upon (i) the third (3rd) day following the day such notice is deposited with the U.S. Postal Service, (ii) delivery to the addressee, or (iii) upon delivery to such third party delivery service. Notice given in any other manner shall be effective only if and when received by the addressee. For purposes of notice, the addresses of the parties shall be:

Lender: RBC Real Estate Capital Corp.  
200 Crescent Court  
Suite 1525  
Dallas, TX 75201  
Attn: Richard Farris and Justin Bilechuk

Landlord: SILVER I 2020, LLC  
c/o WTM Elements, LLC  
1 Belvedere Drive, Suite 200  
Mill Valley, California 94941  
Attention: Justin Wesley  
Jeremy Dorsett

Tenant: Biotheryx, Inc.  
5871 Oberlin Drive, Suite 100  
San Diego, California 92121  
Attn: David Pieters

Notwithstanding the foregoing, any party shall have the right to change its address for notice hereunder to any other location within the continental United States by the giving of thirty (30) days' notice to the other parties in the manner set forth herein.

9. Successors and Assigns. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, legal representatives, successors, successors-in-title and assigns. Without limitation of any provision contained herein, as used herein, the term (i) "landlord" refers to Landlord and to any successor to the interest of Landlord under the Lease and (ii) "Lender" refers to Lender and to any assignee of the note secured by the Mortgage and Lender's servicer of the Loan, if any.

10. Tenant's Personal Property. In no event shall the Mortgage cover or encumber (and shall not be construed as subjecting in any manner to the lien thereof) any of Tenant's moveable trade fixtures, business equipment, furniture, signs or other personal property at any time placed on or about the Premises.

11. Counterparts. This Agreement may be executed in one or more counterparts, each of which when so executed shall be deemed to be an original, but all of which when taken together shall constitute one and the same instrument.

12. Headings. The headings, captions, and arrangements used in this Agreement are for convenience only and shall not affect the interpretation of this Agreement.

13. Costs and Attorney's Fees. In the event of any claim or dispute arising out of or in connection with the interpretation or enforcement of this Agreement, the party that substantially prevails shall be awarded, in addition to all other relief, all reasonable attorneys' fees and other costs and expenses incurred in connection with such claim or dispute.

**[SIGNATURE PAGE FOLLOWS]**



**IN WITNESS WHEREOF**, the parties hereto have executed this Agreement under seal as of the date first above written.

**LENDER:**

**RBC REAL ESTATE CAPITAL CORP.,**  
a Delaware corporation

By: \_\_\_\_\_  
Name:  
Title: Authorized Signatory

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF \_\_\_\_\_ )  
 ) ss.  
COUNTY OF \_\_\_\_\_ )

On \_\_\_\_\_ before me, \_\_\_\_\_, a Notary Public, personally appeared \_\_\_\_\_, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her authorized capacity, and that by his/her signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature \_\_\_\_\_ (Seal)

**TENANT:**

BIOOTHERYX, INC.,  
a Delaware corporation

By: \_\_\_\_\_  
Name: \_\_\_\_\_  
Title: \_\_\_\_\_

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF \_\_\_\_\_ )  
 )  
COUNTY OF \_\_\_\_\_ ) SS.

On \_\_\_\_\_ before me, \_\_\_\_\_, a Notary Public, personally appeared \_\_\_\_\_, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her authorized capacity, and that by his/her signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature\_\_\_\_\_ (Seal)

**LANDLORD:**

SILVER I 2020, LLC  
a Delaware limited liability company

By: \_\_\_\_\_  
Name: Matthew Coleman  
Title: Vice President

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF \_\_\_\_\_ )  
 ) ss.  
COUNTY OF \_\_\_\_\_ )

On \_\_\_\_\_ before me, \_\_\_\_\_, a Notary Public, personally appeared \_\_\_\_\_, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her authorized capacity, and that by his/her signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature \_\_\_\_\_ (Seal)

**EXHIBIT A**

Legal Description

**LEASE**

**ELEMENTS BY ALLOY PROPERTIES**

**SILVER I 2020, LLC,**

a Delaware limited liability company

as Landlord,

and

**BIOOTHERYX, INC.,**

a Delaware corporation,

as Tenant.

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